

The Sexes in Science and History

Eliza Burt Gamble

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Transcriber's Notes

Obvious typographical errors have been silently corrected. Variations in hyphenation and accents have been standardised but all other spelling and punctuation remains unchanged.

The precise location of footnote 256 is speculative since it is not indicated in the original.

The Sexes in Science
and
History

An Inquiry into the Dogma of Woman's
Inferiority to Man

By
Eliza Burt Gamble

A revised edition of "The Evolution of Woman"

G. P. Putnam's Sons
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The Knickerbocker Press
1916

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PREFACE TO NEW EDITION

This volume is a revised edition of *The Evolution of Woman* published by G. P. Putnam's Sons in 1894.

In this later work much added evidence appears going to prove the correctness of the theory advanced in the former work. In it the subject of sex-development has been brought down to the present time and in this later investigation it is found that each and every fact connected with the biological and sociological development of the last twenty years is in strict accord not only with the facts set forth in *The Evolution of Woman* but with the conclusions therein arrived at.

In the concluding chapters of this volume the results of the separate development of the two diverging lines of sex demarcation are set forth. I have endeavoured to show that present conditions are the legitimate outcome of the ascendancy gained during the later ages of human history by the egoistic or destructive agencies over the higher or constructive forces developed in human nature.

E. B. G.

PREFACE TO FIRST EDITION

After a somewhat careful study of written history, and after an investigation extending over several years of all the accessible facts relative to extant tribes representing the various stages of human development, I had reached the conclusion, as early as the year 1882, that the female organism is in no wise inferior to that of the male. For some time, however, I was unable to find any detailed proof that could consistently be employed to substantiate the correctness of this hypothesis.

In the year 1885, with no special object in view other than a desire for information, I began a systematized investigation of the facts which at that time had been established by naturalists relative to the development of mankind from lower orders of life. It was not, however, until the year 1886, after a careful reading of *The Descent of Man*, by Mr. Darwin, that I first became impressed with the belief that the theory of evolution, as enunciated by scientists, furnishes much evidence going to show that the female among all the orders of life, man included, represents a higher stage of development than the male. Although at the time indicated, the belief that man has descended from lower orders in the scale of being had been accepted by the leading minds both in Europe and America, for reasons which have not been explained, scientists, generally, seemed inclined to ignore certain facts connected with this theory which tend to prove the superiority of the female organism.

Scarcely considering at the outset whether my task would eventually take the form of a magazine article, or whether it would be extended to the dimensions of a book, I set myself to work to show that some of the conclusions of the savants regarding the subject of sex-development are not in accord with their premises.

While writing the first part of this volume, and while reasoning on the facts established by scientists in connection with the observations which have been made in these later years relative to the growth of human society and the development of human institutions, it seemed clear to me that the

history of life on the earth presents an unbroken chain of evidence going to prove the importance of the female; and, so struck was I by the manner in which the facts of science and those of history harmonize, that I decided to embrace within my work some of the results of my former research. I therefore set about the task of tracing, in a brief manner, the growth of the primary characters observed in the two diverging sex-columns, according to the facts and principles enunciated in the theory of natural development.

It is not perhaps singular, during an age dominated by theological dogmatism, and in which no definite knowledge relative to the development of life on the earth had been gained, that man should have regarded himself as an infinitely superior being. Neither is it remarkable that woman, who was supposed to have appeared later on the scene of action than did her male mate, and who owed her existence to a surgical operation performed upon him, should have been regarded simply as an appendage, a creature brought forth in response to the requirements of the masculine nature.

The above doctrines when enunciated by theologians need cause little surprise, but with the dawn of a scientific age it might have been expected that the prejudices resulting from those doctrines might disappear. When, however, we turn to the most advanced scientific writings of the present century, we find that the prejudices which throughout thousands of years have been gathering strength are by no means eradicated, and any discussion of the sex question is still rare in which the effects of these prejudices may not be traced. Even Mr. Darwin, notwithstanding his great breadth of mental vision and the important work which he accomplished in the direction of original inquiry, whenever he had occasion to touch on the mental capacities of women, or more particularly on the relative capacities of the sexes, manifested the same spirit which characterizes the efforts of an earlier age; and throughout his entire investigation of the human species, his ability to ignore certain facts which he himself adduced, and which all along the line of development tend to prove the superiority of the female, is truly remarkable.

We usually judge of a man's fitness to assume the rôle of an original investigator in any branch of human knowledge, by noting his powers of observation and generalization, and by observing his capacity to perceive connections between closely related facts; also, by tracing the various

processes by which he arrives at his conclusions. The ability, however, to collect facts, and the power to generalize and draw conclusions from them, avail little, when brought into direct opposition to deeply rooted prejudices.

The indications are strong that the time has at length arrived when the current opinions concerning sex capacity and endowment demand a revision, and when nothing short of scientific deductions, untainted by the prejudices and dogmatic assumptions of the past, will be accepted.

As has been stated, the object of this volume is to set forth the principal data brought forward by naturalists bearing on the subject of the origin and development of the two lines of sexual demarcation, and by means of the facts observed by explorers among peoples in the various stages of development, to trace, so far as possible, the effect of such differentiation upon the individual, and upon the subsequent growth of human society.

E. B. G.

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The Sexes in Science and History

PART I
The Theory of Evolution

CHAPTER I

DEVELOPMENT OF THE ORGANISM

Sex is not only the basic fact underlying physical life but it is also the fundamental principle involved in the origin and development of religion. Throughout the history of mankind, the God-idea has ever been, male or female, according to the relative importance of the two sex principles in human affairs.

Scientists declare that they are now able to trace the development of the two diverging lines of sex-demarcation from the time of their separation, or from the time when these principles were confined within one and the same individual. In order to understand the origin of sex, it becomes necessary to recall, briefly, the theory of the development of life on the earth as set forth by the savants.

As science deals only with matter, a mechanical theory of the universe is inevitable. As science is wholly materialistic, it is perfectly consistent in its declaration that the senses and the intellect constitute the only means whereby truth may be discovered. Modern philosophy, on the other hand, which deals less with matter itself than with the causes which underlie the development of matter, affirms that a character has been developed in human beings which in its capacity to discern truth, far transcends the intellect. That character is intuition. But as we are dealing only with scientific observations, philosophical speculations do not here concern us.

The fundamental idea, which must necessarily lie at the bottom of all natural theories of development, is that of a gradual development of all (even the most perfect) organisms out of a single, or out of a very few, quite simple, and quite imperfect original beings, which came into existence, not by supernatural creation, but by spontaneous generation.^{[1](#)}

According to the theory of evolution as elaborated by scientists, the history of man begins with small animated particles, or Monera, which appeared in the primeval sea. These marine specks were albuminous compounds of carbon, generated by the sun's heat, which made their appearance as soon as the mists which enveloped the earth were sufficiently cleared away to permit the rays of the sun to penetrate them and reach the surface of the globe. Concerning the origin of the principle of life which these particles contained, or regarding the development of organic bodies from inorganic substances, the more timid among naturalists declare that in the present state of human knowledge it is impossible to know anything, while others of them, more bold, or more confident of the latent powers of the human intellect, after having elaborated a natural or mechanical explanation for the development of all organic forms, are not disposed to accept a supernatural theory for the beginning of life. For example, since organic structures represent the development of matter according to laws governing the chemical, molecular, and physical forces inherent in it, it is believed that the gulf separating organic and inorganic substances is not so difficult to span as has hitherto been supposed. Among those who hold this view may be ranked the celebrated naturalist, Ernst Haeckel.

Regarding the phenomena of life this writer observes: "We can demonstrate the infinitely manifold and complicated physical and chemical properties of the albuminous bodies to be the real cause of organic or vital phenomena."² Indeed, in whatever manner the vital force within them originated, naturalists agree that from these particles have been derived all the forms, both animal and vegetable, which have ever existed upon the earth.

As speculations concerning the origin of matter lie without the domain of natural or scientific inquiry, they form no part of the investigations of the naturalist. So far as is known, matter is eternal, and all that may be learned concerning it must be gleaned by observing the changes, chemical and molecular, through which it is manifested. By those who have observed the laws which govern the manifold changes in matter, the fact is declared that the various manifestations in form and substance constitute the only creation of which we may have any knowledge; and, moreover, that the genesis of existence is going on as actively in our time as at any previous period in the history of matter. So far as human knowledge extends, no

particle of matter has ever been created and none ever destroyed. This continuous process of transmutation of substance and change of form, in other words the phenomena designated Life, may have been in operation during all the past, and may continue forever.

As all speculations concerning the origin of matter have been unavailing, so all attempts to solve the problem of the origin of life have proved futile. The experiments recently carried on in the Rockefeller Institute, in which by means of chemical processes detached organs from the bodies of animals have been made to perform their normal functions, are interesting and instructive, but these experiments furnish no clue to the origin of the force which animates living organic matter. Why the nucleated cells which we call a heart should pulsate whilst those which we call a liver should secrete bile, nobody knows.

That all life on the earth has been derived from one, or at most from a few original forms, is said to be proved by ontogeny, or the history of the germ, which in its development passes through a number of the forms which mark the ascending scale of life.

Through the study of comparative anatomy, the fact has been discovered that the individuals composing the various orders of the great vertebrate series are all moulded “on the same general plan”; that up to a certain stage in the development of the several germs—for instance those of the man, the ape, the horse, the dog, etc.,—they are not distinguishable the one from the other, and that it is only at a later stage of development that they take on the peculiarities belonging to their own special kind. The number and variety of forms which appear in the animal and vegetable world make it difficult to conceive of the idea that all have sprung from one, or at most from a few original types, yet the chain of evidence in support of this theory seems quite complete.

Natural Selection, by which it is demonstrated that organized matter must move forward simply through the chemical and physical forces inherent in it, furnishes a key to all the phenomena of life, both animal and vegetable, which have ever appeared on the earth. Natural Selection, we are told, depends for its operation on the interaction of two processes or agencies, namely, Inheritance and Adaptation. Through Inheritance germs receive

from their parents a plastic form which, as all development is a function of external physical conditions, is itself nothing more than a “manifestation of the remains of antecedent physical impressions.” This inherited form causes them to go forward in a predestined course, while through Adaptation there is a constant tendency to change that predestined form imposed upon them by their parents to one better suited to their changing physical conditions.

According to the theory of Natural Selection, organic structures vary to meet the requirements of changed conditions; or, when existing circumstances are such that they are forced into new and unusual modes of life, they branch off into different directions; thus new varieties are formed, or possibly new species. Such portions of a group, however, as remain sheltered from conditions unsuited to their present line of development, retain their ancient forms. This change of structure by which organisms or portions of organic bodies are modified so as to perform more complicated functions, or those better suited to their environment, is denominated differentiation; hence the degree of differentiation attained by a structure determines the stage of development which it has reached.

But to return to our single-celled animal—the simplest form of life on the earth. Except that by the action of the surrounding forces its surface has become somewhat hardened, this little animal is the same throughout, in other words, it is homogeneous. The hardening of the outer portion constitutes the first process of differentiation, and therefore the first step in the order of progress.

Comparing the simplest form of life, the little carbon-sac found in the sea, with the germ from which animals and plants are derived, Haeckel says:

Originally every organic cell is only a single globule of mucus, like a Moneron, but differing from it in the fact that the homogeneous albuminous substance has separated itself into two different parts, a firmer albuminous body, the cell-kernel (nucleus), and an external, softer albuminous body, the cell-substance or body (protoplasma).³

From its body, which, when at rest, is nearly spherical, it is almost constantly casting forth certain “finger-like processes” which are as quickly

withdrawn, only to reappear on some other portion of its surface. The small particles of albuminous matter with which it comes in contact adhere to it, or are drawn into its semi-fluid body by displacement of the several albuminous particles of which it is composed, and are there digested, being “absorbed by simple diffusion.” Its only activity consists in supplying itself with nourishment, and even during this process it is said to display a negative or passive quality rather than real action. The particles absorbed that are not assimilated, are expelled through the surface of the body in the same manner as they are taken into it.

At first, we are told, our animal is only a simple cell, in fact that it is not a perfect cell, for as yet the cell-kernel or nucleus has not been separated from the cell-substance or protoplasm. When its limit of size has been reached it multiplies by self-division, or by simply breaking into parts, each part performing the same functions of nutrition and propagation as its predecessor. Later, however, when a parent cell bursts, the newly developed cells no longer separate from it, but, by cohering to it and to each other, form a cluster of nucleated cells, while around this aggregation of units is formed a wall. Still its food is absorbed. Subsequently, however, a mouth and prehensile organs for seizing its food are developed, and the divisions between the cells are converted into channels or pipes through which nourishment is conveyed to every part of the body. In process of time, limbs for locomotion appear, together with bones for levers, and muscles for moving them. Finally, a brain and a heart are evolved, and although at first the heart appears as only a simple pulsating vessel, later this animal finds itself the possessor of a perfect system of digestion, circulation, and excretion, by which food, after having been changed into blood and aërated or purified by processes carried on in the system, is pumped to every part of the body. With the formation of different chemical combinations, and the development, through increasing specialization of the various kinds of tissues, and finally of the various organs, that intimate relationship observed between the parts in homogeneous and less differentiated structures no longer exists; hence, in response to the demand for communication between the various organs, numberless threads or fibres begin to stretch themselves through the muscles, and collecting in knots or centres in the brain and spine, establish instantaneous communication between the different parts, and convey sensation and feeling throughout the entire organism.

A division of labour has now been established, and each organ, being in working order and fashioned for its own special use, performs its separate functions independently, although its activity is co-ordinated with that of all other organs in the structure.

This far in the history of life on the earth sex has not been developed, or, more correctly stated, as the two sexes have not been separated, our animal is still androgynous or hermaphrodite—the reproductive functions being confined in one and the same individual. Within this little primeval animal, the progenitor of the human race, lay not only all the possibilities which have thus far been realized by mankind, but within it were embodied also the “promise and potency” of all that progress which is yet to come, and of which man himself, in his present undeveloped state, may have only a dim foreshadowing.

From the time of the appearance of life on the earth to that of the separation of the sexes, myriads of centuries may have intervened. Only when through a division of labour these elements became detached, and the special functions of each were confided to two distinct and separate individuals, did the independent history of the female and male sexes begin.

No fact is more patent, at the present time, than that sex constitutes the underlying principle throughout nature. Although it may not be said of the simplest forms of life that sexual difference has been established, yet we are assured that among the ciliated Infusorians “male and female nuclear elements have been distinguished.” This primitive condition, however, is supposed to be rather a state antecedent to sex than a union of sexes in one organism. Among all the higher orders of life, whether animal or vegetable, the sex elements, female and male, are recognized as the two great factors in creation.

As, among all the animals in which there has been a separation of sexes, there has been established a division of labour, the consequent specialization of organs and the differentiation of parts form the true line of demarcation in the march of the two diverging columns. Doubtless in the future, when our knowledge of the history of life on the earth has become more extended, it will be found that it is only by tracing the processes of differentiation throughout the two entire lines of development that we may

hope to unravel all the mysteries bound up in the problem of sex, or to understand the fundamental differences in character and constitution caused by this early division of labour.

CHAPTER II

THE ORIGIN OF SEX DIFFERENCES

We have observed that, according to naturalists, the earliest forms of life which appeared on the earth were androgynous or hermaphrodite, that the two elements necessary for reproduction were originally confined within one and the same individual within which were carried on all the functions of reproduction. Later, however, a division of labour arose, and these two original functions became detached, after which time the reproductive processes were carried on only through the commingling of elements prepared by, or developed within, two separate and distinct individuals.

As the belief is entertained by our guides in this matter that greater differentiation, or specialization of parts, denotes higher organization, it is believed that the division of labour by which the germ is prepared by one individual and the sperm by another individual, as is the case at the present time with all the higher orders of life, constitutes an important step in the line of progress. Here this line of argument ceases, and, until very recent times, concerning the course of development followed by each sex little has been heard. This silence on a subject of such vital importance to the student of biology is not perhaps difficult to understand; the conclusion, however, is unavoidable that the individual which must nourish and protect the germ, and by processes carried on within her own body provide nourishment for the young during its prenatal existence, and sometimes for years after birth, must have the more highly specialized organism, and must, therefore, represent the higher stage of development. Indeed, it is admitted by scientists that the advance from the egg-layers to the milk-givers indicates one of the most important steps in the entire line of development; and yet the peculiar specialization of structure necessary for its accomplishment was for the most part carried on within the female organism.

Concerning the origin of sex in the individual organism little seems to be known; as a result, however, of observations on the development of the reproductive organs in the higher vertebrates, and especially in birds, it is

believed that there exists a “strict parallelism between the individual and the racial history,”—that the three main stages in the development of the chick, viz.: (1) germi-parity, (2) hermaphroditism, and (3) differentiated unisexuality, correspond to the three great steps of historic evolution.

By a careful investigation of the facts connected with the development of unisexual forms, we are enabled to discover the early beginnings of the characteristics which distinguish the two sexes throughout their entire course. We are told that with animals which have their sexes separate, in addition to strictly sexual difference

the male possesses certain organs of sense or locomotion, of which the female is quite destitute, or has them more highly developed, in order that he may readily find or reach her; or again the male has special organs of prehension for holding her securely. These latter organs, of infinitely diversified kinds, graduate into those which are commonly ranked as primary.⁴

The female, on the other hand, in addition to those sexual characters which are strictly primary, has “organs for the nourishment or protection of her young, such as the mammary glands of mammals, and the abdominal sacks of the marsupials.” In addition to these she is frequently provided with organs for the defence of the community; for instance, “the females of most bees are provided with a special apparatus for collecting and carrying pollen, and their ovipositor is modified into a sting for the defence of the larvæ and the community.” We are assured by Mr. Darwin that many similar cases could be given.⁵

Here, then, with almost the first or primary step toward sexual differentiation, may be observed the establishment of that peculiar bias which upon investigation will be seen to extend all along the two lines of sexual demarcation, and which (to anticipate the conclusions of our argument), as soon as mankind is reached, appears in the male as extreme egoism or selfishness, and in the female as altruism or care for other individuals outside of self.

We are assured, however, that it is not alone to the reproductive organs and their functions that we are to look for the chief differences in the

constitution and character of the sexes. Neither is it entirely to Natural Selection that we are to seek for the causes which underlie the specialization peculiar to the two diverging lines of sexual demarcation; in addition to primary sexual divergences, there are also “secondary sexual characters” which are of great importance to their possessor. Indeed, from the prominence given to Sexual Selection by Mr. Darwin, it would seem that it played a part in the development of males quite equal to that of Natural Selection itself.

Now the difference between Natural Selection and Sexual Selection is that, whereas, in the former, characters are developed and preserved which are of use to the individual in overcoming the unfavourable conditions of environment, by the latter, only those characters are acquired and preserved which assist the individual in overcoming the obstacles to reproduction; or, to use Mr. Darwin’s own language:

[Sexual Selection] depends on the advantage which certain individuals have over others of the same sex and species solely in respect of reproduction.... [Where] the males have acquired their present structure, not from being better fitted to survive in the struggle of existence, but from having gained an advantage over other males, and from having transmitted this advantage to their male offspring alone, sexual selection must here have come into action.... A slight degree of variability leading to some advantage, however slight, in reiterated deadly contests would suffice for the work of sexual selection; and it is certain that secondary sexual characters are eminently variable. Just as man can give beauty, according to his standard of taste, to his male poultry, or more strictly can modify the beauty originally acquired by the parent species, can give to the Sebright bantam a new and elegant plumage, an erect and peculiar carriage—so it appears the female birds in a state of nature, have by a long selection of the more attractive males, added to their beauty or other attractive qualities.⁶

Thus, according to Mr. Darwin, it is through a long selection by females of the more attractive males that the present structure of the latter has been acquired. If, in a short time, a man can give elegant carriage and beauty to his bantams, according to his standard of beauty, he can see no reason to

doubt that female birds, by selecting during thousands of generations the most melodious or beautiful males, according to their standard of beauty, might produce a marked effect. He says:

To sum up on the means through which, as far as we can judge, sexual selection has led to the development of secondary sexual characters. It has been shown that the largest number of vigorous offspring will be reared from the pairing of the strongest and best armed males, victorious in contests over other males, with the most vigorous and best-nourished females, which are the first to breed in the spring. If such females select the more attractive, and at the same time vigorous males, they will rear a larger number of offspring than the retarded females, which must pair with the less vigorous and less attractive males.... The advantage thus gained by the more vigorous pairs in rearing a larger number of offspring has apparently sufficed to render sexual selection efficient.⁷

Although the belief is common among naturalists that the appearance of secondary sexual characters belonging to males is greatly influenced by female choice, a majority of writers upon this subject are not in sympathy with Mr. Darwin's theory concerning the origin of these variations. It is believed by them that Sexual Selection "may account for the perfecting, but not for the origin, of these characters."

It is useless, however, to rehearse the opinions of the various writers who have dealt with this subject. It is perhaps sufficient to state that the great beauty of males has usually been accepted as evidence of their superiority over the females.

In his chapter, "The Male generally more Modified than the Female," Mr. Darwin remarks: "Appearances would indicate that not the male which is most attractive to the female is chosen, but the one which is least distasteful." He says that the aversion of female birds for certain males renders the season of courtship one of great anxiety and discomfiture, not only to many of the more poorly endowed aspirants, but to those also which are more magnificently attired—that the pairing ground becomes a field of battle, upon which, while parading their charms to the best advantage, is sacrificed much of the gorgeous plumage of the contestants. On the wooing

ground are displayed for the admiration and approval of the females, all the physical attractions of the males, as well as the mental characters correlated with them, namely, courage, and pugnacity or perseverance. According to Mr. Darwin, with the exception of vanity, no other quality is in any considerable degree manifested by male birds, but to such an extent has love of display been developed in many of them, notably the pea-fowl, that, “in the absence of females of his own species, he will show off his finery before poultry and even pigs.” We are assured that the higher we ascend in the animal kingdom the more frequent and more violent become two desires in the male: “the desire of appearing beautiful, and that of driving away rivals.” According to Mr. Darwin’s theory of development, because of the indifference of the female among the lower orders of life to the processes of courtship, it has been necessary for the male to expend much energy or vital force in searching for her—in contending with his rivals for possession of her person, and in performing various acts to please her and secure her favours. While excessive eagerness in courtship is the one all-absorbing character of male fishes, birds, and mammals, we are assured that with the females, pairing is not only a matter of indifference, but that courtship is actually distasteful to them, and, therefore, that the former must resort to the various means referred to in order to induce the latter to submit to their advances.

We are informed that the female is sometimes charmed through the power of song; that at other times she is captivated by the diversified means which have been acquired by male insects and birds for producing various sounds resembling those proceeding from certain kinds of musical instruments; and not unfrequently she is won by means of antics or love dances performed on the ground or in the air. On the pairing-ground, combs, wattles, elongated plumes, top-knots, and fancy-coloured feathers are paraded for the admiration and approval of the females. Led by the all-absorbing instinct of desire,

the males display their charms with elaborate care and to the best effect; and this is done in the presence of the females.... To suppose that the females do not appreciate the beauty of the males, is to admit that their splendid decorations, and all their pomp and display, are useless; and this is incredible.⁸

Topknots, gaudy feathers, elongated plumes among birds, huge tusks, horns, etc., among mammals, the mane of the lion, and the beard of man, may be noticed among the many characters which have been acquired through Sexual Selection.

Although the immense teeth, tusks, horns, and various other weapons or appendages which ornament the males of many species of mammals, have all been developed through Sexual Selection for contending with their rivals for the favours of the females, it is observed that the “most pugnacious and best armed males seldom depend for success on their ability to drive away or kill their rivals,” but that their special aim is to “charm the female.” Mr. Darwin quotes from a “good observer,” who believes that the battles of male birds “are all a sham, performed to show themselves to the greatest advantage before the admiring females who assemble around.”⁹

In *The Descent of Man* is quoted the following from Mr. Belt, who, after describing the beauty of the *Florisuga mellivora*, says:

I have seen the female sitting on a branch, and two males displaying their charms in front of her. One would shoot up like a rocket, then suddenly expanding the snow-white tail, like an inverted parachute, slowly descend in front of her, turning round gradually to show off back and front.... The expanded white tail covered more space than all the rest of the bird, and was evidently the grand feature in the performance. Whilst one male was descending, the other would shoot up and come slowly down expanded. The entertainment would end in a fight between the two performers; but whether the most beautiful or the most pugnacious was the accepted suitor, I know not.¹⁰

Audubon, who spent a long life in observing birds, has no doubt that the female deliberately chooses her mate. Of the woodpecker he says the hen is followed by half a dozen suitors, who continue performing strange antics “until a marked preference is shown for one.” Of the red-winged starling it is said that she is pursued by several males “until, becoming fatigued, she alights, receives their addresses, and soon makes a choice.”¹¹ Mr. Darwin quotes further from Audubon, who says that among the Virginia goat-suckers, no sooner has the female “made her choice than her approved gives chase to all intruders, and drives them beyond his dominions.”

It is said that among mammals the male depends almost entirely upon his strength and courage to “charm the female.” With reference to the struggles between animals for the possession of the females, Mr. Darwin says:

This fact is so notorious that it would be superfluous to give instances. Hence the females have the opportunity of selecting one out of several males, on the supposition that their mental capacity suffices for the exertion of a choice.^{[12](#)}

We are assured that among nearly all the lower orders of life the female exhibits a marked preference for certain individuals, and that an equal degree of repugnance is manifested towards others, but that the male, whose predominant character is desire, “is ready to pair with any female.” On this subject Mr. Darwin remarks: “The general impression seems to be that the male accepts any female.” He says it frequently occurs that while two males are fighting together to win the favours of a female, she goes away with a third for whom she has a preference. Mr. Darwin quotes from Captain Bryant, who says of a certain species of seals:

Many of the females on their arrival at the island where they breed, appear desirous of returning to some particular male, and frequently climb the outlying rock to overlook the rookeries, calling out and listening as if for a familiar voice. Then changing to another place they do the same again.^{[13](#)}

Little seems to be known of the courtship of animals in a state of nature. Among domesticated species, however, many observations have been made by breeders going to prove that the female exerts a choice in pairing. Concerning dogs, Mr. Darwin quotes from Mr. Mayhew, who says: “The females are able to bestow their affections; and tender recollections are as potent over them as they are known to be in other cases where higher animals are concerned.” Of the affection of female dogs for certain males the same writer says it “becomes of more than romantic endurance,” that they manifest a “devotion which no time can afterwards subdue.”

On concluding his chapter on choice in pairing among quadrupeds, Mr. Darwin remarks:

It is improbable that the unions of quadrupeds in a state of nature should be left to mere chance. It is much more probable that the females are allured or excited by particular males, who possess certain characters in a higher degree than other males.¹⁴

As the female among birds selects her partner, he thinks it would be a strange anomaly if among quadrupeds, which stand higher in the scale and have higher mental powers, she did not also exert a choice.¹⁵

Because of the indifference of the female to the attentions of the male, in order to carry on the processes of reproduction, it was necessary among the lower orders that the male become eager in his pursuit of her, and as a result of this eagerness excessive passion was developed in him. As the most eager would be the most successful in propagating, they would leave the greatest number of offspring to inherit their characters—namely, in males, passion and pugnacity correlated with the physical qualities acquired through Sexual Selection.

On the subject of the acquirement of secondary sexual characters, Mr. Darwin says: “The great eagerness of the males has thus indirectly led to their much more frequently developing secondary sexual characters.” Indeed, by all naturalists, the fact is recognized that the appearance of these characters is closely connected with the reproductive function.

Later experiments have confirmed the observations of Mr. Darwin concerning the intelligence of the female among the lower orders of life. Among these experiments are those recently made by Professor Harper, of the Department of Biology, in the Northwestern University. Professor Harper announces that in all the experiments conducted by him, the female animal showed a greater degree of perception, or intelligence, than the male. He says: “In all my experiments, I found that the female displayed a remarkable quickness in grasping ideas which the male after numerous sluggish efforts finally accomplished.” Professor Harper declared that these facts regarding animals apply with equal force to human beings.

Regarding the power of the female to appreciate the beauty of the males, Mr. Darwin says:

No doubt this implies powers of discrimination and taste on the part of the female which will at first appear extremely improbable; but by the facts to be adduced hereafter, I hope to be able to show that the females actually have these powers.¹⁶

In commenting on the fact that the female Argus pheasant appreciates the exquisite shading of the ball-and-socket ornaments, and the elegant patterns on the wing-feathers of the male, Mr. Darwin writes:

He who thinks that the male was created as he now exists, must admit that the great plumes which prevent the wings from being used for flight, and which are displayed at courtship and at no other time, in a manner quite peculiar to this species, were given to him as ornaments. If so he must likewise admit that the female was created and endowed with the capacity for appreciating such ornaments. Every one who admits the principle of evolution, and yet feels great difficulty in believing the high taste implied by the beauty of the males, and which generally coincides with our own standard, should reflect that the nerve cells of the brain in the highest as in the lowest members of the vertebrate series are derived from those of the common progenitor of this great kingdom.

In referring to the remarkable patterns displayed on the male Argus pheasant, designs which have been developed through Sexual Selection, Mr. Darwin says:

Many will declare that it is utterly incredible that a female bird should be able to appreciate fine shading and exquisite patterns. It is undoubtedly a marvellous fact that she should possess this almost human degree of taste. He who thinks that he can safely gauge the discrimination and taste of the lower animals may deny that the female Argus pheasant can appreciate such refined beauty; but he will then be compelled to admit that the extraordinary attitudes assumed by the male during the act of courtship, by which the wonderful beauty of his plumage is fully displayed, are purposeless; and this is a conclusion which I, for one, will never admit.¹⁷

Here, then, in the female bird we see developed in a remarkable degree the power of discrimination, the exercise of taste, a sense of beauty, and the ability to choose—qualities which the facts brought forward by scientists show conclusively to have been acquired by the female and by her transmitted to her offspring. Regarding males, outside the instinct for self-preservation, which, by the way, is often overshadowed by their great sexual eagerness, no distinguishing characters have been acquired and transmitted, other than those which have been the result of passion, namely, pugnacity and perseverance. This excessive eagerness which prompts them to parade their charms whenever such display is likely to aid them in the gratification of their desires is developed only in the male line.

According to the law of heredity, those modifications of the male which have been the result of Sexual Selection appear only in the sex in which they originated. It will be well for us to remember that according to Mr. Darwin's theory of pangenesis, sexes do not differ much in constitution before the power of reproduction is reached, but that after this time the undeveloped atoms or

gemmules which are cast off from each varying part in the one sex would be much more likely to possess the proper affinities for uniting with the tissues of the same sex, and thus becoming developed, than with those of the opposite sex.^{[18](#)}

We are given to understand that secondary sexual characters are extremely variable, also that variability denotes low organization; secondary sexual characters indicate that the various organs of the structure have not become specialized for the performance of their legitimate functions. Highly specialized forms are not variable.

To sum up the argument thus far: It has been observed that through the separation of the sexes, and the consequent division of labour, there have been established two diverging lines of development. While the male pheasant has been inheriting from his male progenitors fantastic ball-and-socket ornaments, and huge wings which are utterly useless for their legitimate purpose, the female, in the meantime, has been receiving as her inheritance only those peculiarities of structure which tend toward uninterrupted development. Within her have been stored or conserved all

the gain which has been effected through Natural Selection, and as a result of greater specialization of parts, there have been developed certain peculiarities in her brain nerve-cells, by which she is enabled to exercise functions requiring a considerable degree of intelligence.

Although this power of choice, which we are given to understand is exercised by the female throughout the various departments of the vertebrate kingdom (evidences of it having been observed among creatures even as low in the organic scale as fishes), implies a degree of intelligence far in advance of that manifested by males, it is admitted that the qualities which bespeak this superiority, namely, the power to exercise taste and discrimination, constitute a “law almost as general as the eagerness of the male.”¹⁹

We are assured by Mr. Darwin that in the economy of nature those ornaments of the male Argus pheasant which serve no other purpose than to please the female and secure her favours, and which have been acquired at great expense of vital force, are of the “highest importance to him,” and that his success in captivating the female “has more than compensated him for his greatly impeded power of flight and his lessened capacity for running.” Yet it is plain that his compensation for this immense expenditure of vital force has not lain in the direction of higher specialization, but that while by the acquirement of these characters the processes of reproduction have doubtless been aided, the injury to the male constitution has been deep and lasting.

Upon this subject Mr. Darwin himself says:

The development, however, of certain structures—of the horns, for instance, in certain stags—has been carried to a wonderful extreme; and in some cases to an extreme which, as far as the general conditions of life are concerned, must be slightly injurious to the male.²⁰

He thinks, however, that

Natural Selection will determine that such characters shall not be acquired by the victorious males if they would be highly injurious,

either by expending too much of their vital powers or by exposing them to any great danger.

According to Mr. Darwin, as these characters enable them to leave a more numerous progeny, their advantages are in the long run greater than those derived from more perfect adaptation to their conditions of life. It is plain, however, that this advantage, although it enables them to gratify their desires, and at the same time to perpetuate their species, does not imply higher development for the male organism.

We have been assured by our guides in these matters that in the processes of evolution there is no continuous or unbroken chain of progress, that growth or change does not necessarily imply development, but, on the contrary, only as a structure becomes better fitted for its conditions, and only as its organs become more highly specialized for the performance of all the duties involved in its environment, may it be said to be in the line of progress. If this be true, particular attention should be directed to the fact that as secondary sexual characters do not assist their possessor in overcoming the unfavourable conditions of his environment, they are not within the line of true development, but, on the contrary, as their growth requires a great expenditure of vital force, and, as is the case among birds, they often hinder the free use of the legs in running and walking, and entirely destroy the use of the wings for flight, they must be detrimental to the entire structure. For the reason that females have managed to do without them, the plea that the great tusks, horns, teeth, etc., of mammals have been acquired for self-defence, is scarcely tenable.

On the subject of the relative expenditure of vital force in the two lines of sexual demarcation, Mr. Darwin remarks:

The female has to expend much organic matter in the formation of her ova, whereas the male expends much force in fierce contests with his rivals, in wandering about in search of the female, in exerting his voice, pouring out odoriferous secretions, etc.... In mankind, and even as low down in the organic scale as in the Lepidoptera, the temperature of the body is higher in the male than in the female, accompanied in the case of man by a slower pulse.[21]

Yet he concludes: “On the whole the expenditure of matter and force by the two sexes is probably nearly equal, though effected in very different ways and at different rates.”²¹

However, as has been observed, the force expended by the male in fierce contests with his rivals, in wandering about in search of the female, and in his exertions to please her when found, does not constitute the only outlay of vitality to which he is subjected; but in addition to all this, there still remains to be considered that force which has been expended in the acquirement of characters which, so far as his own development is concerned, are useless and worse than useless; namely, in birds, combs, wattles, elongated plumes, great wings, etc., and in mammals great horns, tusks, and teeth—appendages which lie outside the line of true development, and, as we have seen, are of no avail except to aid in the processes of reproduction and to assist him in the gratification of his desires; in fact, as these excrescences hinder him in the performance of the ordinary functions of life, they may be regarded in the light of actual hindrances to higher development.

CHAPTER III

MALE ORGANIC DEFECTS

We have observed that through the great sexual ardour developed at puberty within the male of the lower species, numberless variations of structure have been acquired, characters which, as they are the result of undeveloped atoms cast off from the varying parts in his progenitors, denote low organization. We have seen also that these characters require for their growth an immense amount of vital force, which, had the development of the male been normal, would have been expended in perfecting the organism, or would have been utilized in fitting it to overcome the adverse conditions of his environment. Secondary sexual characters, being so far as males are concerned, wholly the result of eagerness in courtship, cannot appear before the time for reproduction arrives, and as it is a law of heredity that peculiarities of structure which are developed late in life, when transmitted to offspring, appear only in the sex in which they originated, these variations of structure are confined to males.

According to Mr. Darwin's theory little difference exists between the sexes until the age of reproduction arrives. It is at this time, the time when the secondary sexual characters begin to assert themselves, that the preponderating superiority of the male begins to manifest itself.

Although, according to Mr. Darwin, variability denotes low organization and shows that the various organs of the body have not become specialized to perform properly their legitimate functions, it is to characters correlated with and dependent upon these varying parts that the male has ultimately become superior to the female. If these characters, namely, pugnacity, perseverance, and courage have been such important factors in establishing male superiority, too much care may not be exercised in analyzing them and in tracing their origin and subsequent development.

Sexual Selection resembles artificial selection save that the female takes the part of the human breeder. She represents the intelligent factor or cause

in the operations involved. If this be true, if it is through her will, or through some agency or tendency latent in her constitution that Sexual Selection comes into play, then she is the primary cause of the very characters through which man's superiority over woman has been gained. As a stream may not rise higher than its source, or as the creature may not surpass its creator in excellence, it is difficult to understand the processes by which man, through Sexual Selection, has become superior to woman.

He who admits the principle of Sexual Selection will be led to the remarkable conclusion that the nervous system not only regulates most of the existing functions of the body, but has indirectly influenced the progressive development of various bodily structures and certain mental qualities. Courage, pugnacity, perseverance, strength and size of body, weapons of all kinds, musical organs, both vocal and instrumental, bright colours, and ornamental appendages have all been indirectly gained by the one sex or the other, through the exertion of choice, the influence of love and jealousy, and the appreciation of the beautiful in sound, colour, or form; and these powers of the mind manifestly depend on the development of the brain.^{[22](#)}

While the female has been performing the higher functions in the processes of reproduction, through her force of will, or through her power of choice, she has also been the directing and controlling agency in the development of those characters in the male through which, when the human species was reached, he was enabled to attain a limited degree of progress.

Since the origin of secondary sexual characters is so clearly manifest, perhaps it will be well for us at this point to examine also their actual significance, that we may be enabled to note the foundation upon which the dogma of male superiority rests.

Although the gay colouring of male birds and fishes has usually been regarded as an indication of their superiority over their sombre-coloured mates, later investigations are proving that these pigments represent simply unspecialized material, and an effort of the system to cast out the waste products which have accumulated as a result of excessive ardour in courtship. The same is true of combs, wattles, and other skin excrescences;

they show a feverish condition of the skin in the over-excited males, whose temperature is usually much higher than is that of females. We are assured that the skin eruptions of male fishes at the spawning season “seem more pathological than decorative.”²³ In the processes of reproduction, the undeveloped atoms given off from each varying part are reproduced only in the male line.

The beautiful colouring of male birds and fishes, and the various appendages acquired by males throughout the various orders below man, and which, so far as they themselves are concerned, serve no other useful purpose than to aid them in securing the favours of the females, have by the latter been turned to account in the processes of reproduction. The female made the male beautiful that she might endure his caresses.

From the facts elaborated by our guides in this matter, it would seem that the female is the primary unit of creation, and that the male functions are simply supplemental or complementary. Parthenogenesis among many of the lower forms of life would seem to favour this view. We are given to understand that under conditions favouring katabolism, the males among Rotifera wear themselves out, under which conditions the females become katabolic enough to do without them.

Among the common Rotifera, the males are almost always very different from the females, and much smaller. Sometimes they seem to have dwindled out of existence altogether, for only the females are known. In other cases, though present, they entirely fail to accomplish their proper function of fertilization, and, as parthenogenesis obtains, are not only minute, but useless.²⁴

So long as food is plentiful, the females continue to raise parthenogenetic offspring, but with the advent of hard times, when food is scarce or of a poor quality, the parthenogenetic series is interrupted by the appearance of males. Although, unaided by the male, the female of certain species is able to reproduce, he has never been able to propagate without her co-operation.

Concerning the conditions which underlie the production of females and males we have the following from *The Evolution of Sex*, by Geddes and Thomson:

Such conditions as deficient or abnormal food, high temperature, deficient light, moisture, and the like, are obviously such as would tend to induce a preponderance of waste over repair—a katabolic habit of body,—and these conditions tend to result in the production of males. Similarly, the opposed set of factors, such as abundant and rich nutrition, abundant light and moisture, favour constructive processes, *i.e.*, make for an anabolic habit, and these conditions result in the production of females.^{[25](#)}

Among the lower orders of animal life, notably insects, we are assured that an excess of females denotes an excess of formative force, and that an excess of males indicates a deficiency on the part of the parents. In the case of bees, the queen, which is the highest development, is produced only under the best circumstances of nutrition, while the birth of the drone, which is the lowest result of propagation, is preceded by extremely low conditions.

The working bee which, being an imperfect female, may not be impregnated, will, however, give birth to parthenogenetic offspring, such offspring always being male. In the case of Aphides, the sex depends on the conditions of nutrition. During the summer months while food is plentiful and nutritious, females are parthenogenetically produced, but with the return of autumn and the attendant scarcity of food, together with the low temperature, only males are brought forth. In seasons in which food is abundant, Cladocera and Aphides lose the power to copulate; they nevertheless multiply parthenogenetically at a marvellous rate of increase,

giving birth to generation after generation of parthenogenetic females, so long as the environment remains favourable, but giving birth, as soon as the conditions of life become less favourable, to males and to females which require fertilization.^{[26](#)}

It is stated also that if caterpillars are shut up and starved before entering the chrysalis stage, the butterflies which make their appearance are males, while the highly nourished caterpillars are sure to come out females. In the case of moths unnutritious food produces only males.

Experiments show that when tadpoles are left to themselves the average number of females is about fifty-seven in the hundred, but that under favourable conditions the percentage of females is greatly increased. The following is the result of one series of observations by Yung. In the first brood, by feeding one set with beef, the percentage of females was raised from fifty-four to seventy-eight; in the second, with fish, the percentage rose from sixty-one to eighty-one, which in the third set, when the nutritious flesh of frogs was supplied, only eight males were produced to ninety-two females.²⁷

It is stated that although scarcity of food is an important factor in determining the appearance of males, temperature also plays an important part in their production. Kurg having found a few males in midsummer in pools which were nearly dried up was induced to attempt their artificial production. So successful was he, that “he obtained the males of forty species, in all of which the males had previously been unknown.” He proved that

any unfavourable change in the water causes the production of males, which appear as it dries up, as its chemical constitution changes, when it acquires an unfavourable temperature, or, in general, when there is a decrease in prosperity.

From which observations and many others quoted from Düring, Professor Brooks concludes that “among animals and plants, as well as in mankind, a favourable environment causes an excess of female births, and an unfavourable environment an excess of male births.”²⁸ According to Rolph, also, the percentage of females increases with the increase of favourable conditions of temperature and food.

Among insects the males appear first, thus showing that less time is required to develop them from the larval state. Of this Mr. Darwin says: “Throughout the great class of insects the males almost always are the first to emerge from the pupal state, so that they generally abound for a time before any female can be seen.”²⁹

Recent observations show that among the human species nutrition plays a significant part in determining sex. Statistics prove that in towns and in

well-to-do families there is a preponderance of girls, while in the country, and among the poor, more boys are born; also, that immediately following epidemics, wars, and famines, there is an excess of male births. On examination, it was found that in Saxony “the ratio of boy-births rose and fell with the price of food, and that the variation was most marked in the country.”³⁰

That the female represents a higher development than the male is proved throughout all the various departments of nature. Among plants, staminate flowers open before pistillate, and are much more abundant, and less differentiated from the leaves, showing that they are less developed, and that slighter effort, a less expenditure of force, is necessary to form the male than the female. A male flower represents an intermediate stage between a leaf and a perfect, or we might say, a female flower, and the germ which produces the male would, in a higher stage, produce the female.³¹ In reference to the subject of the relative positions of the female and male flowers in the Sedges, Mr. Meehan observes:

In some cases the spike of the male flowers terminates the scape; in others the male flowers occupy the lower place; in others, again they have various places on the same spike. It will be generally noted that this is associated together with lines of nutrition,—those evidently favoured by comparative abundance sustaining the female flowers.

To this Mr. Meehan adds:

And this is indeed a natural consequence, for, as vitality exists so much longer in the female than the male flowers, which generally die when the pollen has matured, it is essential that they should have every advantage in this respect.³²

The most perfect and vigorous specimens of coniferous trees are of the female kind. In its highest and most luxuriant stage the larch bears only female blossoms, but so soon as its vigour is lost male flowers appear, after which death soon ensues.

In *The Evolution of Sex*, by Geddes and Thomson, is the following:

In phraseology which will presently become more intelligible and concrete, the males live at a loss, are more katabolic,—disruptive changes tending to preponderate in the sum of changes in their living matter or protoplasm. The females, on the other hand, live at a profit, are more anabolic,—constructive processes predominating in their life, whence indeed the capacity of bearing offspring.³³

Among the lower orders of animals, there appears an excess of males, and among the higher forms of life, man included, the fact that the male is the result of the cruder, less developed germ, has been clearly shown, not alone by the facts brought forward by Mr. Darwin, but by those enunciated by all reliable writers on this subject. As a result of the excessive eagerness in males, and the consequent expenditure of vital force among the lower orders of life to find the female and secure her favours, they are generally smaller in size, with a higher body temperature and shorter life. Among the higher orders, the human species, for instance, although man is larger than woman, he is still shorter lived, has less endurance, is more predisposed to organic diseases, and is more given to reversion to former types, facts which show that his greater size is not the result of higher development. It is noted that the liability to assume characters proper to lower orders belongs in a marked degree to males of all the higher species—man included.

Doubtless man's greater size (a modification which has been acquired through Sexual Selection) has been of considerable value to him in the struggle for existence to which he has been subjected, but the indications are already strong that after a certain stage of progress has been reached, even this modification of structure will prove useless, if not an actual hindrance to him. On mechanical principles, every increase of size requires more than a corresponding increase of strength and endurance to balance the activities and carry on the vital processes, yet such have been the conditions of man's development, that his excess of strength does not compensate for his greater size and weight, while his powers of endurance fall below those of women.

Although the conditions of the past have required a vast expenditure of physical energy, the activities of the future will make no such demand. Nature's forces directed by the human will and intellect are already lessening the necessity for an excessive outlay of bodily strength. It may be

truly said that electricity and the innumerable mechanical devices now in use have well nigh supplanted the necessity for great physical exertion. Even war, should it be continued, which is not likely, will be conducted without it. Destructive weapons based upon high-power explosives require little physical effort for their manipulation. The pugilist represents the departing glory of male physical strength.

We are informed by Mr. Darwin that by a vast number of measurements taken of various parts of the human body in different races, during his Novara Expedition, it was found that the men in almost every case presented a greater range of variations than women, and, as Mr. Wood has carefully attended to the variations of the muscles of man, Mr. Darwin quotes from him that “the greatest number of abnormalities in each subject is found in males.” He adduces also the testimony of several others who have practically investigated this subject, all of whom agree in their statements that variations in the muscles are more frequent in males than in females. These variations usually consist in a reversion to lower types—a reversion in which muscles proper to lower forms of life make their appearance.

In an examination of forty male subjects, there was in nineteen of them a rudimentary muscle found which is designated as the ischio-pubic, and in three others of the forty was observed a ligament which represents this muscle; but, in an examination by the same person of thirty female subjects, in only two of them was this muscle developed on both sides, whilst in three others the rudimentary ligament was present. Thus while we observe that about fifty-five per cent. of the males examined were possessed of muscles proper to lower orders, in only about seventeen per cent. of the females under observation did this reversion appear. In a single male subject, seven muscular variations proper to apes were indicated.

Numberless cases might be cited in which reversions and abnormalities have been developed only in the male line. Of the porcupine men of the Lambert family who lived in London last century, Haeckel says:

Edward Lambert, born in 1717, was remarkable for a most unusual and monstrous formation of the skin. His whole body was covered with a horny substance, about an inch thick, which rose in the form of

numerous thorn-shaped and scale-like processes, more than an inch long. This monstrous formation on the outer skin, or epidermis, was transmitted by Lambert to his sons and grandsons, but not to his granddaughters.³⁴

According to the testimony of those who have made a study of the various abnormalities in the human organism, the ears of men present a greater range of variations than do those of women, and the cases in which supernumerary digits appear in males are as two to one, compared with females presenting the same structural defect. Of one hundred and fifty-two cases of this kind tabulated by Burt Wilder, eighty-six were males and thirty-nine females, the sex of the remaining twenty-seven being unknown. Mr. Darwin wishes us to remember, however, that “women would more frequently endeavour to conceal a deformity of this kind than men.” Although it is quite natural for women to abhor abnormalities and deformities, it is to be doubted if they would succeed for any considerable length of time in concealing the deformity of an organ which, like the hand, is usually uncovered, and which in waking hours, is in almost constant use.

One of the principal characters which distinguishes the human animal from the lower orders is the absence of a natural covering for the skin. That mankind have descended from hair-covered progenitors is the inevitable conclusion of all those who accept the theory of the evolution of species, the straggling hairs which are scattered over the body of man being the rudiments of a uniform hairy coat which enveloped his ancestors.

We are informed that a hairy covering for the body, pointed ears which were capable of movement, and a tail provided with the proper muscles, were among the undoubted characters of the antecedents of the human race. In addition to these, among the males, were developed great canine teeth which were used as weapons against their rivals.

As the lack of a hairy coat for the body constitutes one of the principal characteristics which distinguishes man from the lower animals, it would seem that a knowledge of the order of time in which the two sexes became divested of their natural covering would serve as a hint to indicate their relative stages of development. In a paper read some years ago at a meeting of the Anthropological Institute in London, Miss Bird (Mrs. Bishop) the

well-known traveller, gave a description of the Ainos, a race of people found chiefly in the island of Yezo, and who, it is thought probable, were the original inhabitants of Japan. The peculiarity of this people is, that the men are covered with a thick coat of black hair. The women, we are told, “are not hairy like the men,” but “have soft brown skins.” Upon this subject of hairiness, Mr. Darwin says:

As the body of woman is less hairy than that of man, and as this character is common to all races, we may conclude that it was our female semi-human ancestors who were first divested of hair, and that this occurred at an extremely remote period before the several races had diverged from a common stock.

After our female ancestors had acquired the new character, nudity, they must have transmitted it to their own sex, and by continually selecting their mates from among the least hairy, in process of time males too would become divested of their animal covering. Whether or not our semi-human ancestors were subjected to the scorching heat of the torrid zone, nudity must have been better suited to their improved condition, not wholly, however, because of its greater beauty and comfort, but because it was a condition better suited to cleanliness; and, as the hairy coat had become a useless appendage, or was not necessary to their changed conditions, it disappeared from the bodies of females, while doubtless for ages it was retained upon the bodies of males. That hairiness denotes a low stage of development, Mr. Darwin incautiously admits, yet in dealing with this subject he is not disposed to carry his admission to its legitimate conclusion by treating its appearance on the body of man as a test in determining the comparative development of the female and male organisms.

Idiots, who, by the way, are more numerous among males than among females, are frequently covered with hair, and by the acquirement of other characters more often revert to lower animal types. Mr. Darwin assures us that around sores of long standing stiff hairs are liable to appear, thus showing that hair on the body is indicative of undeveloped tissues and low constitutional conditions. The same writer, however, does not neglect to inform us that the loss of man’s hairy covering was rather an injury to him than otherwise; but whether or not the diminution in the quality of

prehension in his toes, the loss of his canines, and the disappearance of his tail have likewise proved detrimental to him, Mr. Darwin fails to state.

The fact that throughout the vertebrate kingdom males possess rudiments of the various parts appertaining to the reproductive system which properly belong to females, is regarded as evidence that some remote progenitor of this kingdom must have been hermaphrodite, or androgynous, especially as it has been ascertained that at a very early embryonic period both sexes possess true male and female glands. As high in the scale of life as the mammalian class, males are said to possess rudiments of a uterus, while at the same time mammary glands are plainly manifest; which fact would seem to show that in the high state of development indicated by this great class, male organs have not through the processes of differentiation become specialized for the performance of their legitimate functions. In reference to the subject of atavism Mr. Darwin cites as a case of reversion to a former type, an instance in which a man was the possessor of two pairs of mammæ.

It is true that instances have been observed in which characters peculiar to males have been developed in females. This phenomenon, however, seldom appears among individuals of the higher orders, and among the lower forms of life where it occurs, it is always manifested under low circumstances of nutrition or in cases of old age, disease, or loss of vitality. Instances are cited in which hens, after they have become old or diseased, have taken on characters peculiar to males.

In all “old-settled” countries women are in excess of men, and this is true, notwithstanding the fact that more boys are born than girls. Regarding the excess of the male over female births, Mr. Darwin quotes from Professor Faye, who says:

A still greater preponderance of males would be met with, if death struck both sexes in equal proportion in the womb and during birth. But the fact is, that for every one hundred still-born females, we have in several countries from 134.6 to 144.9 still-born males.^{[35](#)}

Statistics show that during the first four or five years of life, more male children die than female.

Although whenever throughout Mr. Darwin's *Descent of Man* he has been pleased to deal with the subject of structural variations, he has given us to understand that they are injurious to the constitution, and although he has shown that their appearance is much more frequent in men than in women, yet he does not seem to realize whither his admissions are leading him. He has proved by seemingly well-established facts that the female organism is freer from imperfections than the male, and therefore that it is less liable to derangements; also, that being more highly specialized, it is less susceptible to injury under unfavourable conditions; yet, in attempting to explain the reason why so many more male than female infants succumb to the exigencies of birth, he expresses the opinion that the size of the body and "especially of the head" being greater in males, they would be "more liable to be injured during parturition."

Among the reasons urged by Mr. Darwin to account for the excess of women over men in all "old-settled" countries, is that of the exposure of grown men to various dangers, and their tendency to emigrate. Doubtless there is more emigration among men than among women, still men do not usually emigrate to a wilderness and rarely to sparsely settled countries. When men emigrate from one civilized country, they usually go to another civilized country; yet in all old-settled countries women are in excess of men. While the dangers to which men are exposed because of their greater physical activity have been many, and the accidents liable to occur from their harder struggle for existence more numerous than those to which women have been subjected, still it would seem that the danger to female life, incident to the artificial relations of the sexes under our present semi-civilized conditions, is more than an offset for that to which men are liable.

The fact must be borne in mind, however, that the diseases and physical disabilities of women, at the present time, although dangerous to health and life, are not organic, and will therefore disappear as soon as through higher conditions they are allowed the free expression of their own will in matters pertaining to the sexual relation. As the diseases peculiar to the female constitution are not caused by structural defects, but, on the contrary, are due to the overstimulation of the animal instincts in her male mate, or, to the disparity between her stage of development and his, they have not materially injured her constitution nor shortened her average duration of life, neither have they lessened her capacity for improvement.

With reference to the women of Greenland, Cranz says that while they

remain with their parents they are well off; but from twenty years of age till death, their life is one series of anxieties, wretchedness, and toil, yet, in spite of all their cares, toils, and vexations the women commonly arrive at a greater age than the men.^{[36](#)}

That the imperfections of the male organism are already beginning to interpose themselves between man and many of the occupations and activities of advancing civilization, is only too apparent.

Sight, far more than any other sense, is the most intellectual, yet in the development of the visual organs it has been proved that men are especially deficient. Dr. Andrew Willson assures us that “colour-blindness is a condition which is certainly capable of transmission to the progeny. In one family the males alone were affected through seven generations.”

In an examination which was carried on some years ago under the supervision of Dr. Jeffries, among the pupils of the Boston schools, in which were 14,469 boys and young men, and 13,458 girls and young women, it was found that about one male in every twenty-five was colour-blind, while the same defect among the girls and young women was extremely rare, only 0.066 per cent. of them being thus affected.^{[37](#)}

At a convention held in the city of Chicago for the purpose of organizing an association for educational reform, the teacher of drawing in the St. Paul schools made a statement that “four per cent. of all male pupils were colour-blind, while only one-tenth of one per cent. of female pupils were so affected.” No explanation was offered for this strange fact; indeed, it was pronounced a mystery, “even oculists and surgeons having given it up as impenetrable.”

That defective vision is beginning to interfere with the activities of men, is shown by the fact that in many instances, in later times, colour tests have been required to determine fitness of applicants for positions in various departments of commercial enterprise. In this country, during the last fifty years, much attention has been given to the subject of visual defects in seamen, railroadmen, and other persons occupying positions of

responsibility in which unimpaired vision is an important qualification. In response to a request sent by the German Government through its minister to the Surgeon-General of the United States Army, for statistical and other information on the subject of colour-blindness, Mr. Charles E. Pugh, General Manager of the Pennsylvania Railroad, in September, 1884, sent to William Thomson, M.D., surgical expert for the same company, the following statement:

Total number examined on lines east of Erie	25,158
Colour-blind	481
Defective vision	661

Of this report Dr. Thomson says:

The apparently small percentage of colour-blind in this table may be ascribed to the non-application of men who knew their deficiency, and to the fact that men in the service, knowing their defect, would leave the road before examination, and thus escape detection, and be enabled to gain employment on other roads where no examinations are required.^{[38](#)}

In several departments of the national government, attempts have been made to guard against the dangers resulting from imperfect sight. In the examination of recruits, the War Department at Washington, some years ago, issued orders that bits of coloured pasteboard, or “test cards” be used for determining the power of individuals to distinguish objects at a distance, while worsteds of various hues were employed to ascertain their ability to distinguish colour. In the Treasury and Naval Departments were ordered similar examinations, in which the power to distinguish colour was a necessary qualification in the case of all persons seeking employment therein.

In the examinations ordered by navigation and railroad companies to protect themselves and the public against disaster resulting from imperfect vision in their employees, tests have been made. Among the requirements imposed by law, applying to engineers, brakemen, and firemen, in the State of Connecticut, are the following: “Unobstructed visual field, normal visual acuteness, and freedom from colour-blindness.”

If Dr. Jeffries's investigation in the Boston public schools and the report of the officers of the Pennsylvania Railroad are to serve as a criterion in judging of the extent to which impaired vision is developed in men, or if among them one in every twenty-five is defective in the colour sense, the inference seems unavoidable that the proportion of them unfitted for railroad and steamboat service, for military duty, and for various important government positions, must be large. Hence, by these tests alone may be observed something of the extent to which, under the higher conditions which are approaching, the imperfect development in men of this one organ (the eye) may cripple their energies and check those activities which, in many instances, are best suited to their tastes and inclinations.

Nor is this defective vision developed in men a peculiarity which is confined within the limits of our own country. In Europe, investigations analogous to those instituted in America have been followed by the same or similar results. Until a comparatively recent time this subject has received little or no attention, for the reason that the processes of civilization and the various activities of life have not, hitherto, demanded a correct or highly developed colour sense; but with the requirements of more highly civilized conditions, in vocations demanding more diversified and complicated physical and mental activities, it is plain that man, because of this organic imperfection, must labour under continuous disadvantages. Then add to defective vision his lack of physical endurance, his liability to various organic affections caused by structural defects, and his abnormal appetites which are constantly demanding for their gratification the things which are injurious to his mental and physical constitution, and we are enabled to judge, to some extent, of the obstacles against which, in the struggle for existence, the future man will find himself obliged to contend.

Not only is man's sense of sight less perfectly developed than is woman's, but his sense of touch is less acute. The hand, directed as it is by the brain, is the most completely differentiated member of the human structure. It may almost be said of the hand, that it assists the brain in performing its functions. The female hand, however, is capable of delicate distinctions which the male has no means of determining. A dispatch from Washington says of the women of the Treasury Department:

So superior is their skill in handling paper money that they accomplish results that would be utterly unattainable without them. It has been found by long experience that a counterfeit may go through half the banks in the country without being detected, until it comes back, often torn and mutilated, into the hands of the Treasury women. Then it is certain of detection. They shut their eyes and feel of a note if they suspect it. If it feels wrong, in half a minute they point out the incongruities of the counterfeit.

Although throughout the ascending scale of life, the female has been expending all her energy in the performance of her legitimate functions—functions which, as we have seen, are of a higher order than those performed by the male, through causes which will be discussed farther on in these pages, within the later centuries of human existence—she has been temporarily overcome by the destructive forces developed in the opposite sex, forces which are without the line of true development, and which through overstimulation and encouragement have overleaped the bounds of normal activity, and have therefore become disruptive and injurious.

During the past five thousand years, woman's reproductive functions have been turned into means of subsistence, and under the peculiar circumstances of her environment, her "struggle for existence" has involved physical processes far more disastrous to life and health than are those to which man has been subjected. Owing to the peculiar condition of woman's environment, there has been developed within her more delicate and sensitive organism an alarming degree of functional nervousness; yet, with the gradual broadening of her sphere of activity, and the greater exercise of personal rights, this tendency to nervous derangement is gradually becoming lessened. That there is reserve force in woman sufficient to overcome the evil results of the supremacy of the animal instincts during the last five thousand or six thousand years of human existence, from present indications seems more than likely.

Commenting on the subject of nervousness, and the degree in which it is manifested in civilized countries, and especially among civilized women, Dr. Beard says:

Women, with all their nervousness—and, in civilized lands, women are more nervous, immeasurably, than men, and suffer more from general and special nervous diseases—yet live quite as long as men, if not somewhat longer; their greater nervousness and far greater liability to functional diseases of the nervous system being compensated for by their smaller liability to acute and inflammatory disorders, and various organic nervous diseases, likewise, such as the general paralysis of insanity.³⁹

According to Maudsley women “seldom suffer from general paralysis.” This disease is frequently inherited, and is sometimes the result of alcoholic and other excesses.⁴⁰

Regarding the dangers to which women are exposed by excessive and useless maternity, Dr. Beard remarks:

The large number of cases of laceration at childbirth and the prolonged and sometimes even life-enduring illness resulting from them, are good reasons for the terror which the processes of parturition inspires in the minds of American women today.

However, that the dangers incident to parturition, and the excessive nervousness which characterizes civilized women, are not necessary adjuncts of civilization, but, on the contrary, are a result of the unchecked disruptive forces developed in man, and the consequent drain on the vital energies of woman, will be seen, so soon as through the cultivation of the higher faculties developed in and transmitted through females, the lower nature of males has finally been brought within its legitimate bounds.

CHAPTER IV

THE DEVELOPMENT OF THE SOCIAL INSTINCTS AND THE MORAL SENSE

Man is pre-eminently a social animal. He seeks companionship and depends largely upon his fellows for security and happiness. Nor is this dependence upon others confined to the human species. Association, or combination of interests, is manifested throughout the entire organic scale.

From Mr. Darwin's reasoning it is evident that he regards association as the basic principle underlying progress. He also thinks that combination is impossible without sympathy or a desire for the welfare of others outside of self. He is certain that associated animals have a feeling of affection for the group and that "they sympathize with one another in times of distress and danger."⁴¹

This writer thinks that an animal like the gorilla, which possessing great size and strength is able to defend itself against all its enemies, would not become social and therefore would be unable to advance. And this too, notwithstanding the fact that such an animal has already developed pugnacity, courage, and perseverance, the characters which are regarded as the source of the remarkable mental endowment of man.

We have seen that the greater size of the male is the result of Sexual Selection and is therefore a secondary sexual character. "All the secondary sexual characters of man are highly variable."⁴² In dealing with this subject we must not lose sight of the fact that variability denotes low organization. It shows that the organs of the body have not become specialized to perform their legitimate functions.

Among monogamous animals difference in size between the sexes is slight, but among polygamous species the male is considerably larger than the female, this difference being correlated with numerous variations of structure.

Among early races males were considerably in excess of females so it was customary for the former to fight desperately to win the favour of the latter in much the same manner as their animal progenitors had fought to secure their mates. These struggles were enacted in the presence of the females, they always choosing the strongest and best endowed leaving the weaker and uglier members of the group unmated and therefore unable to propagate their misfortunes. This exercise of choice by the female in pairing is the primary fact in the history of human progress. The appalling effects of the withdrawal from women of this fundamental prerogative will be referred to later in these pages.

That pugnacity, courage, and perseverance are the result of man's strong sexual nature is shown wherever this subject is touched upon in *The Descent of Man*. Special attention is directed to the fact that eunuchs are deficient in these qualities.

That the greater size and strength of the male, together with courage, pugnacity, and perseverance, have been of great value to him in deciding the contests between rivals in courtship is quite true. It is clear, however, that these characters are in no wise responsible for the origin and development of the higher faculties. Even Mr. Darwin's premises, when carried to their legitimate conclusions, furnish sufficient evidence to prove that the social instincts and the moral sense have been developed quite independently of these characters.

According to the reasoning of the savants it is only through that specialization of organs which has resulted in the separation of the sex elements, and the consequent division of functions, that the social instincts have originated, and that it is to processes involved in such specialization, or differentiation, that the higher faculties and the moral sense have arisen. It is indeed plain from their reasoning that matter, or perhaps I should say the force inherent in matter, had to be raised to a certain dynamic order before the peculiar quality of brain and nerve necessary for the development of these faculties could be manifested through it.

As there are different kinds of matter, so there are different modes of force, in the universe; and as we rise from the common physical matter in which physical laws hold sway up to chemical matter and chemical

forces, and from chemical matter again up to living matter and its modes of force, so do we rise in the scale of life from the lowest kind of living matter with its corresponding force or energy, through different kinds of histological elements, with their corresponding energies or functions, up to the highest kind of living matter and corresponding mode of force with which we are acquainted, viz., nerve element and nerve force. But, when we have got to nerve element and nerve force, it behooves us not to rest content with the general idea, but to trace, with attentive discrimination, through the nervous system the different kinds of nervous cells, and their different manifestations of energy. So also shall we obtain the groundwork for a true conception of the relations of mind and the nervous system.⁴³

We have seen that the nervous system not only regulates most of the existing functions of the body, but that it has indirectly influenced the development of various bodily structures and certain mental qualities, and that these powers of mind depend on the development of the brain.

By our guides in this matter, we are assured that the most important difference observed between man and the lower animals is the conscience; hence, if we would understand how it has been possible for man to rise to his present position, we must know something of the processes involved in the development of the social instincts, through which have originated conscience and a desire for the welfare of others outside of self. The importance of these instincts in the development of conscience is thus set forth by Mr. Darwin:

Any animal whatever, endowed with well-marked social instincts, the parental and filial affections being here included, would inevitably acquire a moral sense or conscience, as soon as its intellectual faculties had become as well, or nearly as well, developed as in man.

Sympathy, we are told, is the foundation-stone of the social instincts. From facts which are everywhere presented among the forms of life below man, it is evident that sympathy was developed at an early stage of animal life. It is doubtless strongly manifested in our ape-like progenitors, and it was probably this instinct which subsequently led to a community of interest and the coherence of the tribe.

In a consideration, therefore, of this question of sex development and the origin of the progressive principle, if, as we are assured, sympathy constitutes the foundation-stone of the social instincts, and if it is to these instincts that we are to look for the origin of the moral sense, or conscience — a faculty which constitutes the fundamental difference between the human species and the lower orders of life—the question naturally arises: In which of the two diverging lines of sexual demarcation has arisen sympathy, or an interest in the well-being of others? For an answer to our question we must look carefully to the facts connected with the development of the sexes within one of which have been acquired characters tending toward the welfare of society, or of individuals outside of self; within the other, characters looking only toward selfish gratification. Within the former, the maternal instinct predominates; within the latter, passion.

Mr. Darwin admits that “parental and filial affection lies at the base of the social instincts,” and gives as his opinion that this quality is the result of Natural Selection—that those individuals which bestowed upon their offspring the greatest care and attention, would survive and multiply at the expense of others in which this instinct was less developed. Therefore, in pursuing the inquiry of sex-function and sex-development, a question of considerable significance is at this point suggested: Within which parent is observed the greater tendency to bestow care and attention upon offspring?

We are assured that “the animal family is especially maternal.” So soon as a female bird has laid her eggs, she is animated only by one desire; neither the promise of abundant food nor the fear of bullets is able to divert her purpose. Although the males among the more highly developed birds assist in rearing the family, amongst various species it is only the female which cares for the young. The male duck has no interest in his progeny, neither has the male eider. Of the male turkeys Mr. Letourneau says that they

do much worse: they often devour the eggs of their females, and thus oblige the latter to hide them. Female turkeys join each other with their young ones for greater security, and thus form troops of from sixty to eighty individuals, led by the mothers, and carefully avoiding

the old males, who rush on the young ones and kill them by violent blows on the head with their beaks.⁴⁴

The males of various other species, jealous of the attentions of the mothers during the time that their efforts are directed toward the maintenance of their brood, often kill their young. Regarding the subject of paternal care, Mr. Letourneau observes: "It is important to notice that amongst birds, the fathers devoid of affection generally belong to the less intelligent, and are most often polygamous."

By observing the habits of cuckoos the fact has been ascertained that among them the maternal instinct is almost entirely lacking. Of the cuckoo it has been remarked that it is a "discontented, ill-conditioned, passionate, in short, decidedly unamiable bird." Its note is typical of its habits and character.

The same abruptness, insatiability, eagerness, the same rage, are noticeable in its whole conduct. The cuckoos are notoriously unsociable, even in migration individualistic. They jealously guard their territorial "preserves," and verify in many ways the old myth that they are sparrow-hawks in disguise. The parasitic habit is consonant with their general character.

The species consist predominantly of males. The preponderance is probably about five to one; though one observer makes it five times greater. In so male a species, it is not surprising to find degenerate maternal instincts.⁴⁵

Regarding spiders and the greater number of insects, we are told that the males entirely neglect their young; it is

in the female that the care for offspring first awakens. And this is natural, for the eggs have been formed in her body; she has laid them, and has been conscious of them; they form, in a way, an integral part of her individuality.... With insects maternal forethought sometimes amounts to a sort of divining prescience which the doctrine of evolution alone can explain.⁴⁶

Among the males of mammals below man the love of offspring seems to be almost entirely wanting.

We must here remark, that whatever the form of sexual association among mammals, the male has always much less affection for his young than the female. Even in monogamous species, when the male keeps with the female, he does so more as chief than as father. At times he is inclined to commit infanticide and to destroy the offspring, which, by absorbing all the attention of his female, thwart his amours. Thus, among the large felines, the mother is obliged to hide her young ones from the male during the first few days after birth, to prevent his devouring them.⁴⁷

The fact is obvious that among the orders of life below man but little paternal affection has been developed, and with a more extended knowledge of the past history of the human race comes the assurance that under earlier conditions of society, and in fact, until a comparatively recent time, little notice was taken of the paternal relation—that kinship and all the rights of succession were reckoned through the mother. In other words, motherhood was the primary bond by which society was bound together.

Although under higher conditions of civilized life, males have at length come to manifest much interest in the well-being of their offspring, yet that paternal affection is not a primary instinct is shown by the fact that such interest, even at the present time, extends only to those individuals born in wedlock. Men are solicitous only for the welfare of those who are to succeed to their names and fortunes; hence, although in later times the paternal instinct has been considerably re-enforced, it is plain that the interest of fathers for their offspring has in the past been largely the result of custom, association, pride, desire for self-perpetuation or duplication, or some other form of self-aggrandizement.

Mr. Darwin says: “The feeling of pleasure from society is probably an extension of the parental or filial affections, since the social instinct seems to be developed by the young remaining for a long time with their parents.”⁴⁸ Although Mr. Darwin does not admit it, from his reasoning it is plain that the maternal instinct is the root whence sympathy has sprung, and that it is the source whence the cohesive quality in the tribe originated.

Regarding the importance of association or combination in early groups Mr. Darwin remarks:

When two tribes of primeval man, living in the same country, came into competition, if (other circumstances being equal) the one tribe included a great number of courageous, sympathetic, and faithful members, who were always ready to warn each other of danger, to aid and defend each other, this tribe would succeed better and conquer the other.... Selfish and contentious people will not cohere, and without coherence nothing can be effected. A tribe rich in the above qualities would spread and be victorious over other tribes.... Thus the social and moral qualities would tend slowly to advance and be diffused throughout the world.⁴⁹

Since, then, it has been proved by scientists that without an association of interests and the coherence of the tribe the social instincts must have remained weak, and since it has been shown by them that without concerted action the higher faculties, including the moral sense, could not have been developed; and since, furthermore, the influences which have led to this development are those growing out of the maternal instincts, may we not conclude that all of those qualities which make man pre-eminently a social animal—his love of society, his desire for the good-will of his kind, his perception of right and wrong, and, finally, that sympathy which at last gradually extending beyond the limits of race and country proclaims the brotherhood of man and the unity of life on the earth—all these characteristics, are but an extension of maternal affection, an outgrowth of that early bond between mother and child, which, while affecting the entire line of development, still remains unchanged and unchangeable.

CHAPTER V

THE SUPREMACY OF THE MALE

An unprejudiced review of the facts relative to the differentiation of the two sexes, as set forth by naturalists, reveals not only the primary principles involved in human progress, but shows also the source whence these principles originated. These facts serve also to explain that “mental superiority” of man over woman observed by Mr. Darwin and others in the present stage of human growth.

Notwithstanding the superior degree of development which, according to the facts elaborated by scientists, must belong to the female in all the orders of life below mankind, Mr. Darwin would have us believe that so soon as the human species appeared on the earth the processes which for untold ages had been in operation were reversed, and that through courage and perseverance, or patience, qualities which were the result of extreme selfishness, or which were acquired while in pursuit of animal gratification, man finally became superior to woman. The following furnishes an example of Mr. Darwin’s reasoning upon this subject. He says:

The chief distinction in the intellectual powers of the two sexes is shown by man’s attaining to a higher eminence, in whatever he takes up, than can woman—whether requiring deep thought, reason, or imagination, or merely the use of the senses and the hands. If two lists were made of the most eminent men and women in poetry, painting, sculpture, music (inclusive both of composition and performance), history, and philosophy, with half-a-dozen names under each subject, the two lists would not bear comparison....

Now, when two men are put into competition, or a man with a woman, both possessed of every mental quality in equal perfection, save that one has higher energy, perseverance, and courage, the latter will generally become more eminent in every pursuit, and will gain the ascendancy. He may be said to possess genius—for genius has been

declared by a great authority to be patience; and patience, in this sense, means unflinching, undaunted perseverance.⁵⁰

Doubtless, for the purpose of strengthening his position, Mr. Darwin quotes the following from John Stuart Mill: "The things in which man most excels woman are those which require most plodding and long hammering at single thoughts." And in summing up the processes by which man has finally gained the ascendancy over woman he concludes:

Thus man has ultimately become superior to woman. It is, indeed, fortunate that the law of the equal transmission of characters to both sexes prevails with mammals; otherwise it is probable that man would have become as superior in mental endowment to woman, as the peacock is in ornamental plumage to the peahen.⁵¹

Notwithstanding this conclusion of Mr. Darwin, in view of the facts elaborated by himself, we cannot help thinking that it is indeed fortunate that the law of the equal transmission of characters to both sexes prevails with mammals, otherwise it is probable that man would never have had any higher ambition than the gratification of his animal instincts, and would never have risen above those conditions in which he struggled desperately for the possession of the female. All the facts which have been observed relative to the acquirement of the social instincts and the moral sense prove them to have originated in the female constitution, and as progress is not possible without these characters, it is not difficult to determine within which of the sexes the progressive principle first arose. Even courage, perseverance, and energy, characters which are denominated as thoroughly masculine, since they are the result of Sexual Selection, have been and still are largely dependent on the will or choice of the female.

In his zeal to prove the superiority of man over woman, and while emphasizing energy, perseverance, and courage as factors in development, Mr. Darwin seems to have overlooked the importance of the distinctive characters belonging to the female organism, viz., perception and intuition, combined with greater powers of endurance, the first two of which, under the low conditions occasioned by the supremacy of the animal instincts, have thus far had little opportunity to manifest themselves. A fairer

statement relative to the capacities of the two sexes and their ability to succeed might have been set forth as follows:

When a man and a woman are put in competition, both possessed of every mental quality in equal perfection, save that one has higher energy, more patience, and a somewhat greater degree of physical courage, while the other has superior powers of intuition, finer and more rapid perceptions, and a greater degree of endurance (the result of an organism freer from imperfections), the chances of the latter for gaining the ascendancy will doubtless be equal to those of the former as soon as the animal conditions of life are outgrown, and the characters peculiar to the female constitution are allowed expression. Mr. Darwin's quotation from J. Stuart Mill, that the things in which man excels woman are those which require most plodding and long hammering at single thoughts, is evidently true, and corresponds with the fundamental premises in the theory of development as set forth by all naturalists. The female organism is not a plodding machine, neither is the telephone nor the telegraph, yet these latter devices accomplish the work formerly done by the stagecoach much more rapidly, and in a manner better suited to civilized conditions. So soon as women are freed from the unnatural restrictions placed upon them through the temporary predominance of the animal instincts in man, their greater powers of endurance, together with a keener insight and an organism comparatively free from imperfections, will doubtless give them a decided advantage in the struggle for existence. While patience is doubtless a virtue, and while during the past ages of human experience it has been of incalculable value to man, it will not, under higher conditions, be required in competing for the prizes of life.

Woman's rapid perceptions, and her intuitions which in many instances amount almost to second sight, indicate undeveloped genius, and partake largely of the nature of deductive reasoning; it is reasonable to suppose therefore that as soon as she is free, and has for a few generations enjoyed the advantages of more natural methods of education and training, and those better suited to the female constitution, she will be able to trace the various processes of induction by which she reaches her conclusions. She will then be able to reason inductively up to her deductive conceptions.

The worthlessness of Mr. Darwin's comparison between men and women in performing the various activities of life is already clearly apparent. Although less than half a century has elapsed since *The Descent of Man* was written women are already successfully competing with men in nearly all the walks of life both high and low, and this too notwithstanding the fact that these occupations have heretofore been regarded as belonging exclusively to men. We have seen that Mr. Darwin mentions music as a vocation in which man's superiority over woman is manifested, yet already in the United States, there is not one male musician who would be willing to match his skill against that of any one of the four best woman performers.

It is a well understood fact that neither individuals nor classes which upon every hand have been thwarted and restrained, either by unjust and oppressive laws, or by the tyranny of custom, prejudice, or physical force, have ever made any considerable progress in the actual acquirement of knowledge or in the arts of life. Mr. Darwin's capacity for collecting and formulating facts seems not to have materially aided him in discerning the close connection existing at this stage of human progress between the masculinized conditions of human society and the necessary opportunities to succeed in the higher walks of life; in fact, he seems to have forgotten that all the avenues to success have for thousands of years been controlled and wholly manipulated by men, while the activities of women have been distorted and repressed in order that the "necessities" of the male nature might be provided for. Besides, it seems never to have occurred to him that as man has still not outgrown the animal in his nature, and as the intellectual and moral age is only just beginning to dawn, the time is not yet ripe for the direct expression of the more refined instincts and ideas peculiar to the female organism, and, as thus far, only that advancement has been made which is compatible with the supremacy of the lower instincts, woman's time has not yet come.

Although women are still in possession of their natural inheritance, a finer and more complex organism comparatively free from imperfections, and although, as a result of this inheritance, their intuitions are still quicker, their perceptions keener, and their endurance greater, the drain on their physical energies, caused by the abnormal development of the reproductive energies in the opposite sex, has, during the ages of man's dominion over

her, been sufficient to preclude the idea of success in competing with men for the prizes of life. Although an era of progress has begun, ages will doubtless be required to eradicate abuses which are the result of constitutional defects, and especially so as the prejudices and feelings of mankind are for the most part in harmony with such abuses.

If we examine the subject of female apparel, at the present time, we shall observe how difficult it is to uproot long-established prejudices which are deeply rooted in sensuality and superstition; and this is true notwithstanding the fact that such prejudices may involve the comfort and even the health of half the people, and seriously affect the welfare of unborn generations. An examination of the influences which have determined the course of modern fashions in woman's clothing will show the truth of this observation.

Of all the senses which have been developed, that of sight is undoubtedly the most refined, and when in the human species it is cultivated to a degree which enables its possessor to appreciate the beautiful in Nature and in Art, we are perhaps justified in designating it as the intellectual sense. In point of refinement, the sense of hearing comes next in order, yet among creatures as low in the scale of being as birds, we find that females not only appreciate the beautiful, but that they are charmed by pleasing and harmonious sounds, and that if males would win their favour it must be accomplished by appeals through these senses to the higher qualities developed within them.

Although the female of the human species, like the female among the lower orders of life, is capable of appreciating fine colouring, and to a considerable extent the beautiful in form, the style of dress adopted by women is not an expression of their natural ideas of taste and harmony. On the contrary, it is to Sexual Selection that we must look for an explanation of the incongruities and absurdities presented by the so-called female fashions of the past and present. The processes of Sexual Selection, which, so long as the female was the controlling agency in courtship, worked on the male, have in these later ages been reversed. For the reason that the female of the human species has so long been under subjection to the male, the styles of female dress and adornment which have been adopted, and which are still in vogue, are largely the result of masculine taste. Woman's business in life has been to marry, or, at least, it has been necessary for her,

in order to gain her support, to win the favour of the opposite sex. She must, therefore, by her charms, captivate the male.

With the progress of civilization and since women as economic and sexual slaves have become dependent upon men for their support, no male biped has been too stupid, too ugly, or too vicious to take to himself a mate and perpetuate his imperfections. This unchecked freedom of the male to multiply his defects is responsible for present conditions.

As for thousands of years women have been dependent on men not only for food and clothing but for the luxuries of life as well, it is not singular that in the struggle for life to which they have been subjected they should have adopted the styles of dress which would be likely to secure to them the greatest amount of success. When we remember that the present ideas of becomingness or propriety in woman's apparel are the result of ages of sensuality and servitude, it is not remarkable that they are difficult to uproot, and especially so as many of the most pernicious and health-destroying styles involve questions of female decorum as understood by a sensualized age.

Mr. Darwin calls attention to the fact that women "all over the world" adorn themselves with the gay feathers of male birds. Since the beautiful plumage of male birds has been produced according to female standards of taste, and since it is wholly the result of innate female ideas of harmony in colour and design, it is not perhaps remarkable that women, recognizing the original female standards of beauty, should desire to utilize those effects which have been obtained at so great an expenditure of vital force to the opposite sex, especially as men are pleased with such display, and, as under present conditions of male supremacy, the female of the human species is obliged to captivate the male in order to secure her support.

Ever since the dominion of man over woman began a strict censorship over her dress has been maintained. Although in very recent times women are beginning to exercise a slight degree of independence in the matter of clothes, still, because of existing prejudices and customs they have not yet been able to adopt a style of dress which admits of the free and unrestricted use of the body and limbs. It is believed that woman, the natural tempter of man, if left to her own sinful devices, would again as of old attempt to

destroy that inherent purity of heart and cleanliness of life which characterize the male constitution. Woman's ankles and throat seem to be the most formidable foes against which innocent man has to contend, so the concealment of these offending members is deemed absolutely necessary for his protection and safety. Ecclesiastics, a class whose duty it has ever been to regulate and control the movements of women, seem to think that the ankles and throats of women were intended not for the use and convenience of their possessors but as snares to entrap holy men.

It would thus appear that the present fashions for female apparel have a deeper significance than we have been in the habit of ascribing to them. We are still living under conditions peculiar to a sensual age, and have not yet outgrown the requirements which condemn women to a style of dress which hinders the free movements of the body and which checks all the activities of life. In one way the woman of the present time may be said to resemble the male Argus pheasant, whose decorations, although they serve to please his mate, greatly hinder his power of motion and the free use of his body and limbs.

When we consider that apparel is but one, and a minor one, of the strictures under which women have laboured during the later era of human existence and when we consider all the ignoble and degrading uses to which womanhood has been subjected, the wonder is not that women have failed in the past to distinguish themselves in the various fields of intellectual labour in which men have achieved a limited degree of success, but that they have had sufficient energy and courage left to enable them even to attempt anything so far outside the boundary of their prescribed "sphere," or that they have been able to transmit to their male offspring those powers through which they have gained their present stage of progress.

With regard to Mr. Darwin's comparison of the intellectual powers of the two sexes, and his assertion that man attains to a higher eminence in whatever he takes up than woman—that, for instance, he surpasses her in the production of poetry, music, philosophy, etc., the facts at hand suggest that if within mankind no higher motives and tastes had been developed than those derived from selfishness and passion, there would never have arisen a desire for poetry, music, philosophy, or science, or, in fact, for any of the achievements which have been the result of the more exalted

activities of the human intellect. However, because of the subjection of the higher faculties developed in mankind, the poetry, music, and painting of the past betray their sensuous origin and plainly reveal the stage of advancement which has been reached, while history, philosophy, and even science, judging from Mr. Darwin's methods, have not yet wholly emerged from the murky atmosphere of a sensuous age.

It will be well for us to remember that the doctrine of the Survival of the Fittest does not imply that the best endowed, physically or otherwise, have always succeeded in the struggle for existence. By the term Survival of the Fittest we are to understand a natural law by means of which those best able to overcome the unfavourable conditions of their environment survive and are able to propagate their successful qualities. We must bear in mind that neither the growth of the individual nor that of society has proceeded in an unbroken or uninterrupted line; on the contrary, during a certain portion of human existence on the earth, the forces which tend toward degeneration have been stronger than those which lie along the line of true development.

We are assured that the principles of construction and destruction are mutually employed in the reproductive processes, that continuous death means continuous life,—the katabolic or disruptive tendencies of the male being necessary to the anabolic or constructive habits of the female. As it is in reproduction, so has it been through the entire course of development. Side by side, all along the line, these two tendencies have been in operation; the grinding, rending, and devouring processes which we denominate Natural Selection, alongside those which unite, assimilate, and protect. As a result of the separation of the sexes there have been developed on the one side extreme egoism, or the desire for selfish gratification; on the other, altruism, or a desire for the welfare of others outside of self. Hence, throughout the later ages of human existence, since the egoistic principles have gained the ascendancy, may be observed the unequal struggle for liberty and justice, against tyranny, and the oppressors of the masses of the human race. From present appearances it would seem, that the disruptive or devouring forces have always been in the ascendancy. The philosophy of history however, teaches the contrary. With a broader view of the origin and development of the human race, and the unexpected light which within the last few years has been thrown upon prehistoric society and the grandeur of past achievement, a close student of the past is able to discern a faint

glimmering of a more natural age of human existence, and is able to observe in the present intense struggles for freedom and equality, an attempt to return to the earlier and more natural principles of justice and liberty, and so to advance to a stage of society in which selfishness, sensuality, and superstition no longer reign supreme.

The status of women always furnishes an index to the true condition of society, one or two superficial writers to the contrary notwithstanding. For this phenomenon there is a scientific reason, namely: society advances just in proportion as women are able to convey to their offspring the progressive tendencies transmissible only through the female organism. It is plain, therefore, that mankind will never advance to a higher plane of thinking and living until the restrictions upon the liberties of women have been entirely removed, and until within every department of human activity, their natural instincts, and the methods of thought peculiar to them be allowed free expression. The following is from Mr. Buckle's lecture on "The Influence of Women on the Progress of Knowledge":

I believe and I hope before we separate to convince you, that so far from women exercising little or no influence over the progress of knowledge, they are capable of exercising, and have actually exercised an enormous influence; that this influence, is, in fact, so great that it is hardly possible to assign limits to it; and that great as it is, it may with advantage be still further increased. I hope, moreover, to convince you that this influence has been exhibited not merely from time to time in rare, sudden, and transitory ebullitions, but that it acts by virtue of certain laws inherent in human nature; and that, although it works as an undercurrent below the surface, and is therefore invisible to hasty observers, it has already produced the most important results, and has affected the shape, the character, and the amount of our knowledge.

Through the processes involved in the differentiation of sex and the consequent division of functions, it has been possible during the past six thousand or seven thousand years (a mere tithe of the time spent by mankind upon the earth) for women to become enslaved, or subjected to the lower impulses of the male nature. Through the capture of women for wives, through the exigencies of warfare, the individual ownership of land, and the various changes incident to a certain stage of human existence, the

finer sensibilities which characterize women have been overshadowed, and the higher forces which originated within them and which are transmitted in the female line, have been temporarily subdued by the great sexual ardour inherent in the opposite sex; it is not, therefore, singular that the degree of progress attained should appear to be wholly the result of male activity and acumen. Yet, notwithstanding the degradation to which women in the position assigned them by physical force have been obliged to submit, their capacity for improvement has suffered less from the influences and circumstances of their environment than has that of men. As the higher faculties are transmitted through women equally to both sexes, in the impoverishment of their inheritance on the female side, men have suffered equally with women, while, through their male progenitors, they have inherited appetites and habits (the result of a ruder and less developed structure) which weaken and degrade the entire constitution.

Doubtless, so soon as women have gained sufficient strength to enable them to maintain their independence, and after the higher faculties rather than the animal propensities rule supreme, men, through the imperfections in their organism, and the appetites acquired through these imperfections, will, for a considerable length of time, find themselves weighted in the struggle for supremacy, and this, too, by the very characters which under lower conditions are now believed to have determined their success.

It is not unlikely, however, that through Sexual Selection the characters or qualities unfavourable to the higher development of man will in time be eliminated. The mother is the natural guardian and protector of offspring; therefore, so soon as women are free they will doubtless select for husbands only those men who, by their mental, moral, and physical endowments are fitted to become the fathers of their children. Only those women will become mothers who hope to secure to their offspring immunity from the giant evils with which society is afflicted. In this way, and this way only, may these evils be eradicated.

Under purer conditions of life, when by the higher powers developed in the race the animal propensities have become somewhat subdued by man, we may reasonably hope that the "struggle for existence," which is still so relentlessly waged, will cease, that man will no longer struggle with man for place or power, and that the bounties of earth will no longer be hoarded

by the few, while the many are suffering for the necessities of life; for are we not all members of one family, and dependent for all that we have on the same beneficent parent—Nature?

Although the two principles, the constructive and destructive, are closely allied, the higher faculties have been acquired only through the former—the highest degree of progress is possible only through union or co-operation, or, through the uniting and binding force, maternal love from which has been developed, first, sympathy among related groups, and later an interest which is capable of extending itself not only to all members of the human race, but to every sentient creature. There is, therefore, little wonder that for thousands of years of human existence, the female principle was worshipped over the entire habitable globe as the source of all light and life—the Creator and Preserver of the Universe.

We are only on the threshold of civilization. Mankind may as yet have no just conception of their possibilities, but so soon as, through the agencies now in operation for the advancement of the race, the “necessities” of the male nature no longer demand and secure the subjection of women and the consequent drain on the very fountain whence spring the higher faculties, a great and unexpected impetus will be given to progress.

The fact that a majority of women have not yet gained that freedom of action necessary to the absolute control of their own persons, nor acquired a sufficient degree of independence to enable them to adopt a course of action in their daily life which they know to be right, shows the extent to which selfishness, twin brother to sensuality, has clouded the conscience and warped the judgment in all matters pertaining to human justice. So closely has women’s environment been guarded that in addition to all the restrictions placed upon their liberties, a majority of them are still dependent for food and clothing on pleasing the men, who still hold the purse-strings. Yet Mr. Darwin, the apostle of original scientific investigation, concludes:

“If men are capable of decided prominence over women in many subjects, the average mental powers in men must be above those of women.”

PART II
Prehistoric Society

CHAPTER I

METHOD OF INVESTIGATION

If the theory of the development of the human race, or more particularly that of the two diverging lines of sex demarcation as set forth in the foregoing chapters be correct, it is plain that by it a new foundation is laid for the study of mankind.

If, contrary to the generally accepted idea, within the female organism have been developed those elements which form the basis of human progress, or, if the higher faculties are transmitted through the mother, henceforth all examinations into primitive conditions and all research into the causes which underlie existing institutions must be carried on with reference to this particular fact. Only through a thorough understanding of the principles or forces which govern human development, and a just appreciation of the source whence these principles have sprung, may we hope to gain a clear understanding of the past history of the race, or to perceive the true course to be pursued toward further development. Through the investigation of facts revealed in the records of Geology, and through the study of comparative Embryology and Anatomy, or through an understanding of Zoölogy and Anthropology, man has well-nigh solved the problem of his origin, or has almost proved his connection with and development from the lower orders of life, but of the countless ages which intervened between the era of our ape-like progenitors and the dawn of organized society, little may be known without a correct knowledge of the inheritance received by mankind from creatures lower in the scale of being. Only by a careful study of the constitutional bias acquired throughout the entire line of development, are we enabled to note the motives or forces by which primitive society was controlled, or to form a just conclusion relative to the early conditions of human society and its subsequent progress.

Through the attention which in these later years has been directed toward surviving tribes in the so-called middle and later stages of savagery, and in the three successive periods of barbarism, have doubtless been revealed

many of the processes by which mankind have reached their present condition. Much of the information, however, which has been obtained by these inquiries still lacks that accuracy in detail demanded by exact science; but, so soon as the array of facts which the last half-century has brought to bear upon this subject shall have been correctly interpreted, logically arranged, intelligently classified, and without prejudice brought into line with the truths involved in the theory of natural development, there will doubtless be approximated a system of truth which will furnish a safe and trustworthy foundation for a more thorough research into the history of the human race.

Although the facts relative to existing undeveloped races, which have been laid before the reading public through the patience and industry of investigators in this particular branch of inquiry, have been of incalculable value as furnishing a foundation for a correct understanding of the origin of the customs, manners, ceremonies, governments, languages, and systems of consanguinity and affinity of a primitive race, and although without these efforts little knowledge of the early history of mankind could be obtained, yet, as a majority of the theories built upon these observations have been based on long-established prejudices relative to the earliest conditions surrounding human society and the forces by which it was controlled, many false conclusions have been the inevitable result.

We have seen that owing to the ascendancy which the masculine element in human society gained during the period designated as the Latter Status of barbarism, the popular ideas evolved since that time concerning the origin and development of government, social usages, religion, and law, have been in accordance with the then established assumption that within the male organism lies not only the active, aggressive element, but the progressive principle as well. It is not, therefore, singular that at the present time all the lines of investigation which are being directed toward man in a primitive state, or which are being conducted for the avowed purpose of ascertaining the successive steps by which our social, civil, and religious institutions have been reared, should continue to be carried on under the *a priori* assumption that the male organism is by nature superior to that of the female.

As in all the theories relative to the development of species the male is the principal factor, so in the theories brought forward to explain the development of human institutions the female has played only an insignificant part; but, as all later facts bearing upon this subject furnish indisputable evidence of the early importance of the female element, not only among the lower orders of life but under earlier human conditions as well, we may reasonably expect from these data the establishment, in the not distant future, of a complete chain of evidence in support of a more rational and consistent theory of development than has yet been put forth, not only of the origin of the higher faculties, but of the organization of human society and the growth of its various institutions.

As, hitherto, all the theories advanced relative to the evolution of the human race and the establishment of society on a political and territorial basis have been founded on preconceived notions of the superiority of the characters peculiar to the male, it is believed, or at least assumed, that the ascendancy gained by man over woman during the latter status of barbarism constitutes a regular, orderly, and necessary step in the direct line of progress; and, as under masculine supremacy, a certain degree of advancement has been possible, it is assumed that the nobler animal, man, having gained the ascendancy over the weaker animal, woman, his progress in the future is to increase in a sort of geometrical ratio, while she, still bound by physical disabilities and weighted by the baneful effects of past limitations and restrictions, must continue far in the rear of her better endowed and more thoroughly equipped male mate. However, in this conception of the facts of biology, woman is not left without a crumb of comfort; for, in the forlorn and helpless condition to which it condemns her, she is given to understand that if for many successive generations girls be constantly trained in masculine methods, they may eventually be able to admire, and possibly in a measure to comprehend, some of the less stupendous mental achievements of their brothers; but, according to the savants, any attempt on the part of women to compete with men in the higher walks of life must result in increased physical weakness, in the immediate degeneration of the female sex, and in disaster and ruin to the entire race.

When we remember that investigations into the conditions surrounding primitive society have for the most part been conducted under the influence

of prejudices similar to those which have prompted the above assumptions, it is not singular that in a majority of cases in which the early status of women has been discussed, and in which the organization of society, the fundamental principles of government, the origin of the institution of marriage, the monogamic family, and the growth of the god-idea, have been the topics under discussion, the conclusions arrived at have been not wholly warranted by the facts at hand.

In an investigation of the subject of human development, we must bear in mind the fact that all the principal existing institutions have sprung from germs of thought which originated under primitive conditions of the race. Government, language, marriage, the modern family, and our present system of the accumulation and distribution of wealth, have all been evolved from the necessities of early human existence, or from primitive ideas conceived according to the peculiar bias which had been given to the female and male organisms prior to the appearance of mankind upon the earth, and which have since been developed in accordance with the laws which govern human growth.

With their reasoning faculties still undeveloped, and, according to our guides, wholly destitute of a moral sense, human beings at the outset of their career could have had no guiding principle other than those instincts which they inherited from their mute progenitors. Therefore, in order fully to understand the status of the human race as it emerged from its animal conditions, we must bear in mind the nature of the inheritance which it had received during its passage from a formless lump of carbon, or an infinitesimal jelly dot in the primeval sea, to a creature endowed with sympathy, affection, courage, and perseverance. We must not lose sight of the fact that passion, the all-absorbing quality developed in males belonging to the orders lower in the scale of being, must have been conveyed without diminution or material change to man. Neither must we forget that those qualities in the female which had been developed for the protection of the germ, and by which she was enabled to hold in check the abnormally developed appetites of the male, were still in operation.

That Nature disdains arbitrary rules, and that she pays little heed to the proprieties established by man, are facts everywhere to be observed among the lower orders of life. She nevertheless jealously guards the germ and the

young of the species. The mother is the natural guardian of prenatal and infant life, and as such, under natural conditions, is usually able to control the sexual relation.

Failing to note the fact that among the orders of life below mankind the female chooses her mate, and failing also to observe that through the natural adjustment of the sexual relations his instincts are checked by her will, nearly if not all the writers upon this subject have declared that women and men at the outset of the human career lived in a state of "lawlessness" or "promiscuity," similar no doubt to that which at the present time would prevail in a community in which women were utterly devoid of influence, and in which there were no laws regulating the intercourse of the sexes.

By the most trustworthy writers on the subject of the primitive conditions of the human race, it is believed that the most archaic organization of society was that founded on the basis of sex, but, as in the infancy of the race, prior to the inauguration of the system based on sex, and during the long ages which were spent merely in gaining a subsistence, no organized form of society existed, it is held that the order which is observed among creatures lower in the scale of life was suspended, and that the universal law which had hitherto regulated the relations of the sexes, and which throughout the ages of life on the earth had held in check the lower instincts of the male, became immediately inoperative.

Here the common ground of belief ceases, and each writer branches off upon his own peculiar line of argument, appropriating and arranging the facts observed by explorers and investigators in the various lines of inquiry according to his own preconceived notions, or as best suits the particular scheme of development which he essays to establish.

In the following pages the attempt will be made to show that the facts which in these later years have been brought to light concerning the development of the human race are in strict accord with the facts as enunciated by scientists relative to the development of the orders of life below man, and that together they form a connected chain of evidence going to prove not only that the higher faculties had their origin in the female but that the progressive principle has also been confided to her.

CHAPTER II

THE RELATIONS OF THE SEXES AMONG EARLY MANKIND

We have seen that an investigation of the instincts and habits of creatures lower in the scale is necessary to an understanding of the relations which must have existed between the sexes among primitive races.

Among birds and mammals, the greater differentiation of the nervous system and the higher pitch of the whole life is associated with the development of what pedantry alone can refuse to call love. Not only is there often partnership, co-operation, and evident affection beyond the limits of the breeding period, but there are abundant illustrations of a high standard of morality, of all the familiar sexual crimes of mankind, and every shade of flirtation, courtship, jealousy, and the like. There is no doubt that in the two highest classes of animals at least, the physical sympathies of sexuality have been enhanced by the emotional, if not also intellectual, sympathies of love.^{[52](#)}

It has been observed that among the orders of life below mankind, except among polygamous species, the female chooses the individual which is best endowed—the one whose beauty appeals to her æsthetic taste, or which through his stronger development is best fitted to assist her in the office of reproduction.

Among the more intelligent species of birds, genuine affection has been observed, strict monogamy and life-long unions having been established between mated pairs. Among others, although the conjugal bond is not life-lasting, so long as the mother-bird is caring for her brood, constancy to one another is the undeviating rule. We are assured that with the female Illinois parrot, “widowhood and death are synonymous,” and that “when a wheatear dies, his companion survives him scarcely a month.”^{[53](#)}

All eagles are monogamous. Golden eagles live in couples and remain attached to one another for a hundred or more years, without even changing their domicile.⁵⁴ The conjugal unions of bald-headed eagles, although they are under no “legal restrictions,” last until the death of one of the partners. Among birds, although incubation rests with the mother, the father usually assists his companion. He not only takes her place if she desires to leave the nest for a moment, but also provides her with food.⁵⁵ So perfect is the bird family life that Brehm declares that “real genuine marriage can only be found among birds.”⁵⁶ Upon this subject we are informed that “examples of wandering fancy are for the most part rare among the birds, the majority of whom are monogamous, and even superior to most men in the matter of conjugal fidelity.”⁵⁷

Concerning mammals, it is observed that although polygamy is frequent “it is far from being the conjugal regime universally adopted; monogamy is common, and is sometimes accompanied by so much devotion that it would serve as an example to human monogamists.”⁵⁸ Bears, weasels, whales, and many other animals choose their mates and go in pairs. Several kinds of monkeys are strictly monogamous.⁵⁹ Chimpanzees are sometimes polygamous and sometimes monogamous. It is stated that when a strong male has succeeded in driving away the other males of the group, the females, although in a position to subjugate him, are nevertheless kind and even tender toward him. They are doubtless too much occupied with their legitimate functions to rebel, but so soon as the young of the horde are grown, the usurper is driven from their midst. A little observation will show us that even among polygamous species, it is affection rather than strength which keeps the members of a group together. Although among most of the lower orders the female exercises a choice in the selection of her mate, still among animals of polygamous habits the female is said to manifest genuine affection for the father of her offspring.

The polygamic regime of animals is far from extinguishing affectionate sentiments in the females towards their husband and master. The females of the guanaco lamas, for example, are very faithful to their male. If the latter happens to be wounded or killed, instead of running away, they hasten to his side, bleating and offering themselves to the shots of the hunter in order to shield him, while, on

the contrary, if a female is killed, the male makes off with all his troop; he only thinks of himself.⁶⁰

Although among animals a stray male will sometimes drive away or kill all the other males of the group, and himself become the common mate of all the females, they peaceably accepting the situation, so far as I can find, female insects, birds, and mammals, although they generally control the sexual relation, have never been given to polyandry; the reason for this can be explained only through a careful analysis of the fundamental bias of the female constitution. We must bear in mind that although among the orders of life below mankind the male is ready to pair with any female, she, on the other hand, when free to choose, can be induced to accept the attentions only of the one which by his courage, bravery, or personal beauty has won her favours. We have noted the fact that in the earliest ages of the human race this choice was exercised by women, but we have no reason to believe that anything resembling “promiscuity” ever prevailed among primitive races. It is true that under earlier conditions the institution of marriage as it exists at the present time had not appeared; yet the law which had been impressed on the higher organism of the female, until overcome by males through means which will be treated of later in these pages, had sufficed to keep the animal instincts under subjection, or at least on a level with those of the lower species which structurally had been left behind.

From facts to be gathered, not alone from among the lower orders, but from observations among human beings as well, it would seem that any degree of affection for more than one individual at the same time is contrary to the female nature. A female insect, or bird, which feels a preference for a particular mate will pair with no other, hence, among orders where the female instincts control the relations between the sexes, “lawlessness” or promiscuity would not prevail.

A little observation and reflection, I think, will show us that the affection of the female is a character differing widely from the sex instinct of the male—that, while selfishness constitutes the underlying principle of the latter, the former involves not only care for the young and the unity of the group, but, when human conditions are reached, it involves also country, civilization, and the ultimate brotherhood of mankind.

If we bear in mind the conditions surrounding the orders of life from which the human race has sprung, and if we remember the nature of the characters inherited by mankind from these orders, together with the important fact that the lower instincts among them were under subjection to the higher faculties, we shall be enabled to see that the more degraded of the extant savage tribes cannot represent the primitive race as it emerged from the animal type.

Mr. Tylor must have been mindful of the altruistic character of early races when he remarked: "Without some control beyond the mere right of the stronger, the tribe would break up in a week, whereas in fact savage tribes last on for ages."⁶¹

Concerning the relations of the sexes under unorganized society nothing may be known from actual observation, as, at the present time, no tribe or race is to be found under absolutely primitive conditions. Perhaps from no extant people is there so little information in reference to the earliest human state to be gleaned as from the lowest existing races. Among many of these tribes the rules which it has been necessary to establish for the regulation of the relations between the sexes are rigorously enforced, while among others a laxity prevails which would seem to indicate an almost total lack of those higher instincts which are observed among nearly all the lower orders of beings. The following fact, however, in regard to these races, has been observed: the more primitive they are, or the less they have come in contact with civilization, the more strictly do they observe the rules which have been established for the governance of the sexual relation. On this subject Mr. Parkyns says:

I don't believe that there exists a nation, however high in the scale of civilization, that can pick a hole in the character of the lowest, without being in danger of finding one nearly, if not quite, as big in its own. The vices of the savage are, like his person, very much exposed to view. Our own nakedness is not less unseemly than his, but is carefully concealed under the convenient cloak which we call "civilization," but which I fear he, in his ignorance, poor fellow, might, on some occasions, be led to look upon as hypocrisy.⁶²

In the West Indian Islands where Columbus landed, lived tribes which are represented as having been “the most gentle and benevolent of the human race.” Regarding these Mr. Tylor remarks:

Schomburgk, the traveller, who knew the warlike Caribs well in their home life, draws a paradise-like picture of their ways, where they have not been corrupted by the vices of the white men; he saw among them peace and cheerfulness and simple family affection, unvarnished friendship, and gratitude not less true for not being spoken in sounding words; the civilized world, he says, has not to teach them morality, for, though they do not talk about it, they live in it.⁶³

The men who with Captain Cook first visited the Sandwich Islands reported the natives as modest and chaste in their habits; but, later, after coming in contact with the influences of civilization, modesty and chastity among them were virtues almost entirely unknown. The same is true of the people of Patagonia.

Barrow says of the Kaffir woman that she is “chaste and extremely modest,” and we are told that among this people banishment is the penalty for incontinence for both women and men. Of the reports which from time to time come from the aborigines of certain portions of Australia relative to the lewdness of the women, Mr. Brough Smyth says that they are irreconcilable with the severe penalties imposed for unchastity in former times amongst the natives of Victoria.⁶⁴ This writer is of the opinion that the lewd practices reported are modern, and that they are the result of communication with the poor whites. We are assured that the women of Nubia are virtuous, that public women are not tolerated in the country.⁶⁵ Also that in Fiji adultery is one of the crimes generally punished with death.⁶⁶

Marsden observes that in Sumatra “the old women are very attentive to the conduct of the girls, and the male relations are highly jealous of any insults that may be shown them.”⁶⁷ The same writer says that prostitution for hire is unknown in the country; adultery is punishable by fine, but the crime is rare. Regarding the conduct of men toward women he remarks: “They preserve a degree of delicacy and respect toward the sex which

might justify their retorting on many of the polished nations of antiquity the epithet of barbarism.”⁶⁸

Crantz says that among the Greenlanders single persons have rarely any connection.⁶⁹ According to the testimony of St. Boniface, the punishment for unchastity among the early Germans was death to the man, while the woman was driven naked through the streets.⁷⁰

Among the Central Asian Turks we are assured that a fallen girl is unknown. Mr. Westermarck, quoting from Klemm, states that although among the Kalmucks and gypsies the girls take pride in having gallant affairs, they are “dishonoured if they have children previous to marriage.” The same writer quotes also from Winwood Reade, who says that among the Equatorial Africans “a girl who disgraces her family by wantonness is banished from her clan; and, in cases of seduction, the man is severely flogged.”⁷¹

Mr. Westermarck adduces much testimony going to show that the “lawlessness” of lower races is due not to inherent vicious tendencies, but to the evil associations of civilized peoples. He is of the opinion that the licentiousness among many of the South Sea Islanders owes its origin to the intercourse of the natives with Europeans; and of the tribes who once inhabited the Adelaide Plains, quoting from Mr. Edward Stephens who went to Australia half a century ago, he says:

Those who speak of the natives as a naturally degraded race, either do not speak from experience, or they judge them by what they have become when the abuse of intoxicants and contact with the most wicked of the white race have begun their deadly work. As a rule, to which there are no exceptions, if a tribe of blacks is found away from the white settlement, the more vicious of the white men are most anxious to make the acquaintance of the natives, and that, too, solely for purposes of immorality.... I saw the natives and was much with them before those deadly immoralities were well known ... and I say it fearlessly, that nearly all their evils they owed to the white man’s immorality and to the white man’s drink.⁷²

We are informed that wherever certain vices prevail among the lower races in America, Africa, or Asia, they have been carried to them by the whites. Were it necessary to do so, scores of examples could be adduced going to show that among primitive tribes, until corrupted by our later civilization, chastity is the universal rule.

Although many of the writers who have dealt with this subject have discoursed freely on the laxity of the conjugal bond among so-called primitive tribes, and the lawlessness which characterizes lower races in their sexual relations, they have failed to account satisfactorily for some of the customs and usages which appear connected with many of the early forms of marriage,—forms which would seem to indicate a degree of modest reserve on the part of these peoples which fail to comport with the popular theory concerning their lawlessness and innate indecency.

We have seen that although among the orders of life below mankind there are no arbitrary laws governing the relations of the sexes, there nevertheless exists a system of natural marriage which in no wise resembles promiscuity. Now it was under this natural system controlled by the higher instincts developed within the female organism, that the extreme “lawlessness” indicated by the savants prevailed—lawlessness seeming to denote that state of female independence in which women were personally free, or in which they were not held in actual bondage as captive wives. In the reasoning of many of our guides in this matter it is implied, if not actually asserted, that the freedom of women which is now known to have prevailed in earlier times denotes a state of laxity in morals, a condition of society directly contrary to the facts which they themselves have recorded relative to existing tribes under less advanced conditions of life, and which would seem to argue for these peoples a sense of decency which among the masses in civilized countries is almost entirely wanting. At the dawn of human existence, had no higher instincts been developed than passion, or the desire for selfish gratification, whence could have arisen this reserve, and these ideas of chastity and modesty which are observed among many of the less developed peoples, notably those which have not come in contact with the higher races? Upon this subject Mr. Tylor remarks: “Yet even among the rudest clans of men, unless depraved by vice or misery and falling to pieces, a standard of family morals is known and lived by.”⁷³

Observing the habits of the lower animals, Mr. Darwin cannot believe that promiscuous intercourse prevailed among the early races of mankind.

At a very early period, before man attained to his present rank in the scale, many of his conditions would be different from what now obtains amongst savages. Judging from the analogy of the lower animals he would then either live with a single female, or be a polygamist.⁷⁴

We have much evidence going to prove that the marriage contracts among the lower races are well kept. According to Cook, in Tahiti, although nothing more is necessary for the consummation of a valid marriage than an agreement between the parties, these contracts are usually well kept. In case of the disaffection of either party, a divorce is easily obtained. We are assured, however, that although the Tahiti women have the undisputed right to dissolve the marriage contract at will, they are nevertheless “as faithful to their husbands as in any part of the world.” The Veddahs, who are ranked among the most primitive races, are a strictly monogamous people.⁷⁵ Of the extreme modesty of married pairs among many of the lower races we have much proof. Among the Fijians, husbands and wives do not usually spend the night together, except as it were by stealth, and it is said to be contrary to their ideas of delicacy that they should sleep under the same roof.⁷⁶ Wholly from a sense of reserve or modesty, the Arab wife remains for months, possibly for a whole year, with her mother before taking up her abode in her husband’s tent. The extreme delicacy of the customs regulating the behaviour of married pairs in ancient Sparta are well understood. According to Xenophon and Strabo, it was the custom, not only among the Spartans but among the Cretans also, for married pairs to meet clandestinely. The same custom prevailed in ancient Lycia. Lafitau says that among the North American Indians the husband visits his wife only by stealth.⁷⁷

It is stated by trustworthy authorities that among various tribes, during the period of gestation and lactation, the person of the wife is sacred; that the rule of chastity, or continence, between married pairs, during this season, is absolutely inviolate. In Fiji, women furnish natural nourishment

to their children for three or four years, during which time their persons are respected.

The relatives of the women take it as a public insult if any child should be born before the customary three or four years have elapsed, and they consider themselves in duty bound to avenge it in an equally public manner.

Mr. Seeman says:

I heard of a white man, who, being asked how many brothers and sisters he had, frankly replied, “ten.” “But that could not be,” was the rejoinder of the natives, “one mother could scarcely have so many children.”

When told that these children were born at annual intervals, and that such occurrences were common in Europe, they were very much shocked, and thought it explained sufficiently why so many white people were “mere shrimps.” After childbirth, among the Fijians, husband and wife separate and live apart for three and even four years, “so that no other baby may interfere with the time considered necessary for suckling the children, in order to make them strong and healthy.”⁷⁸

Through such wise regulations as these, governing the sexual relations, the drain on the vital forces observed among the women of civilized countries is avoided, and it was doubtless to these rules and others of a similar character that women, throughout untold ages of human existence, were enabled to maintain a position of independence and supremacy. We are informed that among the Fijians the birth of a child is cause for a perfect jubilee; that parental and filial affection is among the manifest virtues of this people. After referring to the truthfulness and honesty of the Dyaks of Borneo, Mr. Wallace says that “in several matters of morality they rank above most uncivilized, and even above many civilized, nations. They are temperate in food and drink, and the gross sensuality of the Chinese and Malays is unknown among them.”⁷⁹ Although the usual checks to population are absent among the Dyaks—namely, starvation, disease, war, infanticide, and vice,—still the women in the Dyak tribe rarely had more than three or four children. In a village in which there were one hundred

and fifty families, in only one of them were there six children, and only six with five children.

In whatever direction we turn, evidences are abundant going to prove that under simpler and more natural conditions, and before corrupted by our later civilization, mankind were governed largely by the instincts developed within the female constitution, and that long after her supremacy over the male was lost, the effects of these purer conditions were manifest in the customs, forms, and usages of the people.

From the evidence at hand it seems more than likely that many of the extant tribes have at some remote period been civilized, and that through some natural catastrophe, the unfavourable conditions of climate and soil, or some other equally disadvantageous cause, they have again sunk to a low plane of existence from which they have been unable to rise. From available facts one is almost led to believe that at a period in the remote past, and while living under purer conditions, a high stage of civilization was reached, a civilization which in many respects was equal if not superior to that of the present. Be this as it may, whenever the environment of a people is such that after having reached a certain stage it is unable to advance, it does not remain stationary, but on the contrary follows a line of retrogression; or, whenever the conditions of a race or tribe are such that the higher faculties which tend towards progress lie dormant, the lower forces which incline toward retrogression and which are peculiarly active in low organisms still continue in operation.

Although the social arrangement of the native Australians seems to be founded on classes based on sex—the earliest form of society—still we find them practising polygamy and monogamy side by side, at the same time securing their wives by capture in exactly the same fashion as did the early Greeks and Romans. It is apparent, therefore, that although this people have not been able to advance in the arts of life, as far as the relations of the sexes are concerned they have taken about the same course as have all the other tribes and races in which the supremacy of the male has been gained. For unknown reasons, during thousands of years, the developing agencies have been quiescent, hence no check to the animal instincts has been interposed; the Australians have therefore departed widely from the conditions which surrounded early human society—conditions under which

the maternal instincts developed in the lower orders of life were still sufficiently strong to guard the constructive processes and to continue the chain of uninterrupted progress.

As among the lowest existing tribes—peoples which during countless ages have been unable to advance—only the ruder elements in the human composition have been developed, it is plain that from these tribes little if any information concerning an earlier or more natural age, when the animal instincts were controlled by the higher characters developed in human nature, may be obtained; but from those peoples within the several successive stages of development whose environment has been such as to admit of some degree of improvement in the arts of life, and in whom therefore the higher characters developed in their mute progenitors have not been in a state of retrogression, may be obtained a clue to many of the processes by which our present social fabric has been raised. Among such peoples will be retained certain symbols, habits, and traditions representing former modes of life, from which may be reconstructed much of the previous history of the race. For instance, by means of the symbol of wife-capture, a form of marriage which is universal among tribes in a certain stage of development, has been furnished much trustworthy information relative to the institution of marriage and the development of the modern family. It matters not that the origin of these symbols is so remote that their true significance is lost by the peoples who practise them, they nevertheless repeat with unerring fidelity the past experiences of the race and reveal the origin of later institutions.

As the various tribes and races of mankind have probably sprung from a common progenitor, and as the “nerve cells in the brain of all classes and orders have had the same origin,” their development, although not identical as to time and manner of detail, has been similar in outline and in general results; so it is thought that a correct knowledge of the development of any tribe or race from savagery to civilization must necessarily involve the general history of all the tribes and races of mankind.

CHAPTER III

THE GENS—WOMEN UNDER GENTILE INSTITUTIONS

The earliest form of organized society was that into classes founded on the basis of sex,⁸⁰ under which the right of individuals to intermarry was restricted to one-fourth of the group. This division of the early race, and the regulations prohibiting conjugal relations with three-fourths the members of the related community, is thought to represent the first coercive abridgment or formal restriction of the then existing conjugal rights, and was inaugurated for the purpose of averting the evil effects arising from intercourse between near relations. Of this early form of society, however, and of the ages during which no organized form existed, little may be known except that which is suggested by the instincts and habits of the highest animals, and that which may be inferred from an investigation of the next higher organization, that into gentes on the basis of kin. Although untold ages intervened between the ancient division of society into classes founded on the basis of sex, and the higher and more important organization into gentes on the basis of kin, this last-named plan for the further development of mankind became universal at a comparatively early stage of human history.

By an investigation of the fundamental principles of the gens, we shall be enabled to observe the similarity existing between the instincts which governed early human action and those which controlled the highest orders of life below mankind. All facts bearing on the primitive conditions of the human race, which in these later times have been brought to light through the investigations directed toward peoples in the various stages of development, only serve to emphasize the importance of the altruistic principle in the formation of organized society and in the establishment of human institutions. Although the gens is the earliest form of organized society of which we have any accurate knowledge, still as within it were encysted the germs of all the principles of justice and equality which our better human nature is beginning again to recognize, and which must

characterize a higher stage of progress, a knowledge of its underlying principles is necessary to a correct understanding, not only of the past development of the race and all the existing human institutions, but of the course to be pursued toward the future advancement of mankind. Of the gens, Mr. Morgan says:

The gentile organization opens to us one of the oldest and most widely prevalent institutions of mankind. It furnished the nearly universal plan of government of ancient society, Asiatic, European, African, American, and Australian. It was the instrumentality by means of which society was organized and held together. Commencing in savagery, and continuing through the three sub-periods of barbarism, it remained until the establishment of political society, which did not occur until after civilization had commenced. The Grecian gens, phratry, and tribe, the Roman gens, *curia*, and tribe find their analogues in the gens, phratry, and tribe of the American aborigines. In like manner, the Irish *sept*, the Scottish *clan*, the *phrara* of the Albanians, and the Sanskrit *ganas*, without extending the comparison further are the same as the American-Indian gens, which has usually been called a clan. As far as our knowledge extends, this organization runs through the entire ancient world upon all the continents, and it was brought down to the historical period by such tribes as attained to civilization.... Gentile society wherever found is the same in structural organization and in principles of action; but changing from lower to higher forms with the progressive advancement of the people. These changes give the history of the development of the same original conceptions.^{[81](#)}

Early society, as observed under gentile institutions, was established on purely personal and social relations, or, on the basis of the relations of the individual to the rest of the community, a community in which each member could trace her or his origin back to the head of the gens who was a woman. Under gentile institutions, or until the latter stage of barbarism was reached, each individual, female and male, constituted a unit in an aggregation or community whose interests were identical, and as such, to a certain extent, was held responsible for the safety and general welfare of every member composing the group.

Extreme egoism, as it is the outgrowth of a later age, was unknown; and sympathy, the chief promoter of the well-being of mankind, a sprout from the well-established root, maternal affection, was the predominant characteristic of these primitive groups and the bond which held society together. Although the manner of reckoning descent had been changed from the female to the male line, the purely social organization of the gens, on the basis of kin, was, as has been observed, in operation at the beginning of our present civilization, at which time political society supervened, and individuals were no longer recognized through their relations to a gens or tribe, but through their relations to the state, county, township, or deme, to which institutions they must henceforward look for protection and for the redress of injuries done either to person or property.

Although, until a comparatively recent time, the writers who have dealt with the subject of primitive society have been of the opinion that the tribe constituted the earliest organization of society, and that the gens and the family followed, later investigations show conclusively that the gens, next to the remote and obscure division into classes, represents the oldest and most widely spread form of organized society, and that it was through segmentation or division of this archaic group that the tribe was formed.

The natural way in which a tribe is formed is from a family or group, which in time increases and divides into many households, still recognizing one another as kindred, and this kinship is so thoroughly felt to be the tie of the whole tribe, that even when there has been a mixture of tribes, a common ancestor is often invented to make an imaginary bond of union.^{[82](#)}

The gens, until a comparatively recent time in the history of the human race, was composed of a female ancestor, all her children and all the children of her daughters, but not of her sons. The sons' children and their descendants belonged to the gens of their respective mothers. The family, as it appears at the present time, was unknown. The gens was founded on thoroughly democratic principles, each individual composing the group, both female and male, having a voice in the regulation and management of all matters pertaining to the general government of the community. Any injury done to a gentilis was a wrong committed against the entire gens of

which she or he was a member, hence to her or his kinsmen each individual looked for protection and for redress of personal wrongs.

The fundamental doctrine of tribal life is unity of blood. Although the early groups, under the system of female descent, were united by the actual bond of kinship as traced through mothers, later, when descent came to be traced through fathers, kinship was to a considerable extent feigned. Kinship, under the system of male descent, meant not that the blood of the great father actually flowed in the veins of all the members of the group, but that under a pretence of unity of blood, they were bound together by common duties and responsibilities from which no one of them could escape. By the terms of the compact, every member must stand by her or his own clan. In fact, in all their movements, they must act as one individual; their interests were identical and the quarrel of any member of the group became the quarrel of all counted within the bond of kinship. If homicide were committed, they judged and punished the culprit, but if one of their number was slain by an outsider, the law of blood-feud, which demanded blood in return, was immediately put into execution. Of the gens Mr. Morgan says:

Within its membership the bond of kin was a powerful element for mutual support. To wrong a person was to wrong his gens; and to support a person was to stand behind him with the entire array of this gentile kindred.⁸³

Although in the later ages of gentile government, all the members of a group were not necessarily bound by blood, from the nature of the rights conferred, and the obligations imposed, the bond uniting them was doubtless stronger than that which now unites mere kindred. Of this tie uniting early groups J. G. Frazer says:

All the members of a totem clan regard each other as kinsmen or brothers and sisters, and are bound to help and protect each other. The totem bond is stronger than the bond of blood or family in the modern sense.⁸⁴

As Arabia, at the time of Mohammed, was still under gentile organization, there is perhaps at the present day no country which affords a

better opportunity for the study of several of the successive stages of human development. At the time indicated, the entire Arabian peninsula was composed of a multitude of groups varying in civilization, which were bound together by common privileges, obligations, and responsibilities and by a real or pretended bond of kinship traced through males.

In early Arabia a group bound together by a real or feigned unity of blood was the type or unit of society. Sometimes a confederation of these smaller groups was formed, but so strong was the bond between the more closely related groups that they soon broke up into their original units. The genealogists assert that these groups which were patriarchal tribes founded on male descent are subdivisions of an original stock.

At the time of the Prophet the Arabians claimed to trace their descent from two brothers the sons of Wâil. Prof. W. Robertson Smith informs us, however, that the name of one of these “brothers” is a feminine appellation and that it is the designation of a tribe and not of a person. He says: “The gender shows that the tribal name existed before the mythical ancestor was invented,” and adds: “The older facts down to the time of Al-Farazdac personify Taghlib as the daughter not the son of Wâil. It is not unlikely that the mythical legend of Taghlib and Bakr originated at a time when the female principle in human affairs and in the Deity was beginning to give place to the male.”⁸⁵

Within the traditions of the oldest races of which we have any account, are evidences of a desperate struggle between two races or between the followers of two opposing principles. In all parts of Arabia “these two races maintained their ancestral traditions of bitter and persistent feud.”

Although in Arabia, in the time of the Prophet, descent was traced in the male line, the evidence is almost unlimited, going to show that it was not always so, but, on the contrary, that at an earlier age, relationships were reckoned through women, mothers being the recognized heads of families and tribal groups. In his work on *Kinship and Marriage in Early Arabia*, Prof. W. R. Smith says:

If a kinship tribe derives its origin from a great father, we may argue with confidence that it had the rule that children were of their father's

tribe and kin; while on the other hand if we find, in a nation organized on the principle of unity of tribal blood, tribes which trace their origin to a great mother instead of a great father, we can feel sure that at some time the tribe followed the rule that the children belong to the mother and are of her kin. Now among the Arabs the doctrine of the unity of tribal blood is universal, as appears from the universal prevalence of the blood-feud. And yet among the Arab tribes we find no small number that refer their origin to a female eponym. Hence it follows that in many parts of Arabia kinship was once reckoned not in the male but in the female line.

In reply to the suggestion that the several families of polygamous fathers might be designated by the names of their several mothers, Professor Smith observes:

The point before us, however, is not the use of the mother's name by individuals for purposes of distinction, but the existence of kindred groups whose members conceive that the tie of blood which unites them into a tribe is derived from and limited by descent from a common ancestress. That the existence of such a group proves kinship through women to have been once the rule is as certain as that the existence of patronymic groups is evidence of male kinship. In most cases of the kind the female eponym is mythical, no doubt, and the belief in her existence is a mere inference from the rule of female kinship within the tribe, just as mythical male ancestors are inferred from a rule of male kinship. But even if we suppose the ancestress to be historical, the argument is much the same, for where the bond of maternity is so strong that it binds together the children of the same mother as a distinct kindred group against the other children of their father, there also we may be sure that the children of one mother by different fathers will hold together and not follow their father. And this is the principle of female kinship.^{[86](#)}

It is stated that the designation of tribal unity by a feminine appellation "is not an arbitrary fiction of later facts," but that it is "one of the old standing figures of Semitic speech." In Hebrew, *em*, which means mother, means also stock, race, or community.

The name for a tribal group in Arabia was *hayy*, a term which indicates life. It is observed that in Hebrew and Arabic *hayy* is used in the same sense. “*Hawwa* is simply a phonetic variation of *hayy* with a feminine termination,” and “Eve, or *Hawwa*, is so called because she is the mother of all living, or, more literally, of every *hayy*.” We are given to understand that, originally, there was no rule of reckoning kinship in Arabia except by the female line, and that the change in descent from the female to the male line affected society to its very roots.

There seems to be little, if any, doubt that a system of reckoning descent through women once prevailed throughout all the tribes and races of mankind. In Greece, as late as the beginning of the historic period, traces of this early custom are to be observed, and, indeed, at the present time, among many peoples, evidences of it are still extant. The fact that throughout an earlier age of human existence descent and all the rights of succession were traced through women, is at the present time so well established as to require no detailed proofs to substantiate it. Noting this custom among early races, and observing also the natural conclusions to be drawn from such a state of society, a few writers who have dealt with the subject of primitive races have taken much pains to show that it does not naturally follow that under these usages the influence of women was supreme; and their theories to explain this (to them) no doubt singular phenomenon show the extent to which prejudice and long-established habits of thought have influenced their investigations. On this subject C. Staniland Wake remarks:

There is strong reason for believing that the practice of tracing kinship in the female line was very widely observed from a very early period, but this is very different from the establishment of the supremacy of women. Where this was found it was due to the development of the gentile institution and the female kinship which accompanied it, on which, indeed, that institution was founded.^{[87](#)}

If, however, during the earlier ages of human existence a system of kinship through women had been established which was able to produce the gentile institution, or, if this institution, which was “founded” on female kinship and dependent upon it, was able through untold ages to direct all the

processes of evolution, even though no other evidence were at hand to prove it, then women's influence must have been well-nigh supreme.

So deeply intrenched has become the idea of woman's subjection that it is impossible for many male writers to contemplate a state of society in which women are not dominated and controlled by men.

Mr. Herbert Spencer's theory to explain the universal system of kinship traced through woman involves the same idea of woman's subserviency to man, especially in the sexual relation, and is an illustration of the reasoning usually employed in dealing with this subject.

Although "the very lowest races now existing, Fuegians, Australians, and Andamanese, show us that, however informally they have originated, sexual relations of a more or less enduring kind exist," he is certain that among the earliest races a state of "lawlessness" must have prevailed and that "promiscuity" must have been the rule among them; and this too notwithstanding the fact that among the lower orders of life from which man has descended, and among the earliest races of mankind the female chooses her mate and refuses to pair with any individual except the one of her choice. To account for the universal system of reckoning descent through the female, Mr. Spencer says that as the connection between mother and child is more "obvious" than that existing between the father and his offspring the custom arose of reckoning descent through females.⁸⁸ The fact is observed that maternal affection without which organized society would have been impossible, and which alone can explain the system of kinship traced through women, is entirely ignored by Mr. Spencer.

Noting the reasoning employed by many writers to prove that in the earliest ages of human existence, the maternal bond was ignored, and that the child was accounted as being related only to the group, Mr. Darwin remarks:

But it seems almost incredible that the relationship of the child to its mother should ever be completely ignored, especially as the women in most savage tribes nurse their infants for a long time, and as the lines of descent are traced through the mother alone, to the exclusion of the father.⁸⁹

We must bear in mind that under archaic usages not only did mothers nurse their infants two, three, and even four years, but that maternity was the bond which held together related groups and the source whence proceeded all property rights and tribal honours; also, that under the system of female kinship, male parentage was known but habitually disregarded. Notwithstanding all this, Mr. Spencer can see no reason for concluding that in the most primitive groups there were no “individual possessions of women by men.”⁹⁰

The late Sir A. Smith, who had travelled widely in South Africa and was acquainted with the habits of savages there and elsewhere, expressed the strongest opinion that “no race exists in which woman is considered as the property of the community.”⁹¹ The reasoning employed by Mr. Spencer to disprove the early supremacy of women seems scarcely to justify his lofty pretensions to intellectual greatness.

In a state of society in which women were the recognized heads of families and eponymous groups where children took the mother’s name, and in which all rights of succession were traced through them, it is reasonable to suppose that female influence was in the ascendancy over that of the male, and especially so as primitive human beings were largely controlled by instincts inherited from the orders of life in which the female chooses her mate and controls the sex-functions.

A knowledge of the customs and tribal usages of the Iroquois Indians throws much light on the early position of women. When this tribe first came under the observation of Europeans it was in the first stage of barbarism, and as the manner and order of development of the various races of mankind are said to be substantially the same, and as many of the facts connected with the history of this truly interesting people through nearly three ethnical periods are accessible, it is thought that by it, as well as by the Arabians, is afforded an excellent opportunity for the study of the general history of mankind during these periods. To Mr. Morgan we are indebted for the results of a thorough research into the customs, manners, and laws of this people.

Through a knowledge of the rights, privileges, and obligations which were conferred and imposed on the members of the Iroquois gens while in

the second state of barbarism, we are enabled to perceive the principles of true democracy upon which gentile institutions are based; and this is important, for the reason that later in this work I intend to trace the decline of those principles of liberty and equality established under female influence and to show the reasons for the subsequent rise of monarchy, aristocracy, and slavery.

The rights, privileges, and obligations of the Iroquois tribe of Indians, as enunciated by Mr. Morgan, are as follows:

The right of electing its sachem and chiefs. The right of deposing its sachem and chiefs. The obligation not to marry in the gens. Mutual rights of inheritance of the property of deceased members. Reciprocal obligations of help, defence, and redress of injuries. The right of bestowing names upon its members. The right of adopting strangers into the gens. Common religious rites. A common burial place. A council of the gens.⁹²

As this writer truly remarks: "These functions and attributes gave vitality as well as individuality to the organization, and protected the personal rights of its members."

Eligibility to the office of chief was based on personal merit, and continuance in office depended on the acknowledged fitness of the individual occupying it. The qualifications required for this office were personal bravery, ability to lead, and eloquence in council. The chief exercised no kingly authority over the tribe by which he was appointed; on the contrary, his personality was respected and his counsels heeded, not because of his official prerogatives, but on account of the qualities by which his character was dignified; therefore so soon as he proved himself unworthy of the trust confided to him he was deposed by the same agency which had elected him. Hence may be observed the truly democratic character of the gens.

Concerning the position occupied by women, and the influence which they exerted in the management of the clan, Ashur Wright, who was for many years missionary to the Senecas, in 1873, wrote to Mr. Morgan the following:

As to their family system when occupying the old long houses, it is probable that some one clan predominated, the women taking in husbands, however, from the other clans; and sometimes, for a novelty, some of their sons bringing in their young wives until they felt brave enough to leave their mothers. Usually the female portion ruled the house, and were doubtless clannish enough about it. The stores were in common; but woe to the luckless husband or lover who was too shiftless to do his share of the providing. No matter how many children or whatever goods he might have in the house, he might at any time be ordered to pick up his blanket and budge; and after such orders it would not be healthful for him to attempt to disobey. The house would be too hot for him; and, unless saved by intercession of some aunt or grandmother, he must retreat to his own clan; or, as was often done, go and start a new matrimonial alliance in some other. The women were the great power among the clans, as everywhere else. They did not hesitate, when occasion required, “to knock off the horns,” as it was technically called, from the head of a chief, and send him back to the ranks of the warriors. The original nomination of the chiefs also always rested with them.⁹³

In the Lower Status of barbarism we find intermarriage within the gens prohibited, and the obligation not to marry those accounted as kin as strong as a religious duty.

Although during the latter ages of savagery the idea of property was slightly developed, it is thought that it lay nascent until the latter part of the first period of barbarism. Indeed, until the first stage of barbarism was reached, the idea of personal possession had gained only a slight foothold in the mental constitution of mankind. Egoism, selfishness, or the desire to better one’s individual condition at the expense of the rest of the gens was unknown. All lands were controlled by the group, and as the property of early society consisted for the most part of personal effects and proprietary rights in communal houses and gardens, one of the most fruitful causes for dissensions in more advanced stages of society was avoided. Under primitive conditions, quarrels arising over disputed ownership within the gens were unknown, and liberty, equality, and fraternity, the cardinal virtues

and principles of early society were able to flourish undisturbed by the as yet unheard of vices inherent in the excessive desire for property.

In reference to some of the small uncivilized communities which he visited, Mr. Wallace says that each man respects the rights of his fellow,

and any infraction of these rights rarely or never takes place. In such a community all are nearly equal. There are none of those wide distinctions of education and ignorance, wealth and poverty, master and servant, which are the product of our civilization; there is none of that widespread division of labour, which, while it increases wealth, produces also conflicting interests; there is not that severe competition and struggle for existence or for wealth which the dense population of civilized countries inevitably creates.⁹⁴

Under the archaic rule of the gens, at the death of a male, whether married or single, his possessions descended to his sister's children; while at the death of a female, her property, including her personal effects, was distributed among her sisters and her children and the children of her daughters, but the children of her sons were not included among her heirs. The sons' children belonged to the gentes of their respective mothers, and as descent and all the relationships to which rights of succession were attached were traced only in the female line, and as property until the middle of the Second Status of barbarism was strictly confined to the gens in which it originated, children could receive nothing from their fathers. Wives and husbands, as they belonged to separate gentes, received nothing from one another. In later times, when tribal honours were confined within certain families or groups, as descent and property rights were all traced in the female line, each male was dependent upon his female blood relations, not only for his common inherited privileges in the gens, but for any civil or military distinction to which he might attain.

Where female kinship prevails, a Rajah's son may become a hodman, taking the state of his mother—while the son of the Rajah's sister mounts the throne.⁹⁵

Among the Rocch tribe, a people among which descent is traced in the female line, a man goes on marriage to live with his wife and her mother, of

whose family he is a subordinate member.⁹⁶

A Rocch man goes, on his marriage, like the *beena* husband of Ceylon, to live with his wife and her mother; on his marriage, all his property is made over to his wife, and on her death her heirs are her daughters.⁹⁷

For the same reason that wives and husbands were debarred from sharing in each other's property, their bodies, or more properly speaking, their bones, were separated at death, as were also the bones of father and child. The bones of the children always rested beside those of the mother. It was impious to mix the bones of unrelated persons. To such an extent was the Motherright recognized under archaic usages that the child belonged exclusively to the mother and her relations, the father having no recognized proprietary right to his offspring. Indeed, so lightly was the paternal relation regarded that the father was supposed to have little if any interest in his own children.

Although the bond between a man and his offspring was weak, toward his sister's children, as they belonged to the same gens with himself, a considerable degree of manly interest was manifested; indeed, it has been stated that about the same solicitude was evinced by him for their welfare, as was shown at a later time by fathers for the members of their own household.

Observing the care manifested for a sister's children among various tribes, certain writers have declared that the relationship existing between a child and its mother's brother is more important than any other—that the brother is practically the head of his sister's family. However, if we bear in mind the relative positions of the sexes in primitive groups, that women controlled their homes, and that all the rights of succession were traced through them, we shall doubtless be led to the conclusion that mothers themselves were the real heads of their own families, and that although they may have delegated to their brothers, who until marriage were permitted to reside with them, certain manly offices, they nevertheless reserved to themselves the exclusive right to the control and management of their own households. As the land belonged to the gens, and as the gentes were controlled by women, mothers were absolutely independent.

Each child received a name soon after birth, but at the age of sixteen or eighteen this name was discarded and another adopted. Special rights were thus conferred and specified obligations were imposed. On receipt of this name, the incumbent took upon himself all the duties and responsibilities devolving upon a member of the group and by it was entitled to all its rights and privileges. The greatest precautions were taken with respect to the adoption of names. The office of naming the different members belonged to the female relations and the chiefs. We are informed that the mother might, if she chose, transfer her child to another gens. This was accomplished by simply giving it the name of the gens in which she desired its adoption. It is claimed that among the Shawnees and Delawares the mother claimed the right to transfer her child to another gens than her own.⁹⁸ It would seem from this, that among certain tribes, the mother, if she desires, may transfer her child to the gens of its father. It is observed, however, that the transference of a child from its mother's gens is a "wide departure from archaic usages, and exceptional in practice."

It has been shown that under early usages wealth was never transferred from the gens in which it originated; but later, when property began to be claimed by individuals, and wealth was amassed in the hands of males, it is not unlikely that mothers, considering only the future welfare of their children, in case the father was rich and powerful, would occasionally take advantage of their established privileges to remove their children to his gens, in order that they might share in his possessions.

Something of the humanity practised in early groups may be observed in the custom of adoption, which, at a certain stage in their development, prevailed among them. In the earlier ages of gentile institutions, women and children taken prisoners in war, were usually adopted into some gens. Adoption not only conferred gentile rights, but also the nationality of the tribe. A person adopted into a gens was treated ever afterwards as though born within the group. "Slavery which in the Upper Status of barbarism became the fate of the captive, was unknown among tribes in the Lower Status in the aboriginal period."⁹⁹

According to Mariner:

It is customary in the Tonga Islands for women to be what they call mothers to children or grown-up young persons who are not their own, for the purpose of providing them, or seeing that they are provided, with all the conveniences of life.^{[100](#)}

According to Mr. E. J. Wood, among the Kaffirs, although the men inherit the property, their influences being in the ascendancy, every woman has someone who acts as her father whether her own father be living or not. Kaffir law provides for the protection of all women, and so long as a male relation lives a girl has a protector. It goes even farther than this, and protects women who have been bereft of all their male relations. For such as these provision is made for their adoption into other groups, in which case, although they are received as dependents, they are protected as daughters.^{[101](#)}

This practice of adoption is observed among various peoples. Among certain tribes in which descent is traced through women, a woman offers her breast to the person she is adopting, this being the strongest symbol of the unity of blood. Thus may be noted the fact that the fundamental idea, or principle, of tribal life is maternity, or the maternal instinct—that the uniting force which binds a child to its mother is the one which is supposed to unite the various members of a primitive group. So strongly has the maternal instinct as a binding principle taken root, that among certain peoples even where the manner of reckoning descent and the rights of succession have been changed from the female to the male line, whenever an individual wishes to be adopted into a gens he takes the hand of the leader of the group and sucking one of his fingers, declares himself to be his child by adoption; henceforth the new father is bound to assist him as far as he can.^{[102](#)} Adoption “by the imitation of nature” was practised by the Romans down to the time of Augustus.

It has been observed that under the matriarchal system the mother was the only recognized parent, hence, when the father began to assume the rights and prerogatives which had hitherto belonged only to her, in order to make valid his claim, it was thought proper for him to go through various of the preliminaries attendant on childbirth.

Of all the forms practised among lower races there is none, perhaps, which is more singular than is that of putting the father instead of the mother to bed in the event of the birth of a child. Concerning this custom, Mr. Tylor quotes from Klemm the following:

Among the Arawaks of Surinam, for some time after the birth of his child the father must fell no tree, fire no gun, hunt no large game; he may stay near home, shoot little birds with a bow and arrow, and angle for little fish; but his time hanging heavy on his hands, the most comfortable thing he can do is to lounge in his hammock.¹⁰³

Mr. Tylor quotes also from the Jesuit missionary, Dobrizhoffer, who gives the following account of the Abipones:

No sooner do you hear that the wife has borne a child, than you will see the Abipone husband lying in bed, huddled up with mats and skins, lest some ruder breath of air should touch him, fasting, kept in private, and for a number of days abstaining religiously from certain viands; you would swear it was he who had had the child.

The custom of putting the father to bed when a child is born is called *la couvade*, and traces of it are yet to be found in France. It is also practised among the Basques, and according to C. Staniland Wake, was anciently observed in Corsica, among the Iberians of Spain, and in the country south of the Black Sea. It is still practised in Southern India, in Yunnan, in Borneo, in Kamchatka, and in Greenland. It is said also to be in use among the various tribes in South America.¹⁰⁴ The persistency of this practice shows the importance formerly attached to the maternal functions, and, as has been suggested, was doubtless inaugurated at a time when descent was being changed from the female to the male line.

It was perhaps in the latter part of the Middle Status of barbarism that descent and the rights of succession began to be traced through males. When, through causes which will be noticed later in this work, property began to accumulate in the hands of men, children became the recognized heirs of their fathers and the foundation for the present form of the family was laid. However, long after descent began to be reckoned through males, absolute paternity was not necessary to fatherhood. During the earlier ages

of male supremacy, fatherhood, like brotherhood, was a loose term and signified simply the head of a house, or the “lord” or owner of the mother. It mattered little whether a man had previously lent his wife to a friend, or whether he had shared her favours with several brothers, all the children “born on his bed” belonged to him and were of his family.

Later in these pages will be observed the fact that the change in reckoning descent, which occurred at a comparatively late period in the history of the human race, is directly connected with the means of subsistence. So long as land was held in common by the members of the gens, and so long as women were able to manage the means of support, their independence was secure, and they were able to exercise absolute control over their own persons, their homes, and their offspring. Under these conditions men were obliged to please the women if they would win their favours.

From facts which have been demonstrated by various writers on the subject of the early conditions of the human race, it is more than probable that women were the original tillers of the soil, and that, during the first period of barbarism, while the hunters and warriors were engaged in war and the chase, occupations best suited to their taste, women first discovered the art of producing farinaceous food through cultivation, and through this discovery a hitherto exclusive diet of fish and game was changed for a subsistence in part vegetable.

It is conjectured also that the first domestication of animals was brought about through a probable “freak of fancy.” That individuals among these animals were first caught by hunters, conveyed by them to their homes, and there tamed through the tenderness and sympathy of women, is considered more than likely. There are, however, so far as I know, no actual facts upon which to base such a conclusion.

The increase of subsistence through horticulture and the domestication of animals marks an important era in the history of mankind. By this means the human race was enabled to spread itself over distant areas, and through the improved condition of nutrition alone, by which the physical conditions were improved and the mental energies strengthened, the arts of life were multiplied and the course of human activities directed into higher and more

important channels. Indeed, through the numerous benefits derived from the one source of increased and improved subsistence, the entire mode of life was changed or materially modified.

The religious idea, which subsequently comprehended a complicated system of mythology based on phallic worship, at this early age, consisted simply of a recognition of the bounties of earth. The principal office connected with the religious ceremonies of the Iroquois tribe of Indians, at the stage of development in which it was first known to Europeans, seems to have been “Keeper of the Faith,” a position occupied alike by both sexes. The Keepers of the Faith were chosen by the wise members of the group; they were censors of the people, with power to report the evil deeds of persons to the council. “With no official head, and none of the marks of a priesthood, their functions were equal.”¹⁰⁵ For the most part, their religious services consisted of festivals held at stated seasons to celebrate the return of the bounties of Nature. A notable fact in connection with this subject is, that during the earlier ages of barbarism the religious idea was thoroughly monotheistic, and idolatry was unknown, religious worship, for the most part, consisting of a ceremony of thanksgiving, with invocations to the Great Mother-Nature to continue to them the blessings of life. As altruism waned and egoism advanced, however, supernaturalism, or a belief in unseen forces, became more and more pronounced, until, in the Latter Status of barbarism, when the supremacy of man had become complete, the gens became merely the “centre of religious influence and the source of religious development.”

The earlier governmental functions were administered through a council of chiefs elected by the gentes. The thoroughly democratic character of the gens may be observed in the fact that any member, female or male, who desired to communicate with the council on matters of public interest, might express her or his opinion either in person or through an orator of her or his own selection.¹⁰⁶ Hence, we observe that government originated in the gens, which was a pure democracy.

Regarding the council of the gens, Mr. Morgan remarks:

It was a democratic assembly because every adult male and female member had a voice upon all questions brought before it. It elected and

deposed its sachem and chiefs, it elected Keepers of the Faith, it condoned or avenged the murder of a gentilis, and it adopted persons into the gens. It was the germ of the higher council of the tribe, and of that still higher of the confederacy, each of which was composed exclusively of chiefs as representatives of the gentes....

All the members of an Iroquois gens were personally free, and they were bound to defend each other's freedom; they were equal in privileges and in personal rights, the sachem and chiefs claiming no superiority; and they were a brotherhood bound together by the ties of kin. Liberty, equality, and fraternity, though never formulated, were cardinal principles of the gens. These facts are material because the gens was the unit of a social and governmental system, the foundation upon which Indian society was organized.... At the epoch of European discovery the American Indian tribes generally were organized in gentes with descent in the female line. The gens was the basis of the phratry, of the tribe, and of the confederacy of tribes.¹⁰⁷

From the foregoing it would seem that the gens—the earliest organization of society of which we have any accurate knowledge—was founded on the “mother-right” or on the supremacy of women. We are assured that the gentile organization is not confined to the Latin, Grecian, and Sanskrit-speaking tribes, but that it has been found “in other branches of the Aryan family of nations, in the Semitic, Uralian, and Turanian families, among the tribes of Africa and Australia, and of the American aborigines.”¹⁰⁸

A tribe was composed of several gentes, the chiefs of which formed the council. This council was invested with the power to declare war and to regulate terms of peace, to receive embassies and make alliances; it was in fact authorized to perform all the governmental functions of the tribe. The duties performed by the council of chiefs may be regarded as the first attempt at representative government. In process of time, as the affairs of the tribe became more complicated, a need arose for a recognized head, one who when the council was not in session could lead in the adjustment of matters pertaining to the general interest of the group. In response to this demand, one of the sachems was invested with a slight degree of authority over the other chiefs. Hence arose the military chieftain of the Latter Status of barbarism. That the powers delegated to the incumbent of this office

differed widely from those of a modern monarch, is shown in the fact that as he had been elected by the members of the group he could by them be deposed. We have seen that the powers exercised by sachem and chief were alike transmitted through women. The mother is the natural guardian of the family; so soon therefore as the actions of the leaders of the group were not in accord with those principles of equality and justice which had characterized society since its organization, they were deposed, or, as in the case of the Senecas described by Ashur Wright, they had their "horns knocked off" through the influence of women.

At the head of the family, or gens, producing and controlling the principal means of subsistence, and forming the line of descent and inheritance, women, until the closing ages of the Middle Status of barbarism, were without doubt the leading spirits, and thus far the progress of mankind had been in strict accord with those principles which since the separation of the sexes had governed development.

In process of time, however, the simple form of government which has been described was found inadequate to meet the demands arising from the more complicated requirements of increasing numbers and the general growth of society; therefore, during the opening ages of the Latter Status of barbarism, a form of government was evolved which was better suited to their changed conditions. When the idea of a coalescence of tribes, or of a combination of forces for common defence had taken root, and when under such confederation the council of chiefs had become co-ordinated with a military leader for the general management and defence of the community, it was thought that an important step had been taken in progressive governmental functions. Yet, along with the higher development of the governmental idea is to be observed also a growing tendency toward the usurpation of power. Scarcely was the office of military chieftain created, than we find the people inaugurating measures with which to protect themselves against encroachments upon their liberties, and devising means whereby they might be enabled to check the personal ambition of their leaders.

The extreme egoism developed within the male constitution was already manifesting itself in the excessive greed for gain, and in the inordinate thirst for military glory; hence, as a safeguard against usurpation, in the earliest

stages of the Latter Status of barbarism, we find the tribe electing two military chieftains instead of one, two leaders invested with equal powers and responsibilities and subjected to the same restrictions and limitations in the exercise of authority. The Spartan government upon its first appearance in history is characterized by the existence of two war-chieftains, who, by historians of later ages, have been designated as kings; a closer investigation, however, of the functions performed by them shows that they were lacking in nearly all the prerogatives which characterize a modern sovereign.

So jealously had the rights of the people been guarded that the *basileus* or war-chief of the Latter Status of barbarism, who is said to represent the germ of our present king, emperor, and president, had not succeeded in drawing to himself the powers exercised by a monarch of modern times. The selection of a military leader, during the Latter Status of barbarism, doubtless represents the first differentiation of the civil from the military functions of government, and indicates a virtual acknowledgment of the fact that society had outgrown the primary and more simple form of government administered by the council of chiefs.

The third stage in the development of the idea of government was represented by a council of chiefs, a military commander, and an assembly of the people. In this further growth of the administrative functions may be discovered the same solicitude for individual liberty and the rights of the community which had characterized the former stage of development, and also the fact that still greater precautions were deemed necessary to insure the people against tyranny and the usurpation of their established rights. The council of chiefs, although representing a pure democracy, and coordinated with two military chieftains, between whom was an equal division of power and responsibility, was found to be an insufficient safeguard against despotism; hence the measures devised for the management of the confederacy must henceforth be subjected to an Assembly of the People, which, although of itself unable to originate or propound any plan of government, was invested with the power to accept or reject any measures offered for adoption by the council.

The gens was able to carry mankind through to the opening ages of civilization, at which time the council of chiefs was transformed into a

senate, and the Assembly of the People assumed the form of the popular assembly, from which have been derived our present Congress and the two houses of the English Parliament.

By a careful study of the growth of government, it is discerned that liberty, fraternity, and equality were the original and natural inheritance of the human family, and that tyranny, injustice, and oppression are excrescences which subsequently fastened themselves upon human institutions through the gradual rise of the egoistic principle developed in human nature. We have seen that until the beginning of the Latter Status of barbarism, the gens constituted a sovereign power in the tribe; women controlled the gens, and sachem and chief were alike invested with the authority necessary for leadership because they could trace their descent to some female ancestor who was the acknowledged head of the people, and whose influence and patronage must have extended over all the individuals included within the recognized bond of kinship.

With the deposing power in the hands of women, and with the precautions which were taken by them against injustice or usurpation of rights, it is plain that unless some unusual or unprecedented circumstances had come into play, they never could have lost that supremacy which, as the natural result of their development, had been maintained by females since the separation of the sexes.

CHAPTER IV

THE ORIGIN OF MARRIAGE

I will be master of what is mine own;
She is my goods, my chattels; she's my house,
My household stuff, my field, my barn,
My horse, my ox, my ass, my everything.

The Taming of the Shrew.

It is an obvious fact that so far as her sex relations are concerned the position of civilized woman is lower than that of the female animal.

The question which presents itself at this stage of our inquiry is: What were the causes which led to the overthrow of female supremacy or what were the processes by which man gained the undisputed right to the control of woman's person? By contrasting the industrial position of women under gentile institutions with that of later times, after they had become the sexual slaves of men, it will be seen that the question of economics is deeply involved in this change. Although the early independence of women is now recognized, the fact of their industrial supremacy is for the most part ignored. Indeed the part performed by woman in originating and developing human industries is seldom referred to by those dealing with this subject.

As the activities best suited to the tastes of primitive man were confined to war and the chase, those occupations and pursuits which were necessary for the preservation of the group were carried on by women. The reason for this is obvious. Fathers were not regarded as being related to their offspring. The mother was the only recognized parent. As the land was held in common, women were economically free. They were absolutely independent of men for their support. Under these conditions the importance of women's position may be easily perceived.

Not only did women establish the first industries, but they invented and constructed the tools and implements by which these industries were carried

on. Women were the first tillers of the soil. It was they who conceived the idea of preserving seeds whereby farinaceous food might be produced. Corn was not only raised by them but by them it was ground and further prepared for use. They built clay granaries in which to store their food products and tamed the cat to protect them. Implements for tilling the soil, and devices for grinding the grain were invented by women. They were the first architects and the first builders. They first conceived the idea of making cloth with which to protect the body. They were the first spinners and the first weavers. They invented the first spindles and the first looms. Their attempts at decoration were the beginning of art.

As these pioneers in industry were without means of transportation other than their backs, some of the difficulties which they encountered may be readily perceived. It must be borne in mind that for primitive women there was no accumulated store of knowledge and no previous race-experiences; neither were there any established rules or precedents to guide them. All methods and utilities had to be worked out by woman's unaided brain. When the conditions under which these pioneers in industry laboured are considered, and when one reflects on the obstacles which must have presented themselves at every step along their untried pathway, it would almost seem that their early achievements were quite as remarkable as are those which have since been accomplished by men.

The fact is observed that woman assumed the rôle of protector and provider, not as is commonly asserted because she was compelled by man to become a beast of burden, but because she was the recognized guardian not only of infant life but of the public welfare. Later, after the primitive groups began to coalesce to form the tribe, after wife-capture became prevalent and men thereby secured the right to the control and ownership of individual women, a right which they still claim, then and not till then did women become beasts of burden. Then and not till then did man gain the right to the control of woman's person.

It is now known that wife-capture is the origin of our present form of marriage, and that the establishment of the family with man at its head rests on the same basis. It is also known that through forcible marriage and the economic conditions which it entailed, woman became a dependent, a mere appendage to her male mate. The dominion of man and the assumed

inferiority of woman are the direct results of the authority which he was able to exercise over her in the marital relation.

We have seen that prior to the decline of female influence women taken prisoners in war were not regarded as the legitimate property of their captors. On the contrary, female captives were adopted into the gens and invested with the same status of personal independence enjoyed by the original members of the group. Later, however, female prisoners began to be regarded as the special booty of their captors, and as belonging exclusively to them; and although in primitive times marriage outside the limits of related groups was prohibited, owing to the esteem in which military chieftains came to be held, this claim was at length allowed them. Any courageous young warrior, conscious of his popularity, might gather about him a band of his clansmen and march against a neighbouring tribe, the women taken prisoners during such expeditions being the special prizes of their captors.

These prisoners were entitled to none of the privileges of the community into which they were taken; and as the hostility felt toward unrelated tribes had become so strong as to be shared by women, the captive woman could no longer look for pity even from her own sex.

From this time in the history of the race may be traced the decline of woman's power and the subjection of the natural female impulses. As, at this stage, within the limits of their own tribe, women held the balance of power in their own hands, and as they still exercised unqualified control over their own persons, the acknowledged ownership of one woman, who, being a "stranger," was without power or influence, would be an object much to be desired, and one for which a warrior would not hesitate to brave the dangers of a hostile camp. Hence, female captives were in demand, and the women of warring tribes were sought after singly and in groups. In process of time wars for wives became general and under the new regime women had the fear of captivity constantly before their view as a condition more to be dreaded than death.

In the *Mahabharata* of India it is stated that formerly "women were unconfined and roved about at their pleasure, independent." Finally, marriage was instituted and a woman was bound to a man for life. One of

the eight forms of legalized marriage in the code of Manu was that of capture *de facto* and was called *Racshasa*. This particular form of conjugal union was practised exclusively by the military classes, among which, the women taken in battle were the acknowledged booty of their captors. A definition of this kind of marriage is as follows: “The seizure of a maiden by force from her house while she weeps and calls for assistance, after her kinsmen and friends have been slain in battle or wounded, and their houses broken open, is the marriage called *Racshasa*.”

Capture as the prescribed form of marriage for warriors may be traced through thousands of years and among various peoples. Of the three legalized forms of marital union in Rome, that by capture was the one in use among the plebeians, the patricians at the same time practising *Confarreatio* and *Usus*. In Arabia, as late as Mohammed’s time, the carrying off of women was recognized as a legal form of marriage.^{[109](#)}

That capture constituted a legal form of marriage among the Israelites, or that women taken captives in war were appropriated as sexual slaves, is shown by their religious history, in which the instructions given to the Lord’s chosen people after they had taken a city was to “smite every male thereof with the edge of the sword: But the women, and the little ones, and the cattle, and all that is in the city” they were to take unto themselves. This, it will be noticed, is to be done “unto the cities which are very far off,” and which “are not of the cities of these nations.”^{[110](#)}

When the Israelites 12,000 strong marched against the Midianites, they were commanded by Moses to slay all the males, adults and children, and all the women except the virgins. These virgins of whom there were 32,000 were to be spared and utilized as wives by the victorious Israelites. The fact will be noted that these women had been taken from their own people, hence they were wholly without influence or power. They were dependents and therefore subject to the will of their masters. They were sexual slaves or wives.

In Australia, among the North American Indians, the tribes of the Amazon and the Orinoco, in Hindustan and Afghanistan, marriage by actual capture is still practised, and many of the details connected with the *modus operandi* have been given by various writers. The following from Sir

George Gray, relative to this form of marriage as it exists at the present time among some of the native Australian tribes, is quoted by Mr. J. F. McLennan.

Although a woman give no encouragement to her admirers,

many plots are laid to carry her off, and in the encounters which result from these, she is almost certain to receive some violent injury, for each of the combatants orders her to follow him, and in the event of her refusing, throws a spear at her. The early life of a young woman at all celebrated for beauty is generally one continued series of captivity to different masters, of ghastly wounds, of wanderings in strange families, of rapid flights, of bad treatment from other females, amongst whom she is brought a stranger by her captor; and rarely do you see a form of unusual grace and elegance, but it is marked and scarred by the furrows of old wounds; and many a female thus wanders several hundred miles from the home of her infancy, being carried off successively to distant and more distant points.^{[111](#)}

In an account describing the search for wives by the natives of Sydney, Collins says:

The poor wretch is stolen upon in the absence of her protectors. Being first stupefied with blows, inflicted with clubs or wooden swords, on the head, back, and shoulders, every one of which is followed by a stream of blood, she is then dragged through the woods by one arm, with a perseverance and violence that it might be supposed would displace it from its socket. This outrage is not resented by the relations of the female, who only retaliate by a similar outrage when they find an opportunity. This is so constantly the practice among them that even the children make it a play game, or exercise.^{[112](#)}

By various travellers and explorers, the fact has been observed that certain symbols representing force in their marriage ceremonies are in use among nearly if not all extant tribes which have reached a certain stage of growth. To such an extent, in an earlier age, has the forcible carrying-off of women prevailed, that among most of these tribes a valid marriage may not be consummated without the appearance of force in the nuptial ceremonies.

In reference to these symbols, we have the following passage from Mr. McLennan:

Meantime, we observe that, whenever we discover symbolical forms, we are justified in inferring that in the past life of the people employing them, there were corresponding realities; and if, among the primitive races which we examine, we find such realities as might naturally pass into such forms on an advance taking place in civility, then we may safely conclude (keeping within the conditions of a sound inference) that what these now are, those employing the symbols once were. [113](#)

Among primitive tribes, the area controlled by each was small, therefore vigilance in maintaining their possessions was one of their chief duties, and hostility to surrounding tribes a natural condition. Subsequently, however, when friendly relations began to be established with hitherto hostile tribes, they are found entering into negotiations to furnish each other with wives. It was at this time that marriage by sale or contract was instituted, an arrangement by which the elder men in the tribe could be accommodated with foreign wives, at the same time that their own daughters and sisters became to them a source of revenue.

In Uganda many men obtain wives by exchanging daughters and sisters with each other. Of this practice C. Staniland Wake says:

This is not an unusual mode of proceeding in different parts of the world. The perpetuation of the monopoly of women enjoyed to a great extent by the older men of the tribe among the Australians is, according to Mr. Howitt, encouraged by those having sisters or daughters to exchange with each other for wives. [114](#)

Not unfrequently actual capture is practised side by side with fiction—violent seizure being in active operation among the same tribes at the same time with the symbol, the frequency of actual violence depending partly on the extent to which hostility prevails between the tribes, and partly on the degree of “uniformity established by usage in the prices paid for wives.” Among certain tribes, when a dispute arises concerning the price to be paid for a bride, if the man is able to seize the woman and carry her off to his

tent, the law recognizes her as his wife and nothing is left for the relations to do in the matter but to accept his terms as to the price.

The peoples among which actual capture is at present practised, and those among which wives are procured by sale or contract, represent two different stages in the development of the institution of marriage, and it is owing to this fact that the symbols used among the latter may be traced to the realities in which they originated.

Of the Bedouins of Mt. Sinai, Burckhardt says that marriage is a matter of sale and purchase, in which the inclination of the girl is disregarded.

The young maid comes home in the evening with the cattle. At a short distance from the camp she is met by the future spouse and a couple of his young friends, and carried off by force to her father's tent. If she entertains any suspicion of their designs she defends herself with stones, and often inflicts wounds on the young men, even though she does not dislike the lover, for, according to custom, the more she struggles, bites, kicks, cries, and shrieks, the more she is applauded ever after by her own companions.^{[115](#)}

In reference to the Mezeyne Arabs the same writer observes that a similar custom prevailed within the limits of the Sinai Peninsula, but not among the other tribes of that province.

A girl having been wrapped in the Abba at night, is permitted to escape from her tent, and fly into the neighbouring mountains. The bridegroom goes in search of her next day, and remains often many days before he can find her out, while her female friends are apprised of her hiding-place, and furnish her with provisions. If the husband finds her at last (which is sooner or later, according to the impression that he has made upon the girl's heart), he is bound to consummate the marriage in the open country, and to pass the night with her in the mountains. The next morning the bride goes home to her tent, that she may have some food; but again runs away in the evening and repeats these flights several times, till she finally returns to her tent. She does not go to live in her husband's tent until she is far advanced in

pregnancy; if she does not become pregnant, she may not join her husband till a full year from the wedding-day.^{[116](#)}

Cranz says that in Greenland “some females, when a husband is proposed to them will fall into a swoon, elope to a desert place, or cut off their hair.... In the latter case they are seldom troubled with further addresses.” The refractory bride is dragged

forcibly into her suitor’s house, where she sits for several days disconsolate, with dishevelled hair, and refuses nourishment. When friendly exhortations are unavailing, she is compelled by force and even with blows to receive her husband. Should she elope, she is brought back and treated more harshly than before.^{[117](#)}

Wherever friendly relations have been established between the tribe of the wife and that of the husband, he pays a price to her relatives for the privilege of removing her to his camp. This purchase price, together with the simulated hatred of the woman’s friends, signifies a sacrifice on the part of the wife and her family. In Nubia when a man marries he presents his wife with a wedding-dress, and gives her also a pledge for three or four hundred piastres, half of which sum is paid her in case of a divorce. Divorces, however, are very rare.^{[118](#)}

Among the Circassians, after the preliminaries have been settled by the parents, the lover meets his bride-elect by night in some secluded spot, and with the assistance of two or three of his best friends seizes her and carries her away. Sometimes the pretended capture takes place in the midst of a noisy feast. The woman is usually conducted into the presence of a mutual friend, where, on the following day, her friends, simulating anger, seek her and demand a reason for her abduction. Although the affair is usually settled at once by the bridegroom paying the accustomed price for his bride, custom requires that there shall be still further manifestations of anger on the part of her friends; so, on the following day, all the relatives of the bride, armed with sticks, proceed to the place where the bride is in waiting, there to meet the bridegroom and his friends who have come to carry off the bride. A sham fight ensues, in which the bridegroom and his party are always victorious. Among certain of the Arabian tribes the bridegroom must

force his bride to enter his tent, and in France, as late as the seventeenth century, a similar custom prevailed.

In describing a wedding dance in Abyssinia, Parkyns observes:

This dance is performed by men armed with shields and lances, who with bounds, feints, and springs attack others armed with guns, so as to approach them, and at the same time avoid their fire, while the gunners make similar demonstrations, and at last fire off their guns either in the air or into the earth, and then, drawing their swords, flourish them about as a finish.

Finally the bridegroom fires off a gun and immediately rushes across to where the bride and her female relations are stationed.^{[119](#)}

Tylor informs us that a Scandinavian warrior generally sought to gain his bride by force, that he conceived it beneath his dignity to win her by pacific means. That the affair might appear more heroic, he waited until the object of his choice was about to wed another, and was actually on her way to the nuptial ceremony, when with his friends he would surprise the wedding cortege, seize the bride, and carry her off. It has been said of Scandinavian marriages that they were matters of deep anxiety to the friends both of the bride and groom, who, until the wedding was over, remained at home in suspense fearing an attack of the kind already mentioned. It was customary for a party of young men to station themselves at the church door, and, as soon as the ceremony was completed, to carry the news to the homes of the wedded pair. "Within a few generations the same old practice was kept up in Wales, where the bridegroom and his friends, mounted and armed as for war, carried off the bride," and in Ireland they used even to hurl spears at the bride's people, though at such a distance that no one was hurt.^{[120](#)}

In the Amazon valley the bride is always carried away by violence. Among the Zulus, although a purchase price is paid for a woman, custom requires that a wife, after having been captured, shall make three attempts to return to her own home.

Of the marriage customs in ancient Sparta, Plutarch says: "In their marriages the bridegroom carried off the bride by violence."^{[121](#)} In Rome we

have the familiar example of the Sabine women, who were captured or carried off by force.

A notable fact in connection with the subject of capture is, that the mother of the bride, or, in case the mother is dead, the nearest female relative, is the individual who assumes the part of the principal defender in this ceremony. She it is who attempts to rescue the bride, and who more than any other mourns the fate of the captured wife. Among primitive peoples, with the exception of the symbol of wife-capture in marriage ceremonies, there is perhaps none more significant than that typifying the hatred of the mother for the captor of her daughter. Customs indicating estrangement or, actual aversion to sons-in-law, usually, if not always, accompany marriage by capture.

The fact that the change in the relative positions of the sexes, as indicated by the *sadica* and *ba'al* forms of marriage in Arabia, was not easily or speedily accomplished, is apparent not only in the symbols of wife-capture everywhere practised among peoples in a certain stage of development, but is strongly suggested also by the aversion found to exist among these same peoples between mothers-in-law and sons-in-law, whether appearing as a reality or as a symbol.

Among the Arawaks of South America, it is unlawful for the son-in-law to look upon the face of his mother-in-law. If they live in the same house a partition separates them, and if by chance they must enter the same boat, she must precede him so as to keep her back toward him.

Among the Caribs, all the women talk with whom they will, but the husband dare not converse with his wife's relations except on extraordinary occasions.¹²² Mr. Tylor refers to the fact that

In the account of the Floridian expedition of Alvar Nuñez, commonly known as Cabeza de Vaca, or Cow's Head, it is mentioned that the parents-in-law did not enter the son-in-law's house, nor he theirs, nor his brother-in-law's, and if they met by chance, they went a buckshot out of their way, with their heads down and eyes fixed on the ground, for they held it a bad thing to see or speak to one another.

It is observed by Richardson, an author quoted by Tylor, that among the Crees, while an Indian lives with his wife's family, his mother-in-law must not speak to or look at him. In some portions of Australia, "the mother-in-law does not allow the son-in-law to see her, but hides herself if he is near, and if she has to pass him makes a circuit, keeping carefully concealed within her cloak."

Among some of the tribes in Central Africa, from the moment a marriage is contracted, the lover may not behold the parents of his future bride. When a young man wishes to marry a girl, he dispatches a messenger to negotiate with her parents regarding the presents required and the number of oxen demanded. This being arranged, he may not again look upon the father and mother of his intended wife; "he takes the greatest care to avoid them, and if by chance they perceive him they cover their faces as if all ties of friendship were broken." We are told, however, that this indifference is only feigned, that they feel the same friendship as before, and in conversation extol one another's merit. Mr. Caillie says that this custom extends beyond the relations; if the lover is of a different camp, he must avoid all the inhabitants of the lady's camp, except a few intimate friends who are permitted to assist him in his love-making. A little tent is set up for him in the neighbourhood, under which he is to remain during the day. If he has occasion to cross the camp he must cover his face. He may not see the face of his intended throughout the day, but at nightfall he may creep silently to her tent and remain with her until the dawn. These clandestine visits are continued for a month or two when the marriage is solemnized. At the wedding festival the women collect round the bride singing her praises and extolling her virtues. [123](#)

Gubernatis is authority for the statement that, in many parts of Italy the bride is compelled to go through the process of weeping on her wedding-day, also for the fact that one of the marriage customs prevalent in Sardinia is identical with that which appeared among the plebeians at Rome, namely, the pretence of tearing the bride from the arms of her mother. [124](#)

From the facts which have been obtained relative to the practice of wife-capture, it is only natural to suppose that the mother of the captured wife would be her chief ally and defender; that such has been the case seems to be clearly shown by the symbols of distrust and aversion everywhere

manifested between mothers-in-law and sons-in-law among the various existing uncivilized races. The practice of wife-capture exists either as a reality or as a symbol entering into the marriage ceremonies among the tribes of Central Africa, the Indians of North and South America, in Australia, in New Zealand, in Arabia, in the hill tracts of India, among the Fuegians, and in the islands of the Pacific Ocean, and wherever this system is found the symbol of hatred between mother-in-law and son-in-law also prevails.

The simulated anger and sham violence connected with marriage ceremonies among friendly peoples, which are so far removed from a time when actual capture was practised as to be ignorant of the true significance of these symbols, show the extent to which marriage is based on the idea of force on the one side and unwilling submission on the other.

As the numerous Arabian clans in the time of Mohammed represented the varying stages of advancement from the second period of barbarism to civilization, the constitution of Arab society at that time affords an excellent opportunity for observing the growth of the institution of marriage, and the various processes by which the former supremacy of women was overthrown.

One of the principal objects of war at the time of the Prophet is said to have been the capture of women for wives, a practice which was recognized as lawful. Under Islam the custom of forcibly carrying off women for wives was universal and was carried on side by side with the system of marriage by contract or sale. The position of the captured woman, however, differed somewhat from that of the purchased wife. The former, having been forcibly carried away from her home, lost the protection of her friends, while the purchased wife, although she relinquished the authority which had formerly been exercised by women within the gens, and although she surrendered her person to her "lord," did not forfeit her right to the protection of her own family in case of abuse.

Although in Arabia, under the form of marriage by sale or contract, the wife lost the right to the control of property belonging to her own gens, she did not, as in Rome, forfeit her claim to the protection of her kindred. If she received ill treatment within the home of her husband, her relatives, who

were still her natural protectors, were bound to redress her wrongs. In Rome, on the contrary, under a system representing a later stage in the development of marriage, the wife was adopted into the stock of her husband whose rights over her person were supreme, at the same time that her kindred renounced the right to interfere in her behalf.

It is to the fact, that in early Arabia the wife never relinquished her hold upon her own relations, that we are to look for an explanation of the high social position of Arabian women. We are assured that it is “an old Arab sentiment, and not Moslem,” that women are entitled to the highest respect, and that as mothers of the tribe they “are its most sacred trust.”

According to Professor W. R. Smith in Mohammed’s time, in addition to the two forms of marriage mentioned, namely, that by capture and that by sale or contract, there existed also a more ancient form known as the *sadica*—a form of conjugal union which was a remnant of the matriarchal system. By observing the facts connected with this last-named institution, we shall be enabled to understand something of the position occupied by women during the earlier ages of human existence before wife-capture became prevalent.

Among certain tribes just prior to Islam, upon the event of marriage, the man presented the woman with a sum of money, which offering was simply an acknowledgment of the favour which she was conferring upon him. The husband went to live with the wife in her tent, and as the contract was for no specified length of time, he was at liberty to go whenever he tired of the conditions imposed on him by his wife and her relations. Any children, however, that were born as a result of this union belonged to the mother and became members of her *hayy*. If she desired him to go, she simply turned the tent around, “so that if the door had faced east it now faced west, and when the man saw this he knew that he was dismissed and did not enter.” In relation to these marriage customs Professor Smith says: “Here, therefore, we have the proof of a well-established custom of that kind of marriage which naturally goes with female kinship in the generation immediately before Islam.” Of this kind of marriage the same writer observes:

The *motā* marriage was a purely personal contract, founded on consent between a man and a woman, without any intervention on the

part of the woman's kin.... Now the fact that there was no contract with the woman's kin—such as was necessary when the wife left her own people and came under the authority of her husband—and that, indeed, her kin might know nothing about it, can have only one explanation: in *motă* marriage the woman did not leave her home, her people gave up no rights which they had over her, and the children of the marriage did not belong to the husband. *Motă* marriage, in short, is simply the last remains of that type of marriage which corresponds to a law of mother-kinship, and Islam condemns it, and makes it “the sister of harlotry,” because it does not give the husband a legitimate offspring, *i. e.*, an offspring that is reckoned to his own tribe and has rights of inheritance within it. [125](#)

Before the separation of the Hebrews and Aramæans, the wife remained within her own tent where she received her husband, the children of such unions taking her name and becoming her heirs. This kind of conjugal union is known to have been in existence in many portions of the world. In Ceylon it is designated as the *beena* marriage.

In ancient Arabia, not only did women control their own homes, but they owned flocks and herds, and were absolutely independent of male relations. As late as the fourteenth century of our era, although the women of certain Arabian tribes were willing to marry strangers, they never followed them to their homes.

Among the Bedouins it is a rare thing for a woman at marriage to leave her home and kindred. When a woman marries a man he settles among her kinsmen, and, as she presents him with a spear and a tent by way of dowry, it would seem that he is expected to join her relations and assist in the common defence. The marks of authority under gentile rule are the possession of a tent and a lance; yet we find that these are the objects which, under matriarchal usages, the wife tenders her husband when he enters her family; the first doubtless as a symbol of her protection, the second as indicating her authority and the services which he is expected to render her and her people. Until a late period in Rome it was the custom, during the solemnities of marriage, to pass a lance over the head of the wife in token of the power which the husband was about to gain over her. [126](#)

Under the two types of marriage—namely, *motā* and *ba'al*—the positions of women were so diametrically opposed that both could not continue, hence when under the pressure brought to bear upon them, women began to accept the *ba'al* form of marriage within their own *hayy*, *motā* unions were doomed. Of the more ancient form of marriage in Arabia, under which the woman chooses her mate, evidences of which are still extant in that country, and that by capture under which she becomes the slave of her lord, Professor Smith says:

There is then abundant evidence that the ancient Arabs practised marriage by capture. And we see that the type of marriage so constituted is altogether different from those unions of which the *motā* is a survival, and kinship through women the necessary accompaniment. In the one case the woman chooses and dismisses her husband at will, in the other she has lost the right to dispose of her person and so the right of divorce lies only with the husband; in the one case the woman receives the husband in her own tent, among her own people, in the other she is brought home to his tent and people; in the one case the children are brought up under the protection of the mother's kin and are of her blood, in the other they remain with the father's kindred and are of his blood.

All later Arabic marriages under the system of male kinship, whether constituted by capture or by contract, belong to the same type; in all cases, as we shall presently see in detail, the wife who follows her husband and bears children who are of his blood has lost the right freely to dispose of her person; the husband has authority over her and he alone has the right of divorce. Accordingly the husband, in this kind of marriage, is called not in Arabia only, but also among the Hebrews and Aramæans, the woman's "lord" or "owner," and wherever this name for husband is found we may be sure that marriage is of the second type, with male kinship, and the wife bound to the husband and following him to his home.^{[127](#)}

Notwithstanding the humane enactments of Mohammed in the interest of women, their position steadily declined, such enactments having been overbalanced by the establishment of marriages of dominion, by the growing idea that *sadica* or *motā* marriages were not respectable, and that

women could not depend upon their relations to take their part against their husbands. The history of religion shows that its growth has always followed the same course as have the ideas concerning the relative importance of the sexes. The god-idea and the fundamental doctrines of religion are always found to be in harmony with the established principles and ideas relative to sex domination and superiority. The religion of Mohammed was essentially masculine, all its principles being in strict accord with male supremacy; it is not, therefore, singular that when the weight of religion was added to the already growing tendency toward *ba'al* marriages that *sadica* marriages were doomed.

In Arabia, as elsewhere, the duties of the purchased wife were specific. The present which under the older form of marriage had been given to the bride as a love-token, or as an acknowledgment of the husband's devotion to her, subsequently took the form of a purchase price, and was claimed by her father and brothers as a compensation for the loss sustained by the group through the removal of her offspring, whose services belonged to their mother's people. In other words, the husband paid a price to the wife's relations for the right to raise children by her which should belong exclusively to his kin—children which should she remain within her own home would belong to her kindred. The wife was therefore removed to the husband's *hayy*, where, so far as the sexual relation was concerned, his rights over her were supreme.

We have observed that wherever the possessions of the gens continued to be the property of all its members, and were controlled by women, the man at marriage went to live with the woman; so soon, however, as men began to claim the soil, and property began to accumulate in their hands, the wife went to reside with her husband and his family as a dependent. Among various tribes, the form of marriage in use depends on the means of the contracting parties; if the man is able to pay to the woman's father or brothers the full price charged for her, she goes to him as his slave—she is his property as much as is his dog or his gun; if, however, he is unable to pay the amount charged, he goes to live with her and her family, and becomes their slave.

In Japan, among the higher classes, upon the marriage of the eldest son, his bride accompanies him to his paternal home; but, on the other hand,

when the eldest daughter marries, her husband takes up his abode with her parents. Eldest daughters always retain their own names, which their husbands are obliged to assume. As the wife of an eldest son becomes a member of her husband's family, and the husband of an eldest daughter joins the family of his wife and assumes her name, the eldest son of a family may not marry the eldest daughter of another family. Regarding the younger members of the household, if the husband's family provides the house, the wife takes his name, while if the bride's family furnishes the home the bridegroom assumes the name of the wife.^{[128](#)}

In the marriage customs of various nations, and in their ideas relative to the ownership and control of the home, may be observed something more than a hint of the principal causes underlying the decline of female power. Wherever women remain within their own homes, or with their own relations, they are mistresses of the situation; but when they follow the fathers of their children to their homes, they become dependents and wholly subject to the will and pleasure of their husbands.

It is plain, however, that under a system of marriage by sale or contract, although a woman might exercise little influence in the home of her husband, so long as her relations stood ready to defend her she would enjoy an immunity from abuse. The fact that a woman can count upon her relations for protection against her husband, shows plainly that in a certain stage of marriage by contract or sale, women are not the abject slaves which they have been represented to be. Although in the Fiji Islands a man may seize a woman and take her to his home, she does not remain with him unless agreeable to her inclinations.^{[129](#)}

Amongst the Abipones, a man, on choosing a wife bargains with her parents about the price. But it frequently happens that the girl rescinds what has been agreed upon between the parents and the bridegroom, obstinately rejecting the very mention of marriage.^{[130](#)}

Among the Charruas of South America, divorce is quite optional. In Sumatra, if a man carries off a virgin against her will, he incurs a heavy fine, or if a man carries off a woman under pretence of marriage, "he must lodge her immediately with some reputable family."^{[131](#)}

Although in the earlier ages of marriage by sale or contract, daughters were regarded as the property of their fathers, still that stage had not been reached at which women were accounted simply as sexual slaves. The Arabs practised marriage by sale or contract, yet they jealously watched over their women,—they “defended them with their lives and eagerly redeemed them when they were taken captive.” They thought it better to bury their daughters than to give them in marriage to unworthy husbands.¹³² According to the testimony of J. G. Wood, Kaffir women are very tenacious about their relations, probably, it is thought, for the reason that husbands are more respectful toward wives who have friends near them, than they are to those who have no relations at hand to take their part.¹³³ Usually among the Kaffirs, according to Mr. Shooter, although a man pays a price to the parents of the woman whom he wishes to marry, the affair is by no means settled; on the contrary, he must undergo the closest scrutiny by her before she will consent to accept him. Bidding him stand, she surveys first one side of him, then the other, the relations in the meantime standing about awaiting her decision. Upon this subject Mr. Wood remarks: “This amusing ceremony has two meanings: the first that the contract of marriage is a voluntary act on both sides; and the second, that the intending bridegroom has as yet no authority over her.”¹³⁴

Although under the system of marriage by sale or contract a woman has a voice in the selection of her husband, and although she can count on her kinsmen to protect her against abuse, still, practically, the contract brings the wife under the same condition as a captured wife; she follows her husband to his home, where, as a dependent, he exercises control over her person and her children. In Arabia prior to the time of the Prophet the wife could claim the protection of her kindred against her husband, yet the principle underlying marriage by contract and that by capture was the same, except that under the former the husband paid a price for the woman’s sexual subjection, while under the latter, not only in sexual matters, but in all others as well, he was her “lord” and master.

The Prophet says: “I charge you with your women, for they are with you as captives (*awânî*).” Professor Smith informs us that according to the lexicons *awânî* is actually used in the same sense as married women generally.¹³⁵ For long ages after *ba’al* marriages had been established, so

degrading was the office of wife that women of rank were considered too great to marry.

After relating some interesting accounts of certain practices in common with the custom of capture among the Brazilian tribes, Sir John Lubbock says:

This view also throws some light on the remarkable subordination of the wife to the husband, which is so characteristic of marriage, and so curiously inconsistent with all our avowed ideas; moreover it tends to explain those curious cases in which Hetairæ were held in greater estimation than those women who were, as we should consider, properly and respectably married to a single husband. The former were originally fellow-countrywomen and relations; the latter captives and slaves.^{[136](#)}

With the development of the egoistic principle, or when selfishness and the love of gain became the rule of action, the protection of her kindred, which in an earlier age a woman could count on against her husband, was withdrawn, and daughters came to be looked upon as a legitimate source of gain to their families. On this subject C. Staniland Wake remarks:

Women by marriage became slaves, and it was the universal practice for a man who parted with his daughter to be a slave to require a valuable consideration for her. Moreover, as a man can purchase as many slaves as he likes, so he can take as many wives as he pleases.^{[137](#)}

Thus arose polygamy.

In Rome, in the Latter Status of barbarism and the opening ages of civilization, woman, at marriage, forfeited all the privileges belonging to her as a member of her own family, while within that of her husband no compensatory advantages were granted her. Even a proprietary right in her own children was denied her, and from a legal point of view the wife became the daughter of her husband, and not unfrequently the ward of her own son.

After the power gained by man over woman during the latter ages of barbarism had reached its height, the family was based not on the marriage of a woman and a man, but upon the power of a man over a woman and her offspring, or upon the absolute authority of the male parent. In Rome a man's wife and children were members of his family not because they were related to him but because they were subject to his control. At this stage in the development of the family, the father had the power of "uncontrolled corporal chastisement" and of life and death over his children.¹³⁸ If it was his will to do so, he could even sell them. Indeed, a son's freedom from paternal tyranny could be gained only by the actual sale of his person by his father. Relating to the control exercised by the father over his children, it is observed that he had the right "during their whole life to imprison, scourge, keep to rustic labour in chains, to sell or slay, even though they may be in the enjoyment of high state offices."¹³⁹ If a father granted freedom to his son, that son was no longer a member of his family.

That, with the exception of force, there is no quality in the male constitution capable of binding together the various individuals born of the same father, is apparent from the past history of the human race. Mr. Parkyns, referring to the character of the Abyssinians, observes that the worst point in the constitution of their society is the want of affection among relations, "even though they be children of one father." He says that the animosities which keep the tribes in a constant state of warfare do not exist among the offspring of the same mother and father, but, as the children of polygamous fathers are more numerous than own brethren, fraternal affection is a rare thing.¹⁴⁰ A comparison between the family group under archaic usages at a time when woman's influence was in the ascendancy, and the Roman family under the older Roman law, will serve to show the wide difference existing between the altruistic and egoistic principles as controlling agencies in the home and in society.

A significant fact in connection with this subject is here suggested, that, although for untold ages women were leaders of the gens, so long as their will was supreme, no human right was ever invaded, and no legitimate manly prerogative usurped; but, on the contrary, all were equal, and the principles of a pure democracy were firmly grounded. Liberty and justice

had not at that time been throttled by the extreme selfishness inherent in human nature.

Although the processes by which women at a certain stage of human development lost their independence were gradual, they are by no means difficult to trace. The history of human marriage as gathered from the various tribes and races in the several stages of growth shows the primary idea of the office of wife to have been that of sexual slavery, and discloses the fact that it was the desire for foreign women who, shorn of their natural independence, could be controlled, which caused the overthrow of female supremacy.

As during the earlier ages of human existence the women of the group were absolutely independent of men for the means of support, they were able to so control their own movements. Only foreign women—captives stolen from their homes and friends—taken singly or in groups could be subjugated or brought into the wifely relation. Indeed, until the systematic practice of capturing women from hostile tribes for sexual purposes had been inaugurated, and the subsequent agency of repression—namely, ownership of the soil by males, had followed as a natural consequence, the usurpation by man of the natural rights and privileges of woman was impossible. The male members of the group had not at that time the power to sell their sisters and other female relations, but, on the contrary, defended them manfully against the assaults of hostile tribes. The foreign captor, the wife-catcher, was an enemy who was both feared and hated, and upon him were showered the maledictions of the entire group upon which the assault had been made. In retaliation for his offence, the men who had been bereft of a sister must in their turn commit a like depredation; thus, through the removal of women, the men of early groups gradually gained control of the common possessions at the same time that they were being supplied with foreign wives over whom they exercised absolute control. In process of time, when wealth began to accumulate in the hands of men, and when friendly relations began to be established between neighbouring tribes, foreign wives, without influence, were received in exchange for the free-born women of a man's own clan; henceforward a resort to capture was unnecessary. Distant tribes, however, were still liable to attack. Wars were waged against the men, who were sometimes slain, sometimes taken prisoners, the invaders taking possession of the lands and compelling the

women to accept the position of wife to them. Finally, negotiations were entered into whereby women were uniformly taken from their homes to become wives in alien groups. Later, the *ba'al* form of marriage came to prevail within the tribe. Professor Smith, quoting from the advice given by an Arab to his son, says: "Do not marry in your own *hayy*, for that leads to ugly family quarrels," to which he adds,

there was a real inconsistency in the position of a woman who was at once her husband's free kinswoman and his purchased wife. It was better to have a wife who had no claims of kin and no brethren near to take her part.^{[141](#)}

Under earlier conditions of the human race women as bearers and protectors of the young were regarded as the natural land-owners; hence, they did not leave their own homes to follow the fathers of their children. The woman who left her own relations for the *hayy* of her husband could no longer exercise control over the possessions of her own gens, neither could she at a later period inherit property from her kindred for the reason that her interests were identical with those of her children and her children belonged to another clan. As property could not be transferred from the group in which it originated, she was disinherited. Through marriage women gave up their natural right to the soil, and consequently to independence. A knowledge of the facts connected with the origin of the institution of marriage, reveals the fact that women lost their influence and power, not because of their weakness, but because they were foreigners and dependents in the homes of their husbands.

The statement was made at the beginning of this chapter that the origin of marriage and the establishment of the family with man at its head involve the subject of economies.

When property began to accumulate in the hands of men, when women were forced to relinquish their right to the soil and thus to become dependent on men for their support, their slavery was inevitable. Later, when through the exigencies of the situation, woman went without protest to the home of her master, there to become a pensioner upon his bounty, her slavery was complete.

In process of time, women bound to foreign tribes by the children which they had borne, began to accommodate themselves to the situation, and even to claim an interest in the home of their adoption, whereupon friendly relations began to be established between the tribe of the mother and that of the father. Hence may be observed the fact that the maternal instinct was the agency by which the barriers between unrelated groups were gradually broken down, and by which a spirit of friendliness was established between hitherto hostile tribes. As the coherence of the group and the combination of the gentes to form the tribe had been possible only by means of this instinct, so the confederacy of tribes to form the nation was accomplished in the same manner.

The change from female supremacy to male dominion is among the most important of the evolutionary processes. From the facts underlying the development of human society, and especially those underlying the two diverging lines of sex-demarcation, it is evident that evolution does not proceed in an undeviating line toward progress. It is perceived, that seeming retrogressions always involve a gain—a gain which could have been accomplished in no other way.

Among the benefits derived from this change in the positions of the sexes was the development of altruism in man. When fathers began to take an interest in their own offspring, to care for them and to become responsible for their welfare, an important step had been taken toward the establishment of the principle of brotherhood among mankind. The evolutionary processes indicate a constant tendency toward the solidarity of the race, they may be said to represent a resistless force ever drawing the human family together in a closer bond of union and sympathy. Under female supremacy, combination, or association of interests, was confined to the gens. The extension of these interests which resulted from the new order was necessary before humanity could proceed on its onward course. These changes could not have taken place under the early system based on the supremacy of women.

The facts brought out by scientists going to prove that the progressive principle is confided to the female are accentuated by those connected with the origin and subsequent development of marriage and the family. That within the female lie the elements of progress is clearly indicated, not only

in the position which the female occupied among the orders of life lower in the scale of being, and during the earlier ages of human history, but also by her career as the slave of man. Simply by means of the characters developed within the female constitution, without material resources, and deprived of recognized influence, women have been able to a certain extent, to dignify the family and the home.

It is more than likely that in the not distant future, even the institution of marriage, through which women have been degraded, will become so purified and elevated that its results, instead of being a menace to higher conditions will constitute a continuous source of progress and a promise of still higher achievement. Before this may be accomplished, mothers must be absolutely free and wholly independent of the opposite sex for the means of support. Marriage must be a co partnership in which neither sex has the right to control the other.

Although our present system of marriage took its rise in the practice of forcing women into the marital relation, it must be borne in mind that it was not inaugurated for the purpose of establishing monogamy. On the contrary, the privileges of the captor remained the same within his tribe as before the foreign woman was stolen. The theft was committed for no other purpose than to augment the hitherto restricted range of sexual liberties, and to give to the father absolute dominion over the individuals born in his house.

The system of marriage in vogue at the present time has never restricted men to the possession of a single woman. Monogamy, as established under male supremacy, means one husband for one woman, while a man may have as many women as he is able or willing to support. As women are still dependent upon men for the necessities of life, the supply of the former is regulated by the demands of the latter.

Marriage still retains its original meaning and significance, namely, the ownership and control of women. With the exception of physical force all the ceremonies, customs, ideas, and usages of primitive marriage have been preserved. When a woman marries she is "given" to her husband by her father or some other male relative. She promises to obey her master and accepts a ring as a badge of her dependence upon him. She relinquishes her own name and family, accepting as her own the name and family of her

husband. She follows him to his home where, as she is supported by his bounty, she is subject to his will and pleasure. Until women are economically free they will remain sexual slaves.

Of all the forms of human slavery which have ever been devised there has probably never been one so degrading as is that which has been practiced within the marital relation, nor one in which the extrication of the enslaved has been a matter of such utter hopelessness. The present struggle of women for freedom shows how deeply rooted is the instinct which demands their subjection.

The descent of woman has encompassed the lowest depths of human degradation, but the end of the long and weary road which she has traversed is nearly reached. Already the evolutionary processes which are to release her from bondage are in operation.

From available facts relative to the development of early mankind, it is certain that it must have required centuries upon centuries of time to subjugate women and bring them into harmonious relations with men while occupying a position of sexual slavery; first, physical force, second, dependence, and third the substitution of masculine opinions for the instincts and ideas which are peculiar to the female constitution. This accomplished the processes were begun which were to rivet the chains by which they were bound and by means of which women themselves in their weakened condition were to acquiesce in their own degradation. Religion was the means employed. Apollo, according to Greek mythology, issued an edict declaring that man is superior to woman and must rule, and Athene herself finally accepted the edict. Through religion, women came to regard themselves simply as appendages to men, as tools or instruments for their pleasure and gratification, and as possessing no inherent right either to liberty or happiness.

Religion has its root in sex. As we have already seen the creative force has ever been regarded as masculine or feminine according to the relative importance of the two sexes in human society and in the reproductive processes. So long as woman's influence and power were in the ascendancy the mother was the only recognized parent. She was the creator of offspring. Later, the abstract idea of female reproductive power was manifested in the

female deities. It required thousands upon thousands of years to subdue women. It also required millenniums to dethrone the female deities.

When, with the rise of male power, man began to assume the rôle of parent, he assumed also all the functions which had formerly belonged to woman. As has been noted in another portion of this work he even went to bed when a child was born. With this change in the physical relations of the sexes, the creative principle soon began to assume a masculine aspect. Male deities began to appear associated with the goddesses. In process of time, as male power increased, the god-idea became wholly masculine. The Jewish god is a personified idea of male power and reproductive energy. This subject will be referred to later in these pages.

Thus the ancient plan of government which was the outgrowth of the free maternal instinct, and which had guided humanity on its course for thousands of years, finally succumbed to a system based on physical force. When we remember the conditions surrounding early society we may well believe that civilization was gained, not because of the fact that male power succeeded in gaining the ascendancy over female influence, but in spite of it.

Given a combination of circumstances involving the supremacy of the lower instincts in mankind, and the individual ownership of land, the subjection of women, monarchy, and slavery, with all their attendant evils, namely, poverty, disease, crime, and misery were sure to follow.

When we consider the fundamental bias of the two diverging lines of sexual demarcation, it is not perhaps singular that the strong sexual nature which has prompted males to vigorous physical action should for a time have gained the ascendancy over the higher qualities peculiar to females; yet the material progress achieved under the inspiration and direction of agencies like this will not, in a more enlightened stage of existence, be regarded as embodying the results of the best efforts of human activity, or as representing the highest capabilities of the race.

Probably no one will deny that the accumulation of wealth by individuals, and the subsequent change in the relative positions of the sexes, were necessary steps toward the establishment of society on a political or territorial basis, or toward the breaking up of kindred groups and the

acknowledgment of the idea of the unity of the entire human family. Neither will the proposition be contradicted that the evils attending these changes namely, monarchy, slavery, and the inordinate love of gain have been unavoidable adjuncts to the development of the race; yet, who will doubt that under higher conditions, as the animal recedes in the distance, these blots on the records of human history will be regarded not as regular steps in the advancement of mankind, but as by-paths which, owing to the peculiar bias which had been given to the male organism among the lower forms of life, the human race has been obliged to take in order to reach civilization?

CHAPTER V

THE MOTHER-RIGHT

Among the most conspicuous of the writers who have dealt with the subject of primitive society are Herr Bachofen, Mr. J. F. McLennan, Sir John Lubbock, and Mr. L. H. Morgan. In 1861, the first-named of these writers, a Swiss jurist, published an extensive work on the early condition of society, entitled *Das Mutter-recht* (The Mother-right), in which was first given to the world the fact that prior to the establishment of a system of kinship through males, there everywhere existed a system based on female supremacy, under which descent was reckoned through women.

Bachofen was first led to a belief in a former state of society in which women were the recognized leaders through the evidence which everywhere underlies the traditions and mythologies of extant nations. Upon investigation he found indisputable evidence going to prove that every family of the human race had undergone the same processes of development or growth, and that among all peoples female influence was once supreme.

According to Bachofen's theory, as there were at this early stage of human existence no "laws" regulating the intercourse between the sexes, human beings lived in a state of lawlessness, or hetairism. Recognizing the difference in the reproductive instinct as manifested in the two sexes, he says that becoming disgusted with their manner of living women rebelled, and rising in arms, conquered their male persecutors by sheer superiority in military skill; and that after they had overthrown the degrading practices of communal or lawless marriage, they established monogamy in its stead, under which system woman became the recognized head of the family.

Children, although they had hitherto succeeded to the father's name, were now called after the mother, and all rights of inheritance were thereafter established in the female line. Not only did women take upon themselves the exercise of domestic authority and control, but, acting under a strong

religious impulse, they seized the reins of popular government and completed their title to absolute dominion by wielding the political sceptre as well, thus declaring themselves unconditional masters of the situation.

At this juncture in human affairs, the belief began to be entertained that motherhood was divine while the paternal office was regarded only in the light of a human relation. Thus, through religion, women were raised from a state of hetairism, or sexual slavery, to a position of independence and self-respect. But that which was gained through a supernatural impulse they were destined subsequently to lose through the same source; for, when in Greece, the doctrine was promulgated that the spirit of the child is derived from its father, paternity at once assumed a divine character, and, as under the new order, the functions of the mother were only to clothe the spirit, or simply to act as “nurse” to the heaven-born production of the father, women lost their supremacy, and under the new régime, maternity and womanhood again trailed in the dust.

According to Bachofen, however, the cause of mothers did not at once cease to be the subject of contention and conflict, but ever and anon fresh battles and renewed struggles proclaimed the discontent and uneasiness of women and heralded the fact that the contest for supremacy had not yet ended. But, in process of time, as resistance proved ineffectual, mothers themselves gradually succumbed to the new idea of the divine character of the father, and, without further murmuring or complaint, accepted gracefully the position of nurse to his children.

The father now became the recognized head of the family, and men at once seized the reins of government. Descent was henceforth traced in the male line, and children took the father’s instead of the mother’s name; in fact all relationships to which rights of succession were attached were thereafter traced through fathers only. The complete and final triumph of males having been established by the all-powerful authority of Roman jurisprudence, the conflict between the sexes was ended forever. Thus, according to Bachofen, was the supremacy of women gained and lost.

Through a profound study of the traditions, legends, symbols, and mythologies of antiquity, this writer was enabled to discover the fact that at an earlier age in human history women were the recognized leaders of

mankind; that their influence and authority were supreme over both the family and the community, and that all relationships to which rights of succession were attached were traced through them. In attempting to account for this early period of gynecocracy (the existence of which to Bachofen's mind no doubt presented a singular and intricate problem) it first became necessary to set forth a theory concerning a former condition of society out of which such a state could have been evolved. But as at the time *Das Mutter-recht* made its appearance, the theory of the development of the human species from pre-existing orders had not been adopted by scientists, and as many of the various means at present employed for obtaining a knowledge of primitive races had not been brought into requisition, even the vast learning of Bachofen did not suffice to furnish a satisfactory solution of the problem.

We have seen that in addition to the discovery that at an early age in human experience female influence was supreme, he had arrived at the conclusion that the natural instincts of women differ from those of men; yet, notwithstanding this, so accustomed had he become to the predominance of the masculine instincts in every branch of human activity as to be unable to conceive of a state of society in which the characters belonging to females could have controlled the sexual relations. Evidently he was unable to connect these two facts, or to perceive that that tendency or quality required for the protection of the germ and the species, and which so early characterized the female sex, had constituted the most primitive influence by which the human race had been governed. As in the earliest ages of human existence no arbitrary laws regulating marriage and the relations of the sexes had been in operation, he could discern no condition under which society could have existed other than that of "lawlessness" or "hetairism"—a condition under which women were slaves, and men ruled supreme.

As Herr Bachofen was doubtless unaware of the fact that the human animal is a descendant from creatures lower in the scale of life, the idea of connecting his history with theirs had probably by him never been thought of; therefore, judging primitive society, not by the instincts and the natural laws governing them which mankind had inherited from their progenitors, but, on the contrary, measuring them by the standards of later ages when the grosser or disruptive elements had gained dominion over the finer or constructive qualities in human nature, he was unable to discern any way in

which the conditions of female supremacy everywhere indicated in the traditions and mythologies of antiquity could have originated, except in an uprising of women, and a resort to arms for the protection of their womanly dignity.

In referring to the military exploits of the women of Lycia, and, in fact, of various portions of Africa and Asia, at a comparatively late stage in human history, Bachofen says that the importance of Amazonianism as opposed to Hetairism for the elevation of the feminine sex, and through them of mankind, cannot be doubted.

There seems to be considerable evidence going to prove that there have been times in the past history of the race in which women were brave in war and valiant in defending their rights. Indeed, the accounts given of the struggles of the Amazons in maintaining their independence against surrounding nations—notably, the Greeks—are tolerably well authenticated.^{[142](#)}

Although the fact seems to be well substantiated that in certain portions of the earth, and at various periods in the history of the race, women have maintained their independence and protected their interests by force of arms, it seems quite as certain that actual warfare carried on by them has been confined to peoples among which male supremacy had but recently been gained, and among which a resort to arms represented the last act of desperation to which they were driven to maintain their dignity and honour. We have reason to believe, however, that even these cases have been exceptional; at least, from the facts at hand, we have no reason for thinking that at any stage in the history of women's career, armed resistance to masculine authority has been uniform or protracted among them.

According to scientists, among the lower orders of life, males are considerably in the excess of females, and among less developed races men are more numerous than women. It has been shown in a former portion of this work that the advancement of civilization is characterized by a corresponding increase in the number of women among the adult population; hence their evident lack of numbers among primitive peoples, to say nothing of their probable aversion to war and bloodshed, would at once preclude the idea that their dominion was achieved through armed

resistance to a foe so superior in numbers and in fighting qualities. By a natural law governing propagation—a law which determines the numerical proportion of the sexes, and which creates an excess in the number of that sex best suited to its environment, primitive women, had they relied on physical force, would have had little chance to maintain their independence.

In a former portion of this work it has been observed that it was neither to lack of numbers nor to their want of physical force that women were divested of their power; that it was not through their weakness, but through the peculiar course which the development or growth of males had taken, that under certain conditions women became enslaved.

Not merely from the facts laid down by naturalists regarding the peculiar development of the male, but from later researches into the conditions and causes which have influenced progress, it is plain that no restrictions on the range of sexual liberties could have originated in males. Hence the demand for a more refined state of society must have begun with females. This fact seems to have been perceived by Bachofen, but, as according to his reasoning, at an early period of human existence, women were slaves, exercising none of the powers necessary to personal control, it is difficult to conceive of any manner in which it was possible for them to rise to the social position and moral dignity ascribed to them in *Das Mutter-recht*.

According to the theory set forth by this writer, however, religion was the cause of the important change which at this time took place in the positions of the sexes. Although, according to him, the religion which prevailed during the ages of “lawlessness” was of a low “telluric chthonic” type, it was nevertheless the cause, or at least one of the causes which led to the abandonment of promiscuity and the establishment of the monogamic family. It will doubtless be remembered, however, that this age of lawlessness or hetairism which Bachofen has described, represents a very early stage of human existence, in which, according to his reasoning, the baser instincts ruled supreme; nevertheless, within it, he would have us believe that a religious system had been evolved capable of lifting women from a state of degradation to which they had been consigned by nature, or at least to which they had always been committed, to a position of influence and womanly dignity in which they were able to assume supreme control over the forces by which they had been enslaved. With sexual desire as the

controlling influence in human affairs, and with women in bondage to this power, it is difficult to conceive of any manner in which such a religion could have arisen.

As all religious systems are believed to represent growths, and to indicate a result of the degree of progress attained, it is evident that had a religion appeared at this early age which was capable of elevating women from a condition of degradation, as indicated by the early state described by Bachofen it could not have been the result of natural development, but, on the contrary, must have proceeded directly from a divine source; in which event it would doubtless have remained upon the earth still further to aid development and bless the race. Such, however, was not the outcome of this remarkable but premature religion; for it is asserted by this writer that what women gained by religion they afterward lost through the same source—that in Greece, the loss first came through the oracle of Apollo, which declared the father to be the real parent of the child.

Bachofen assures us, also, that through the Bacchanalian excesses which followed the dominion of males in Greece, hetairism was again restored, and through this means gynecocracy reappeared. From this it would seem that although under the earliest stage of hetairism women were without power and wholly under the control of men, with the return, at a later age, of a like state of society, the basis was at once laid for female supremacy.

It is evident that Herr Bachofen's confusion arises from a misconception of the early importance of women. Although perhaps more than any other writer upon this subject he has been able to recognize the true bias of the female constitution, yet, as he has mistaken the relative positions of women and men at the outset of the human career, and as he has been unable to perceive the previously developed influences which governed these relations, he has failed to furnish a satisfactory solution of the problem of the early supremacy of women, which from the evidence adduced, not only by the traditions and mythologies of past ages, but by later developments in ethnology, may not be doubted.

Prior to the appearance of mankind on the earth, had there been developed within the female no higher element than that which characterized the male, and had she appeared on the scene of human action

as the willing and natural tool of her less-developed male mate, it is plain that she would have been unable to elevate herself to the position of dignity which Bachofen assigns her, and which, until a comparatively recent period in the human career, she had occupied.

As among the orders of creation below mankind the structural organism of the male has been materially changed through his efforts to please the female and secure her favours, it is evident that under earlier and more natural conditions of human life, the appetites developed within him were still largely controlled by her will. From logical conclusions to be drawn from the hypotheses of naturalists, it is not likely that at the outset of human life those restrictions on the nature of the male imposed by the female throughout the animal kingdom were suddenly withdrawn, or that the destructive elements which all along the line of progress had been in abeyance to the higher powers developed in organized matter, were immediately and without good cause put in absolute command over the constructive forces of life.

With a better knowledge of the past history of mankind, comes the assurance that such was not the case, but, on the contrary, that for thousands of years women were the ruling spirits in human society; that the cohesive quality—sympathy, which is the result of the maternal instinct, and which conserves the highest interests of offspring, was the underlying principle which governed human groups—in fact, that it was the principle which made organization possible and progress attainable.

CHAPTER VI

THEORIES TO EXPLAIN WIFE-CAPTURE

The prevalence of wife-capture and the extent to which the symbol of force in marriage ceremonies appears among tribes and races in the various stages of development, have given rise to numerous speculations and theories relative to the origin of these “singular phenomena.” Notable among the works dealing with this subject are *Primitive Marriage*, by Mr. J. F. McLennan, and the *Origin of Civilization*, by Sir John Lubbock, both of which works followed closely the publication of *Das Mutter-recht* by Herr Bachofen.

As at the time these works were published the fact of man’s descent from the lower orders of life had not been established, and as nothing was then known of the origin and development of organized society it is not remarkable that theories concerning the early relations of the sexes should prove worthless except perhaps to show the extent to which established prejudices may warp the judgment and dwarf the intellectual faculties even of those who are honestly seeking after truth.

The avowed object of Mr. McLennan’s volume was to trace the origin of wife-capture which is found to exist either as a legal symbol in marriage ceremonies, or as a stern reality among peoples which have not yet reached civilized conditions. This writer declares: “In the whole range of legal symbolism there is no symbol more remarkable than that of capture in marriage ceremonies.”

After setting forth numerous examples to prove the prevalence of wife-capture among uncivilized tribes and races, and after denouncing as absurd the theories relative to the symbol of force entering into the marriage ceremonies in Sparta and in Rome, Mr. McLennan observes:

The question now arises, what is the meaning and what the origin of a ceremony so widely spread that already on the threshold of our

inquiry the reader must be prepared to find it connected with some universal tendency of mankind?

Mr. McLennan's answer to his own query is as follows:

We believe the restriction on marriage to be connected with the practice in early times of female infanticide which rendering women scarce led at once to polyandry within the tribe and the capture of women from without.

In another portion of this work it has been shown that although marriage was restricted within the gens, the earliest form of organized society, this restriction did not extend to the tribe. Marriage was forbidden among closely related groups. The gentes coalesced to form the tribe. Although a man might not marry within his own gens, he was not forbidden to marry within the tribe.

In Mr. Morgan's work on *Primitive Society*, published in 1871, are to be found the systems of consanguinity and affinity of 139 tribes and races representing, numerically, four-fifths of the entire human family. These systems show conclusively that the restrictions on marriage observed in the gens did not extend to the tribe. The author of *Primitive Marriage* has evidently mistaken a rule of the gens for a binding tribal decree.

Mr. McLennan's theory relative to female infanticide is found to be equally fallacious. Noting the numerical difference in the two sexes among lower races, he says that as subsistence was scarce, and as war was the natural and constant condition of primitive groups, only those of their members would be spared who could contribute to the defence of the tribe, or who would be able to aid in the supply of subsistence. Males were possessed of strength, they were by organization and inclination adapted to war and the chase, and could therefore be depended upon to assist in defending the tribe against the assaults of its enemies and in securing the necessary food for its requirements. On the other hand, women being worthless in war and in the chase were regarded as useless appendages, and as they constituted a source of weakness to the tribe, large numbers of them were destroyed at birth. Through this practice the balance of the sexes was greatly disturbed, and wives could be obtained only by means of stealth or a

resort to force. Thus in process of time, the stealing of women became a legitimate practice, and each warrior depended on his skill in this particular direction to provide himself with a wife.

Finally the children of these alien women began to intermarry and thus the necessity for wife-capture no longer existed, and the practice of stealing women for wives was superseded by a system through which wives from other tribes were habitually obtained either by gift or sale. Thereafter the symbol of wife-capture was retained in marriage ceremonies.

With a better understanding of peoples in a less developed state of society, it is found that infanticide has been less prevalent among them than was formerly supposed; that when through scarcity of food it has been practised it has not been confined to females, neither has it been carried on by tribes in the lowest stages of barbarism.

Regarding this custom in Arabia, Prof. W. R. Smith says that our authorities "seem to represent the practice of infanticide as having taken a new development not very long before the time of Mohammed." This writer declares that the chief motive for infanticide was "scarcity of food which must always have been felt in the desert."

Much has been written in the attempt to explain the practice of infanticide which to some extent seems to have prevailed during a certain stage of human development; but with the exception of those cases in which children of both sexes were slain because of scarcity of food, the one cause, namely, the dread of capture, is sufficient to explain this unnatural practice.

Although to a considerable extent, men had come to depend on foreign tribes for their wives, they nevertheless found little pleasure in furnishing their quota of women in return, and as mothers doubtless preferred the death of their female children to the degradation and suffering which was inevitable in case of capture, female infanticide no doubt seemed the wisest and in fact the only expedient.

The blood-tie of ancient society which bound together all those born of the women of the group irrespective of their fathers, must have emphasized the influence of mothers in the matter of infanticide. It is not reasonable to suppose that the law of sympathy which had united the members of a clan

by a bond stronger than that which binds together the members of a modern family was reversed without some deeper cause than has thus far been assigned for it. It is indeed difficult to believe, in opposition to all the facts before us, that a practice which involved the destruction of the female members of the group would have gained the sanction of the tribe to such an extent that it would have become an established rule among them.

Regarding the destruction of female infants among early races, Mr. Darwin remarks:

They would not at that period have lost one of the strongest of all instincts common to all lower animals, namely the love of their young offspring, and consequently they would not have practised female infanticide. [143](#)

Another reason why female infanticide could not have prevailed to any considerable extent is seen in the fact that any diminution in the number of females, would have involved a scarcity of warriors, thus weakening their means of defence. From available facts it is quite evident that the practice of female infanticide throws no light on wife-capture.

Mr. McLennan declares that women among rude tribes are usually depraved and inured to scenes of depravity from their earliest infancy; hence when property began to amass in the hands of men, in order to assure paternity, it became necessary, that women be brought under subjection.

As the female, when free, is unwilling to pair with individuals for whom she feels no affection, and as under earlier conditions of human society women chose their mates, and so long as they remained together were true to them, it is reasonable to suppose that paternity was known, or at least that it might have been readily determined.

Mr. Morgan informs us that the “Turanian, Ganowánian, and Malayan systems of consanguinity show conclusively that kinship through males was recognized as constantly as kinship through females,” that a man had brothers and sisters, grandfathers and grandmothers traced through males as well as through females. Although under gentile institutions descent and all rights of succession were traced through mothers, kinship through fathers was easily ascertained.

Hence it is plain that Mr. McLennan's assumption that women were enslaved in order to assure paternity, that they became subject to the dominion and control of men so that fathers might not be compelled to support children not their own, is not supported by the evidence at hand.

That it was through capture, the forcible carrying away of women at first singly and later in groups to foreign tribes, in which as aliens and dependents they were shorn of their right to the soil, that males were first enabled to arrogate to themselves the individual right to property is a fact which has been overlooked by Mr. McLennan.

From the facts at hand relative to the earliest social regulation of mankind, that into classes on the basis of sex, it is evident that it was inaugurated for no other purpose than the restriction of the marital relation—a restriction to prevent the pairing of near relations. Yet Mr. McLennan would have us believe that “the law compelling marriage outside the recognized limit of near relationship originated in no innate or primary feeling against marriage with kinsfolk.”

The repugnance of females among the lower orders of life to pairing with those individuals which were distasteful to them, or for which they felt no genuine affection, has already been referred to in these pages. At the earliest dawn of human life there probably existed within woman a naturally acquired aversion to pairing with near relations, yet doubtless many ages elapsed before an idea of kinship sufficiently definite to be incorporated into an arbitrary law for the government of the group was formulated; but in due course of time, with the further development of the higher characters, the idea of relationship began to take shape, whereupon was inaugurated a movement which doubtless represents one of the most important steps ever taken toward human advancement.

As the female among all the orders of life, when free, is unwilling to pair with individuals for which she feels no affection, and as the sex-instinct has ever been restricted or held in abeyance by her, and as according to the savants, it was through the efforts of women that from time to time during the earlier ages of human existence the range of conjugal rights was abridged, it is reasonable to suppose that it was woman who first objected to the pairing with near relations.

The statement of Mr. McLennan that the women of primitive races were depraved, that they were inured to scenes of depravity from their earliest infancy is not borne out by facts. It has been shown in another portion of this work that the most trustworthy writers, those who have personally investigated tribes and races in the various stages of development, agree that chastity was an unvarying rule among them, that before they were corrupted by civilization, a condition of morals existed nowhere to be found among the so-called higher races.

After referring to a state of advanced social existence in which every person knowing what is right would feel an irresistible impulse toward right-living, Mr. Wallace remarks that among peoples low in the scale of development “we find some approaches to such a perfect social state.” He observes: “It is not too much to say that the mass of our population have not at all advanced beyond the savage code of morals, and have in many cases sunk below it.”

Most of the reports which come to us regarding the immorality of lower races are brought by missionaries, who, although unacquainted with the language, customs, and habits of thought of the peoples whose countries they visit, nevertheless feel called upon to furnish lengthy reports of those benighted races which are “utterly destitute of Christian training.”

As the restrictions on marriage among early peoples were limited to closely related groups, it is evident that the capture of wives was not carried on because of any established law of exogamy, neither was it practised because of the scarcity of women resulting from female infanticide nor because of a desire for recognized paternity. Wife-capture arose from a demand for foreign women, aliens, who, torn from their homes and deprived of the protection of their own kinsfolk, had no alternative but sexual slavery. These women were much more desirable than the free-born women of a man’s own tribe.

After having created a false and wholly unwarrantable hypothesis, an hypothesis in which exogamy and endogamy, two principles which as applied to tribes never existed, play a conspicuous part, Mr. McLennan has thrust nearly all the facts which he has observed relative to primitive society into false positions and forced them to do duty in bolstering up his

thoroughly imaginative theory to account for the origin of wife-capture. It is perhaps needless to say that the whole subject, so far as his contribution is concerned, is as much a mystery as before he attempted a solution of the problem.

Sir John Lubbock, like J.F. McLennan, assumes that the earliest organization of society was that of the tribe, and that a man was first regarded as belonging only to a group. Subsequently, as the maternal bond is stronger than that which unites a father to his offspring, kinship with his mother and her relations was established. In course of time he was accounted as a descendant of his father only, and lastly he became equally related to both parents.

Numerous illustrations are cited by this writer, going to show that among certain peoples descent is still reckoned in the female line, and that all the rights of succession, both as regards property and tribal honours, are traced through women.

In his *Origin of Civilization* the fact is noted that in Guinea, when a wealthy man dies, his property passes by inheritance, not to his sons, but to the children of his sister. He quotes also from Pinkerton's *Voyages* to show that the town of Loango is governed by four chiefs who are sons of the king's sisters, and from Caillie who observes that in Central Africa the sovereignty remains always in the same family, but that the son never succeeds to his father's position. These and numerous other instances, similar in character, are cited from various parts of the world, going to prove that a system of descent and inheritance through women was once general throughout the races of mankind.

With Herr Bachofen and Mr. McLennan, Sir John Lubbock is of the opinion that the earliest conjugal unions of the human race were communal. Communal marriage was founded on the supremacy of males, or, was based on the undisputed right of men to the control of women. According to this writer, communal marriage was succeeded by individual marriage through capture.

Although Lubbock coincides with McLennan in the belief that under certain circumstances infanticide has been practised by the lower races, he does not agree with him as to the extent to which it has prevailed among them; neither is he of the opinion that it was confined to the female sex. On the contrary, he cites trustworthy authority to prove that boys were as frequently disposed of as were girls.

Although with McLennan, Lubbock recognizes the prevalence of wife-capture and the principle of exogamy, yet, according to the theory of the former, marriage by capture arose from exogamy, while, according to the latter, exogamy arose from marriage by capture.

Lubbock accounts for wife-capture by the following theory: As under the communal system, women of the tribe were the “common property” of the men of the group, no individual male among them would have attempted to appropriate one of these women to himself, for the reason that such appropriation would have been regarded as an infringement on the rights of the remaining males in the community. A warrior, however, upon capturing a woman from a hostile people, might claim her as his rightful possession, and hold her as against all the other members of the tribe. Since the women of the group were so emphatically the common property of the men, the exclusive right to one of them in progressive tribes which had reached a state of friendliness would involve a symbol of capture to make valid such a claim. This symbol, according to Lubbock, has no reference to those from whom the woman has been stolen, but is intended to bar the rights of other members of the tribe into which she is brought. He thinks that “the exclusive possession of a wife could only be legally acquired by a temporary recognition of the pre-existing communal rights,” and cites the account given by Herodotus of the custom existing in Babylonia, where every woman once during her lifetime must present herself at the temple, there to accept the proposals of the first man who requests her to follow him.

Although Lubbock declares that the symbol of violence in marriage ceremonies “can only be explained by the hypothesis that the capture of wives was once a stern reality,” he claims not to believe that the early conditions under which men were compelled to capture their wives by

violence, or do without them, were in any degree the result of feminine will in the matter.

In referring to the fallacious theory of Mr. McLennan, that the capture of women for wives arose from the practice of female infanticide, which, by producing a scarcity of women, created a necessity for marriage without the limits of the tribe, Sir John Lubbock, although seemingly unable to recognize the actual force which was in operation to prevent the “appropriation” of women by men, has nevertheless shown himself able to perceive the reason why foreign women were captured, and what the tendency in males was which demanded their presence.

After referring to the fact that no male could appropriate to himself a female belonging to the tribe, he says:

Women taken in war were, on the contrary, in a different position. The tribe, as a tribe, had no right to them, and men surely would reserve to themselves exclusively their own prizes. These captives then would naturally become wives in our own sense of the term.

Foreign women would become dependents, their captors having the undisputed right to the control of their persons.

At the outset, Sir John Lubbock finds himself confronted with the fact that a system of reckoning descent through women once prevailed over the habitable globe. According to his own reasoning, this system presupposes a condition of society under which property rights and all rights of succession were traced through women, still we find him offering the following belief concerning the matter. “I believe, however, that communities in which women have exercised the supreme power are rare and exceptional, if, indeed, they ever existed at all.”

Were we not already acquainted with the prejudices of most of the writers who have thus far dealt with this subject, in view of the facts everywhere represented going to prove that a system of gynecocracy once prevailed over the entire earth, this “belief” of Mr. Lubbock would be truly remarkable, especially when we learn the reason given by him for his conclusion. He says:

We do not find in history, as a matter of fact, that women do assert their rights, and savage women would, I think, be peculiarly unlikely to uphold their dignity in the manner supposed. [144](#)

It is quite true that it is not observed “in history” that women assert their rights. It has been shown, however, that prior to the historic age, through capture and the individual ownership of land, women had become dependent upon men and wholly subject to their control. After thousands of years of subjection to male influence, the movements of women, who are still dependent upon men, furnish little satisfactory information regarding the character of free women at a time before they had succumbed to the exigencies of brute force, and the unbridled appetites of their male masters. Slaves seldom assert their rights, or, if they do, of what avail is it?

Were we in possession of no other facts in support of the theory of an early age of female supremacy than that all relationships to which rights of succession were attached were formerly traced through women, the evidence in its favour would be sufficient to prove it true, but this manner of reckoning descent represents only one of the many indications of such an age which Lubbock himself has been constrained to record; yet, because—during the historic age—an age throughout which the masculine element has ruled supreme, women have not asserted their rights, this writer feels inclined to ignore all the evidence bearing upon the subject, at the same time declaring that women could not have “upheld their dignity in the manner supposed”; that the female, on gaining human conditions, could not have exercised the instincts inherited by her from her dumb progenitors.

If the females among insects, birds, and many species of mammals are able to control the relations between themselves and their male mates, why should it not be inferred that the female of the human species would still be able to uphold the natural dignity of the female sex?

As an argument in support of his theory that the influence of women was never supreme, Sir John Lubbock alludes to the position of Australian women as being one of “complete subjection,” and as the native Australians represent perhaps the lowest existing stage of human society, he doubtless thinks his argument unassailable. However, that the position of Australian

women cannot be taken as a reliable guide in estimating primitive womanhood is shown by the writer's own reasoning when he says:

It must not be assumed, however, that the condition of primitive man is correctly represented by even the lowest of existing races. The very fact that the latter have remained stationary, that their manners, habits, and mode of life have continued almost unaltered for generations, has created a strict, and often complicated, system of customs, from which the former was necessarily free, but which has in some cases gradually acquired even more than the force of law.¹⁴⁵

Yet we find him comparing primitive women with this race which for thousands upon thousands of years, because of its environment, or through some cause which is not understood, has been unable to advance.

While this writer perceives clearly that foreign women were much more desirable for wives than those belonging to a man's own tribe, he has not been able to discover the reason why this was so, but, continuing to babble about the "rights" of the men of the group, overlooks the fact that native-born women were free, and as only those women who had first been torn from their friends and shorn of their independence could at this stage of human existence be forced into the position of wife, it became necessary to secure them by violence from surrounding tribes. He is not blind to the fact that it was a desire to extend the limit of conjugal liberties on the part of males which prompted wife-capture; yet he would have us believe that although women were absolutely independent of men, and although they were the recognized heads of families, and the source whence originated all the privileges of the gens, it was in no degree owing to their influence that the conjugal liberties of males were restricted within the tribe, but, on the contrary, that this restriction was enforced out of regard for the "proprietary rights" of the men of the group. He says: "We must remember that under the communal system the women of the tribe were all common property. No one could appropriate one of them to himself without infringing on the general rights of the tribe."

As well might we say of the female bird for whose favours the male fights until overcome by exhaustion and loss of blood, that she belongs to him, or that he may appropriate her, as to say that the men of early groups

could “appropriate” women. From all the facts relative to the condition of early society, it is plain that if either sex could with propriety be designated as property it must have been the male. It is evident that women were stolen from distant tribes for the express purpose of sexual slavery, a position to which free, native-born women could not be dragged; therefore, when Lubbock assures us that these foreign women naturally “became wives in our own sense of the term,” we may be sure that he is neither unmindful of the origin of our present social system, nor of the true significance attached to the position of wife. Indeed, he informs us that the “origin of marriage was independent of all sacred and social conditions,” and proves the same by actually producing the evidence. He has no hesitancy in declaring that marriage is a masculine institution, established in the interest (or supposed interest) of males; that it was “founded not on the rights of the woman, but of the man,” and that there was not on the woman’s part even the semblance of consent. In fact he declares that he regards it as an illustration of the good old plan that “he should take who has the power, and he should keep who can.” He says also that it had nothing to do with mutual affection or sympathy, that it was invalidated by no appearance of consent, and that it was symbolized not by any demonstration of warm affection on the one side and tender devotion on the other, but by brutal violence and unwilling submission. To prove that the connection between force and marriage is deeply rooted, Sir John Lubbock, like Mr. McLennan, has furnished numerous examples of peoples among whom marriage by actual capture still prevails, as well as many among which the system has passed into a mere symbol. He is quite certain that the complete subjection of the woman in marriage furnishes an explanation to those examples in barbarous life in which women are looked upon as being too great to marry—and cites the case of Sebituane, chief of the Bechuanas, who told his daughter, Mamochisáne, that all the men were at her disposal—“she might take any one, but ought to keep none.”

This instance, together with numberless others which might be cited, proves that long after the practice of appropriating solitary women for sexual purposes had become general, the position of wife was considered too degrading to be occupied by women of rank.

Attention has been called to Lubbock’s idea concerning the “rights” of the males of the group. We have seen that it is his opinion that the exclusive

possession of a woman could only be legally acquired by a temporary recognition of the pre-existing communal rights, and that the account in Herodotus of the debasement of Babylonian women was cited by him as evidence to prove his position. He seems, however, to forget that this custom, which was practised in various nations, is a religious rite, and was inaugurated at a time when the adoration of the sun, as the source of all life and light, had degenerated into the most degrading phallic worship. To those who have given attention to the growth of the god-idea, the supposed cases of “expiation for marriage,” cited by Lubbock, are to be explained by the peculiar practices inaugurated under fire and passion worship at a time long subsequent to the establishment of *ba'al* marriages.

In his chapter on “The Origin of Marriage by Capture,” this writer says:

That marriage by capture has not arisen from female modesty, is, I think, evident, not only because we have no reason to suppose that such a feeling prevails especially among the lower races of man; but also, firstly, because it cannot explain the mock resistance of the relatives; and, secondly, because the very question to be solved is why it became so generally the custom to win the female not by persuasion but by force.^{[146](#)}

That female modesty may not account for marriage by capture will scarcely be disputed; it is not impossible, however, that disgust, or aversion, on the part of women, may, in a measure, serve to explain it.

Sir John Lubbock should bear in mind that “choice” in the matter of pairing was an early prerogative of the female; that true affection, a character differing widely from the sex instinct developed in the male was necessary before she could be induced to accept the attentions of the male. While the women among primitive peoples abhorred strangers or foreigners, it may scarcely be said of them that they were too modest to accept them as suitors. Evidently, modesty is not the term to be employed in this connection.

In seeking a reason to explain why force rather than persuasion was used in the consummation of early marriages, we have to remember the wide difference existing between the position of free women and that of those

who were obliged to accept the *ba'al* form of marriage. If, as we have reason to believe, as late as the beginning of the second or Middle Status of barbarism, instead of following the father of her children to his house as his slave, a woman remained in a home owned, or at least controlled jointly by herself, her mother, her sisters, and her daughters, it is plain that a state of female independence existed which was incompatible with female subjection. Add to this the fact that a woman's children belonged exclusively to herself, or to her family, and that all hereditary honours and rights of succession were traced through females, and we have a set of circumstances which would seem sufficient to explain why force was necessary to bring women into the marital relation.

That the capture of women for wives arose because the independence of free women was a bar to the gratification of the lower instincts in man, can, in the presence of all the facts at hand, scarcely be doubted; and that women submitted to the position of wife only when obliged to do so, or when deprived of liberty and dragged from home and friends, is only too apparent. While modesty as a cause for capture may not account for the resistance of the relations, the sacrifice of a daughter may serve to explain even this knotty point. If the capture of a free and independent girl from her mother by a band of marauders from a hostile tribe for purposes of the most degrading slavery, cannot account for the resistance of the mother-in-law, among most of the so-called lower races, then indeed it is difficult to conjecture any provocation or any set of circumstances which can account for it.

This writer's assertion that it is "contrary to all experience that female delicacy diminishes with civilization," proves conclusively that he regards the slight degree of reserve which he is pleased to accredit to women in modern times, as a result of civilization—a civilization, too, which he evidently considers as wholly the result of masculine achievement; in other words, he doubtless thinks that the degree of self-respect observed among women at the present time is the result not of the innate tendencies in the female constitution, but of masculine tuition and training, an assumption which, when viewed by the light which in recent years has been thrown upon the development of the two diverging sex columns, is as absurd as it is arrogant and false. Some time will doubtless elapse before Sir John Lubbock and the class of writers which he represents will be willing to

admit that civilization has been possible only because of the checks to the animal nature of the male, which are the natural result of the maternal instinct.

With a system, however, under which for six thousand years every womanly instinct has been smothered, and under which female activity has been utilized in the service of the strong sex instinct developed in males, the outward expression of female delicacy has doubtless diminished; and, in their weakened mental and physical condition, women, dependent not only for all the luxuries but the necessities of life as well, upon pleasing the men, have doubtless given them, blinded as they have become by the conditions of their own peculiar development, some reason for believing that within the female as within the male, passion has been the ruling characteristic.

Sir John Lubbock, as well as other writers who have dealt with this subject, should bear in mind the fact that female delicacy is a subject which can be satisfactorily discussed only in relation to free and independent women; hence the degree of its manifestation at any time during the past six thousand years may bear little testimony concerning the natural tendencies of women, or the condition of society under a system where female influence was in the ascendancy.

To those individuals whose minds are not clouded by prejudice, the fact will doubtless be apparent, that the valuable information which has been presented by three of the foremost writers on the subject of the early relations of the sexes and the origin of marriage, instead of serving as evidence to substantiate the fallacious theories which they have propounded, is found to lie in a direct line with the facts and principles which have been put forward by scientists in the theory of natural development.

A review of the theories set forth by these three writers shows that about the only point on which they agree is the lawlessness, or promiscuity, of early races. As they have all started out with a false premise, it is not singular that none of them has succeeded in setting forth a consistent and reasonable hypothesis to account either for the symbol of wife-capture, or for the early supremacy of women.

PART III
Early Historic Society

CHAPTER I

EARLY HISTORIC SOCIETY FOUNDED ON THE GENS

The result of recent research into the early organization of society, the growth of the governmental idea, and the development of the family, among tribes in the ascending scale, serve to throw new and unexpected light upon the customs, ideas, institutions, and legends of early historic peoples. Upon investigation it is observed that the construction of Greek and Roman society corresponds exactly with that of existing tribes occupying a lower plane in the scale of development, and that all the institutions of these nations, although in a higher state of advancement, involve the same original principles and ideas.

That the Greek and Roman tribes before reaching civilization had passed through exactly the same processes of development as have been witnessed in the ascending scale among the North American Indians, the Arabians, and all other extant peoples, is shown not alone by the manner in which early society was organized and held together, but by the similarity observed in their myths, legends, traditions, institutions, and social usages.

Whether or not a more advanced stage of civilization had been attained by the progenitors of the Greeks and Romans is a question that does not here concern us; for, if at any time prior to the appearance of these peoples in history, a higher plane of life had been reached, it is reasonable to suppose that such a state was gained under gentile forms of society, especially as their various institutions at the beginning of the historic period represent them as still to a considerable extent governed by the ideas peculiar to the gens.

The earliest authentic accounts which we have of the Greeks represent them as composed of the Doric tribes, who were Hellenes, and the Ionians, who were of Pelasgic origin. The Dorians were a conservative people, exclusive in their tastes and intolerant of innovations, while the Ionians,

who occupied the seacoasts and the adjacent islands, were restless, fond of novelty, and not averse to intercourse with surrounding nations.

Of the original inhabitants of Rome, it is observed that they consisted of wandering tribes, bands of outlaws, and refugees from various countries. Concerning the true origin of these peoples, however, and of the history of their earliest settlements, they themselves were evidently ignorant, and the fragmentary accounts of them which have been preserved to us, when viewed independently of the light reflected upon them by recent investigation, furnish but a dim picture in the outline of which the most prominent figures appear only as indistinct shadows or as objects without definite shape. It is true there was no lack of myths and traditions which had come down to the Greeks and Romans as genuine history, and which were doubtless regarded by them as trustworthy accounts of their ancestors. Theseus who united the Attic tribes, and Romulus who founded Rome, were heroes in whom the divine and human were so nicely adjusted and so evenly balanced that the history of their earthly career presents no shade of error either in public or in private life. Indeed, both had sprung from immortal sources, and their exploits were such as might be expected from the mythical heroes of a forgotten age.

Although Greek society when it first came under our observation was under gentile organization, the gens had passed out of its archaic stage. This ancient institution, which had carried humanity through to civilization, was gradually losing its vitality; it had lost its efficiency as a governing agency, and was about to give place to political institutions.

With the facts at present accessible regarding peoples in the lower and middle stages of barbarism, the various steps in the growth of government as administered in the upper or latter stage of barbarism are clearly observed; also by close attention to the conditions surrounding extant peoples in the latter stage of barbarism and the opening ages of civilization, the processes involved in the transfer of society from gentile to political institutions are easily traced, together with the principal ideas and motives underlying the growth of all the institutions belonging to early historic nations.

Until civilization was reached the gens constituted the unit of organized society. This fact, however, until a comparatively recent time, seems to have been overlooked. Without attempting to explain the origin of the gens and phratry as they existed in Greece, Mr. Grote observes: "The legislator finds them pre-existing, and adapts or modifies them to answer some national scheme." Unacquainted as this writer evidently was with the construction of primitive society, he failed to observe that originally, in Greece, all the powers of the legislator himself were derived from and circumscribed by the gens. Indeed, that this organization upon which the superstructure of Grecian society rested was the original source whence proceeded all social privileges and all military rights and obligations, is a condition which until a comparatively recent time has been overlooked. While discussing the relations of the family to the gens, the gens to the phratry, and the phratry to the tribe, Mr. Grote says: "The basis of the whole was the house, hearth, or family—a number of which, greater or less, composed the gens, or genos."¹⁴⁷

Mr. Morgan has shown, however, that the family could not have constituted the basis of the gens, for the reason that the heads of families belonged to separate gentes. We are assured that the gens is much older than the monogamic family, and therefore that the latter could not have formed the basis of the gentile organization; but even had the family preceded the gens in order of development, as its members belonged to different gentes it could not have constituted the unit of the social series.

In order to gain a clear understanding of the processes and principles involved in the early Grecian form of government, it first becomes necessary briefly to review the various steps in the growth of the governmental functions through two ethnical periods.

The tribe is a community of related individuals possessed of equal rights and privileges, and bound by equal duties and responsibilities. It has been shown that in the Lower Status of barbarism the government consisted of only one power—a council of chiefs elected by the people. During the Middle Status of barbarism two powers appear,—the civil and military functions have become separated, the duties of a military commander being co-ordinated with those of a council of chiefs. The military commander, however, has not succeeded in drawing to himself the powers of a ruler or

king. In the Second Status of barbarism tribes have not begun to confederate. A single tribe, its members bound together by the tie of kinship and united by common rights and responsibilities, owning their lands in common, and each contributing his share toward the common defence, so long as it was able to maintain its independence, had little need for an elaborate form of government. As yet no strifes engendered by envy and extreme selfishness had arisen to disturb the simplicity of their lives, or to check the development of those early principles of liberty and fraternity which were the natural inheritance of the gens. A council of chiefs elected by the gentes and receiving all its powers from the people had thus far performed all the duties of government.

After the Upper Status of barbarism is reached we find confederated tribes dwelling together in walled cities surrounded by embankments, and a state of affairs existing which called for a further differentiation of the functions of government, and a redistribution of the powers and responsibilities of the people. In process of time, with the accumulation of property in masses in the hands of the few, and the consequent rise of an aristocracy, a government founded on wealth, or on a territorial basis, rather than on the personal relations of an individual to his gens, was demanded; and, finally, those principles, rights, and privileges which constitute a pure democracy, and which had always formed the basis of gentile institutions were gradually ignored; that personal influence which was originally exercised by each and every gentilis being transferred to a privileged class—a class which controlled the wealth, and at the head of which was the military commander or *basileus*. Such was the condition of Grecian society as it first appears in history.

A comparison instituted by Mr. Morgan between the Iroquois gens and that of the Greeks shows the former at the time when it first came under European observation to have been in the archaic stage, with descent and all the rights of succession traced in the female line; while the latter, at the time designated as the heroic age, had not only changed the manner of reckoning descent from the female to the male line, but was evidently about to give place to political society which, instead of being founded on kinship, was based on property and territory, or upon a man's relations to the township or deme in which he resided.

While the Iroquois tribe of Indians represents the gens in its original vitality, the Greeks appear to have reached a stage at which the archaic form of government instituted on the basis of kin was found inadequate to meet their necessities; hence the confusion arising from disputed authority, at the almost interminable struggle between the various classes which had arisen, and the evident disaffection and unrest manifest among the entire Grecian people during the ages intervening between Codrus, nearly eleven hundred years B. C., and Clisthenes, five hundred years later.

That degree of jealousy with which individual liberty was guarded during the earlier ages of historic Greece, that thirst for freedom, and that restlessness under tyranny which characterized the Grecian people throughout their entire career, are explained by the fact that prior to the age of Clisthenes they were under gentile institutions, the fundamental principles of which were liberty, equality, and justice. From all the facts which may be gathered bearing upon this subject, it is evident that although at the beginning of the historic period the Greeks had lost much of that independence which belonged to an earlier stage of human development, their institutions still partook of the character of a democracy.

Of the similarity of the customs and institutions of early historic Greece and those of a more primitive age we have ample evidence. In ancient Greece, as among the Iroquois tribe of Indians, "property was vested absolutely in the clan, and could not be willed away from it."¹⁴⁸ Not only did the members of a clan hold their property in common, but they were obliged to help, defend, support, and even avenge those of their number who required their assistance. Young females bereft of near relations were either furnished with husbands or provided with suitable portions. Descent must still have been reckoned in the female line, for foreigners admitted to citizenship were not members of any clan, neither were their descendants, unless born of women who were citizens. Citizens were enrolled in the clan and phratry of their mothers.¹⁴⁹

In the administration of the government, however, are to be noted a few important changes. The complications which had arisen as a result of the individual ownership of property, the change in the reckoning of descent from the female to the male line which followed, and the growth of the aristocratic element, had produced a corresponding change in the control

and management of the government. Solicitude for the common weal, although still felt by the great mass of the people, had among the rulers given place to extreme egoism, and that association and combination of interests, which since the dawn of organized society had characterized the gens, was rapidly giving way before the love of dominion, the thirst for power, and the greed of gain—characters which in process of time came to represent the mainspring of human action.

With the changes which took place in the conditions of the people, it is seen that the administrative functions became still further differentiated. Co-ordinate with the Greek *basileus* or war-chief are to be observed not only a council of chiefs who were the heads of the gentes, but also an assembly of the people, these three governmental functions corresponding in a general way to our President, Senate, and House of Representatives.

The Ecclesia or general assembly at Sparta was originally composed of all the free males who dwelt within the city. Although this body originated no measures, it was invested with authority to adopt or reject any proposed legislation or plan of action devised by the chiefs. “All changes in the constitution or laws, and all matters of great public import, as questions of peace or war, of alliances, and the like, had to be brought before it for decision.”¹⁵⁰ Thus may be observed the precautions which during the latter stages of barbarism had been taken to guard the rights of the people, and to insure them against individual and class usurpation.

Curtius assures us that the Dorian people

did not feel as if they were placed in a foreign state, but they were the citizens of their own—not merely the objects of legislation, but also participants in it, for they only obeyed such statutes as they themselves had agreed to.¹⁵¹

Although Mr. Grote would have us believe that the assembly of the people was simply a “listening agora,”¹⁵² it is plain that it was originally invested with sufficient power to protect the people against despotism. In the further differentiation of the administrative functions the powers of the subordinate officers are all drawn from the sum of the powers invested in the three principal branches of the government, the ill-defined duties of

each giving rise to those unabated dissensions and fierce and unrelenting strifes which in course of time became such a fruitful source of devastation and bloodshed.

From what is known at the present time regarding Greek society prior to the age of Theseus, it is not at all likely that it was organized on monarchical principles, or that any form of government prevailed in Greece other than that of a military democracy. It is true that by most of the writers who have dealt with the subject of the government of the early Greeks, the *basileus* has been designated as king, and that he has been invested by them with all the insignia of a modern monarch. In later times, however, with a better understanding of the principles underlying early society, this view of the matter is seen to be false. Mr. Morgan, a writer who as we have seen has given much attention to the constitution of gentile society, informs us that in the Lower and also in the Middle Status of barbarism the office of chief was elective or during good behaviour, “for this limitation follows from the right of the gens to depose from office.”¹⁵³

When descent was in the female line this office descended either to a brother of the deceased chief or to a sister’s son, but later, when descent began to be traced in the male line, the eldest son was usually elected to succeed his father. Upon this subject Mr. Morgan says further:

It cannot be claimed, on satisfactory proof, that the oldest son of the *basileus* took the office, upon the demise of his father, by absolute hereditary right.... The fact that the oldest, or one of the sons, usually succeeded, which is admitted, does not establish the fact in question; because by usage he was in the probable line of succession by a free election from a constituency. The presumption on the face of Grecian institutions is against succession to the office of *basileus* by hereditary right; and in favour either of a free election, or of a confirmation of the office by the people through their recognized organization, as in the case of the Roman rex. With the office of *basileus* transmitted in the manner last named, the government would remain in the hands of the people. Because without an election or confirmation he could not assume the office; and because, further, the power to elect or confirm implies the reserved right to depose.¹⁵⁴

There is no lack of evidence at the present time going to prove that all these early tribes were originally organized on thoroughly democratic principles, and that there never was any dignity conferred on the leader of the early Grecian hosts answering to the present definition of king; also that prior to the time of Romulus, no chieftain of the Latin tribes was ever invested with sufficient authority to have constituted him an imperial ruler. The term *basileus*, as applied to a leader of a military democracy in the early ages of Grecian history, doubtless implies simply the war-chief of the primitive tribe, an officer chosen from among the chiefs of the gentes as a leader of the hosts in battle, but as claiming no civil functions, and as possessing no authority outside the office of military chieftain.

The Homeric writings, which contain the earliest direct information which we have of the Greeks, and in which are doubtless mirrored forth a tolerably correct picture of the customs, institutions, and manners of this people, when read by the light of more recently developed facts relative to the early constitution of society, are invested with new interest, and a fresh charm and a new significance are added to every detail connected with the narrative. As to the extent of authority attached to the office of military leader among the Greeks, Homer has given us a fair illustration in the person of Agamemnon—"shepherd of the people." That the position of this chieftain differs widely from that occupied by the king of succeeding ages is apparent. At the outset we find the injured Achilles, after he has taunted the chieftain with being the "greediest of men," addressing him in the following language:

Ha, thou mailed in impudence
And bent on lucre! Who of all the Greeks
Can willingly obey thee, on the march,
Or bravely battling with the enemy!¹⁵⁵

Then Pelides takes up the strain and with opprobrious words thus addresses the son of Atreus:

Wine-bibber with the forehead of a dog
And a deer's heart. Thou never yet hast dared
To arm thyself for battle with the rest,
Nor join the other chiefs prepared to lie
In ambush,—such thy craven fear of death.
Better it suits thee, midst the mighty host
Of Greeks, to rob some warrior of his prize
Who dares withstand thee. [156](#)

Even the brawler Thersites,

Squint-eyed, with one lame foot, and on his back
A lump, and shoulders curving towards the chest,

dares to insult this chief—this king as he is represented by most modern writers, and to his face taunt him with his injustice towards Achilles. To Agamemnon he says:

Of what dost thou complain; what wouldst thou more,
Atrides? In thy tents are heaps of gold;
Thy tents are full of chosen damsels, given
To thee before all others, by the Greeks,
Whene'er we take a city. Dost thou yet
Hanker for gold, brought by some Trojan knight,
A ransom for his son, whom I shall lead—
I, or some other Greek—a captive bound?
Or dost thou wish, for thy more idle hours,
Some maiden, whom thou mayst detain apart?
Ill it beseems a prince like thee to lead
The sons of Greece, for such a cause as this,
Into new perils. O ye coward race!
Ye abject Greeklings, Greeks no longer, haste
Homeward with all the fleet, and let us leave
This man at Troy to win his trophies here,
That he may learn whether the aid we give
Avails him aught or not, since he insults
Achilles, a far braver man than he.¹⁵⁷

It is true Ulysses smote Thersites as he upbraided him for this insult to Agamemnon. It is plain, however, that the chastisement was of a private nature. It seems not to have been a crime openly to berate their chief. Indeed the position of “shepherd of the people” was not one of such dignity that any warrior among the hosts might not with impunity freely speak his mind concerning him, or to his face confront him with improper behaviour. When Agamemnon compared unfavourably the valour of Diomed with that of his father, Tydeus, Sthenelus, the honoured son of Capaneus, hesitated not to remind the chief of his folly, and to his face upbraid him. “Atrides, speak not falsely when thou knowest the truth so well.”¹⁵⁸

Regarding the office of king, Mr. Morgan says:

Modern writers, almost without exception, translate *basileus* by the term *king*, and *basileia* by the term *kingdom*, without qualification, and as exact equivalents. I wish to call attention to this office of *basileus*, as it existed in the Grecian tribes, and to question the correctness of

this interpretation. There is no similarity whatever between the *basileia* of the ancient Athenians and the modern kingdom or monarchy.... Constitutional monarchy is a modern development, and essentially different from the *basileia* of the Greeks. The *basileia* was neither an absolute nor a constitutional monarchy; neither was it a tyranny nor a despotism. The question then is, what was it?

Mr. Morgan's answer to the question is as follows:

The primitive Grecian government was essentially democratical, reposing on gentes, phratries, and tribes organized as self-governing bodies, and on the principles of liberty, equality, and fraternity.

This writer says further:

Our views upon Grecian and Roman questions have been moulded by writers accustomed to monarchical government and privileged classes, who were perhaps glad to appeal to the earliest known governments of the Grecian tribes for a sanction of this form of government, as at once natural, essential, and primitive.^{[159](#)}

We have noted the precautions which during the second and latter periods of barbarism were necessary to keep in check the increasing thirst for power, and it may not be doubted that through the growth of the aristocratic tendency during the latter ages of the existence of the gens, the office of *basileus* gave to its incumbent a degree of distinction closely allied to that of king.

In the eleventh century B. C., upon the death of Codrus, so necessary had it become to check the continually increasing power of the military chieftains that the office was abolished and the archonship established in its place; but as an election or confirmation was necessary before the duties of either office could be entered upon, it is plain that at the period referred to a democratic form of government still prevailed.

Now archon is the term which had been applied to the chief of the early gentes at a time when fraternity, liberty, and equality were the cardinal virtues of society; and the abolition of the office of *basileus*, to which had

become attached a considerable degree of power, was doubtless an attempt on the part of the people to return to the simpler and purer methods of government which had formerly prevailed; but the institution known as the Agora, Ecclesia, or Appella, which had proved the great bulwark of safety to early democratic institutions, had, through the strengthening of the aristocratic element, become gradually weakened, hence the nobles were in a position to draw to themselves not only much of the power originally exercised by the military commander, but that also which had formerly belonged to the assembly of the people. We have observed that not only among the Greeks of the heroic age, but among the tribes and nations which preceded them, as far back in the history of the past as the close of the second stage of barbarism, there had always been an assembly of the people whose duty it was to guard the rights of the tribe, to protect it against usurpation, and to keep down the rising tendency toward imperialism. Of this institution, Mr. Rawlinson says: "Thus at Athens, as elsewhere, in the heroic times, there was undoubtedly the idea of a public assembly consisting of all freemen."¹⁶⁰

Theseus, *basileus*, or military chieftain of the Athenian tribes, a personage who belongs to the legendary period, was the first to perceive the insufficiency of gentile institutions to meet the needs of the people. Although the primary idea involved in the establishment of political society was the transference of the original governmental functions from the gens to a territorial limit, so deeply had the instincts, ideas, and associations connected with the personal government of the gens taken root that several centuries were required to accomplish the change. To establish the deme or township, in which, irrespective of kinship or personal ties, all its inhabitants (except slaves) should be enrolled as citizens, with rights, privileges, and duties adjusted according to the amount of property owned by each, and which should be a unit of the larger and more important institution—the State,—was an undertaking the mastery of which although seemingly simple, nevertheless involved intricacies and obstacles of such magnitude as to baffle all attempts of the Greeks from the time of Theseus to that of Clisthenes, at which time political society was established, and the gens, shorn of its utility and power, remained only as the embodiment of certain social ideas, or survived as a religious centre, over which their eponymous ancestor, as hero or god, still presided.

The age of Theseus could not have been later than 1050 B.C., and the final overthrow of gentile government did not, as we have seen, occur until the age of Clisthenes, five hundred years later. Throughout the intervening time between Theseus and Clisthenes little real advancement is noted among the Greeks; none, perhaps, except that connected with the growth of the idea of government as indicated by the change from gentile to political institutions, and even this growth, when we observe that nearly five centuries and a half were required to establish it, or to substitute the deme or township in the place of the gens as the unit in the governmental series, can scarcely be regarded as evidence of remarkable genius, or as indicating a notable degree of ingenuity. In the transference of society, however, from gentile to political institutions may be observed a progressive principle, inasmuch as by it the limits of the gens and tribe were gradually broken down or obliterated, and the enlarged conception of the state established in their stead. After the age of Clisthenes an isolated community bound together by kinship, and with interests extending no further than the tribe of which it was a part, no longer constituted the fundamental basis upon which the superstructure of society was to rest; but, on the contrary, the deme or township, with all its free inhabitants, of whatsoever tribe or gens, was to become the recognized unit in organized society.

Prior to the age of Theseus, Attica was divided into petty states, each with a council-house of its own. According to the testimony of Thucydides, from the time of Cecrops to Theseus

the population of Athens had always inhabited independent cities, with their own guild-halls and magistrates; and at such times as they were not in fear of any danger they did not meet with the king to consult with him, but themselves severally conducted their own government, and took their own counsel.^{[161](#)}

The *basileus* or war-chief exercised no civil functions,^{[162](#)} and his services were never called into requisition except in times of danger.

Theseus upon receiving the office of military chieftain “persuaded” the people in the adjacent country to remove to the city.^{[163](#)} According to Plutarch he “settled all the inhabitants of Attica in Athens and made them one people in one city.”^{[164](#)} He persuaded them to abolish their independent

city governments and to establish in their stead, at Athens, a council-house which would be common to all. Thus, under his direction, the Attic peoples coalesced, or were united under one government. Theseus, we are told, divided the people into three classes, irrespective of gentes, on the basis of property and social position. The chiefs of the several gentes with their families, and the citizens who through their great wealth had become influential, constituted the first class; the second class were the husbandmen, and the third the mechanics. All the principal offices both of the government and the priesthood were in the hands of the nobles or the moneyed and aristocratic classes. Thucydides refers to the fact that “when Greece was becoming more powerful, and acquiring possessions of money still more than before, tyrannies were established in the cities.”¹⁶⁵

Upon this subject Mr. Rawlinson says:

All important political privilege is engrossed by the Eupatrids, who consist of a certain number of “clans” claiming a special nobility, but not belonging to any single tribe, or distinguishable from the ignoble clans, otherwise than by the possession of superior rank and riches. The rest of the citizens constitute an unprivileged class, personally free, but with no atom of political power, and are roughly divided, according to their occupation, into yeoman-farmers and artisans. The union of the Eupatrids in the same tribes and phratries with the Geomori and Demiurgi, seems to show that the aristocracy of Athens was not original, like that of Rome, but grew out of an earlier and more democratical condition of things—such, in fact, as we find depicted in the Homeric poems.... Thus at Athens, as elsewhere, in the heroic times, there was undoubtedly the idea of a public assembly, consisting of all free-men; but this institution seems entirely to have disappeared during the centuries which intervened between Codrus and Solon.¹⁶⁶

During the three hundred years which followed the death of Codrus, nothing of great importance is observed concerning the growth of Grecian institutions. Doubtless their development was characterized only by the strengthening of the aristocracy and the stimulation of those egoistic principles which are essential in the establishment of an oligarchy. That in

course of time the power attached to the office of archon also became a menace to the people's liberties is shown in the fact that in the first year of the seventh Olympiad, B.C., 752, the life archonship was brought to a close and the term of office reduced to ten years. Although the office was still limited to the family of Codrus, the incumbent became amenable to the elders or chiefs for his acts. However, that this movement was not wholly in the interest of the masses of the people is shown in the fact that during the following thirty years the Eupatrids, or members of the aristocratic party, had drawn to themselves all the power belonging to the archonship. It is observed that during the reign of the fourth decennial archon, a pretext having been found to depose him, the reigning family or gens was declared as having forfeited its right to rule and the office was thrown open to all Eupatrids. Nine archons from among the aristocratic party, with all the powers formerly belonging to the supreme archon, conveyed to them, were chosen as a governing board,¹⁶⁷ and were to continue in office for one year. Selected by and from among the Eupatrids, their legislation was wholly in the interest of the wealthy and privileged classes.

From 684 B.C. to 624 B.C., the aristocratic party exercised unlimited control over the Athenian state, and during the entire sixty years used their great power to crush out even a semblance of free institutions. The thirst for power among them was equalled only by their greed for gain; hence while wielding the former, they gratified their cupidity by gathering into their own coffers almost the entire wealth of the nation. With the machinery of legislation turned against them, the middle and lower classes were soon robbed even of their means of support. Most of the land was mortgaged, and the persons of the owners held by the Eupatrids for debt. Men sold their children and their sisters to satisfy the demands of creditors,¹⁶⁸ and such was the inequality existing between various classes that dissensions arose on every hand, and a general state of confusion, disorder, and discontent prevailed. Thus may be observed some of the processes by which the early principles of fraternity, liberty, and justice were overthrown.

At length the sufferings of the people caused by the injustice and rapacity of their rulers became unbearable, and by means of various signs of discontent, notably that of a popular demand for written laws, it became evident that a crisis had been reached. The Eupatrids, pretending to heed the popular demand, elected Draco, one of their number, to the office of archon,

with the understanding that a code of written laws defining the rights of the several classes be prepared.

As the Greeks of the Draconian and Solonic age were but a few centuries removed from a time when individual liberty and equality had constituted the cardinal principles upon which society was founded, we may believe that that spirit of personal independence and self-respect which had been inherited from gentile institutions, although it had perhaps slumbered, had never been crushed; therefore, a condition of subjection or slavery, although for a time endured, could not be willingly accepted as a settled fact.

As the laws prepared by Draco tended only to aggravate the abuses of which the people complained, it is quite evident that no reform was intended; the Eupatrids, however, had mistaken the temper of the people, and the fact soon became manifest, even to the members of the governing classes themselves, that certain concessions must be made to the popular demand for justice. An idea of the rapacity, greed, dishonesty, and cupidity which prevailed at this stage of Greek life may be obtained from the writings of Theognis, a poet of Grecian Mega, who lived about five hundred and seventy years B.C. Among his Maxims appear the following:

Now at length a sense of shame hath perished among mankind, but shamelessness reigns over the earth. Everyone honours a rich man but dishonours a poor: And in all men there is the same mind.... No one of the present race of men doth the sun look down upon, being entirely good and moderate.... When I am flourishing, friends are many; but should any calamity have chanced upon me, few retain a faithful spirit. For the multitude of men there is this virtue only, namely, to be rich: But of the rest, I wot, there is no use.

The fact is obvious that already in the history of the Greeks the love of property and the rise of the aristocratic spirit had gained such a foothold that a democracy was no longer desired by the more influential citizens, and that it was the moneyed classes and the aristocratic party who were growing restless under institutions which acknowledged the equality of all free-born citizens.

Doubtless the power which had been hitherto exercised by the gentes had already been drawn to the moneyed classes; still, this attempt to organize society into classes on the basis of property and station was perhaps the first regulated movement openly to curtail the hitherto recognized power of the individual members of the gens, and doubtless constituted the first formulated step towards the subsequent removal of this ancient institution from its original position as the unit in the governmental series.

From accessible facts to be gathered relative to early Greek society, it is plain that individual liberty perished with the gens, and that monarchy, aristocracy, and slavery were the natural results of the decline of the altruistic principles upon which early society was founded.

CHAPTER II

WOMEN IN EARLY HISTORIC TIMES

As it is claimed that the history of the natural growth of society is represented by the extant tribes in the varying stages of advancement from savagery to civilization, and as upon our first acquaintance with the Greeks we find them just emerging from barbarism and preparing to enter upon a civilized career, we may naturally expect to find in their various traditions, customs, forms of marriage, etc., some hint of that influence which, but little more than one ethnical period before, had been exercised by women, and some clue to the processes involved in the change from female to male supremacy.

From the facts which are gradually coming to light concerning society in the early historic period, it is observed that the extant mythoses and traditions of the ancients contain a mixture of history, mythology, and astrology. Until a comparatively recent time no attempt has been made to separate the former from the latter two.

Herodotus opens his account of the Greeks with a story of the capture of women. The Phœnicians, the great maritime people of that time, had sent ships loaded with merchandise to Argos. When nearly all was disposed of there came down to the beach several women among whom was Io, child of Ianchus the king. As the women were standing by the stern of the ship attending to their purchases, the foreign sailors rushed upon them and attempted to carry them off. The most of them made their escape, but a number were taken away and Io amongst them. [169](#)

Doubtless beneath this myth is concealed a religious doctrine which had an historical basis. The original version of the legend was that Io who was carried to Egypt by a god became the mother of a race of hero-kings; but when the true significance of the early physiological, religious myth was forgotten, this one of Io, too, after having become mutilated and distorted to suit a more degenerate time, was accepted in a purely literal sense and made

to do duty as actual history. Following this narrative in the history of Herodotus is the story of Europa who was carried away by the Greeks.

In the next generation was enacted the seizure of Helen by Paris, son of Priam, a deed which, whether committed for revenge or lust, is supposed to have constituted the sole cause of the Trojan War—a struggle which continued for nine years. Helen had previously, and while but a child, according to Plutarch, been carried off by Theseus, founder of Athens, and borne away to Egypt. Indeed it would seem from the accounts of this hero that his exploits were instigated for the most part by a desire to possess himself of women. Even later in the history of the Greeks we find that Pausanius, King of Sparta, upon the defeat of the barbarians, received as his share of the booty, ten specimens of the following articles: “women, horses, talents, and camels.” The familiar story of the seizure of the Sabine women by the Romans is regarded as a probable myth or as a doubtful fact; yet, when we remember that not far distant in the past, capture constituted the only form of marriage, the acts of violence committed on women are invested with a fresh interest, for by them we are enabled to trace the identity of the processes of development between historic nations and the tribes occupying a lower position in the scale of advancement.

Although Homer traces genealogies through fathers, the fact will doubtless be observed that two generations generally suffice to carry men back to an unknown or divine progenitor. Indeed many of the Greeks of Homer’s time sprang directly from gods. Tlepolemus was of the stock of Hercules. Priam and his sons were descendants of Zeus, and many of the noblest Greeks derived their origin from Mars. Helen also was the descendant of Zeus.

A tradition from Varro in reference to the decline of woman’s power in Athens is as follows:

In the age of Cecrops two wonders sprang from the earth at the same time, one of which was the olive tree, the other water. The king in terror dispatched a messenger to Delphi to ascertain what he was to do in the matter. The oracle in response answered that the olive tree signified Minerva (Athene), and the water Neptune (Poseidon); and that it was optional with the Burgesses after which of the two they

would name their town. Cecrops convened an assembly of the Burgesses, both men and women, for it was customary then for the women to take part in the public counsels. The men voted for Poseidon, the women for Athene, and as there were more women than men by one, Athene conquered. Thereupon Poseidon became enraged, and immediately the sea flowed over all the land of Athens. To appease the god the Burgesses were compelled to impose a three-fold punishment upon their wives: They were to lose their votes; the children were to receive no more the mother's name; and they themselves were no longer to be called Athenians after the goddess.

We are assured that prior to the struggle between Athene and Poseidon for the mastery in Athens, children in Attica and Lycia were named after their mothers, and that the people as a body were called after the goddess. Formerly the women were actual Burgesses but after the decision that the office of father in the processes of reproduction is superior to that of the mother the women lost their position as Burgesses and became only the wives of Burghers. It is the vote of Athene herself which decides that the child is the production of the father. The ancient Attic traditions are full of references to female supremacy. Indeed, Herr Bachofen is certain that he has found proof of female descent and supremacy not only among the early Greek tribes but in every branch of the Indo-Germanic family.

The Grecian tribes were named after women, as were also the ancient cities of Greece. The founders of these cities and the eponymous leaders of the various peoples were women who had been "carried off by gods." Sarpedon and Minos who quarrelled over the government of Lycia were the sons of Europa¹⁷⁰ who had been carried off from Tyre on the Phœnician coast. Thebe, the eponymous leader of the Thebans, and Egina, the founder of Egina, were sisters. Therefore when the oracle commanded the Thebans to seek succour from their nearest of kin, they applied to the Eginetans, thereby proving that at that time relationships were still traced through women.

The Greek tradition of the Scythian nation is as follows: As Hercules was passing through the country he came to a district called the Woodland. While he slept, the mares which he had loosed from his chariot wandered away, and while in quest of them he came to a cave in which dwelt a being

with the head of a woman and the body of a serpent, probably a goddess representing the two creative principles throughout nature. Upon being asked by Hercules if she had seen his mares, she replied, “yes,” but that unless he would remain with her she would not yield them to him, whereupon he consented to do her bidding. Later, as she questioned him as to his wishes concerning the three sons which she had borne him, she said: “Wouldst thou wish that I should settle them here in this land whereof I am mistress, or shall I send them to thee?” Hercules placed in her hand a bow with instruction that the son which when grown to manhood should bend it in a certain way should remain as king of the land. Scythes, the youngest son of the goddess, was the successful competitor. From this time gods, not goddesses, are in the possession of the country.¹⁷¹ Europe, Asia, and Lybia (Africa) are named after women, and in nearly all the earliest traditions, a woman, either divine or human, appears as the eponymous leader of the people.

The tradition respecting the daughters of Danaūs fleeing from their native land to avoid the hateful caresses of the sons of Egyptus, doubtless refers to a time when relationships were beginning to be traced through males, and when under the *ba'al* form of marriage they were beginning to claim the right to control the women of their own group.

Egyptus and Danaūs were brothers, the former of whom had fifty sons, the latter fifty daughters. Upon the sons of Egyptus demanding that their cousins unite with them in marriage, the women immediately fled by sea to Argos and placed themselves under the protection of Pelagus. Although hotly pursued by their tormentors, they reached Argos in safety; the following is their supplication as set forth by Æschylus:

On this moist shore, drive them into the deep,
With all their flying streamers and quick oars,
There let them meet the whirlwind's boisterous rage,
Thund'rings and lightnings, and the furious blasts
That harrow up the wild tempestuous waves,
And perish in the storm, ere they ascend
Our kindred bed, and seize against our will
What nature and the laws of blood deny.¹⁷²

After having reached Argos and after having besought Pelasgus to espouse their cause, he says:

If by your country's laws Egyptus' sons,
As next of blood, assert a right in you,
Who should oppose them? It behooves thee then
By your own laws to prove such claim unjust.

To which they make answer:

Ah! never may I be perforce a thrall
To man. By heaven-directed flight I break
The wayward plan of these detested nuptials.
Arm justice on thy side, and with her aid,
Judge with what sanctity the gods demand.

The reply of Pelasgus is as follows:

No easy province: Make not me your judge,
Great though my power, it is not mine to act,
I told thee so, without my people's voice
Assenting.

It is plain that these lines refer to a time when woman was not "a thrall to man." It relates also to a time when the *basileus* or chief could not act without the consent of his people.

That in the earliest traditions and accounts of the Greeks, women occupy a much more exalted position than they do four or five centuries later, is a fact which can be explained only by the truths which have been set forth in the foregoing pages; namely, the capture of women for wives, at first singly and finally in groups. We have seen that during the period designated as the Latter Status of barbarism, wars were frequently undertaken upon no other pretext than that of securing women for wives. Cities were attacked and destroyed, the men murdered, and the women carried away captives. Property both landed and personal was seized and held by the conquerors, and as these captured women were strangers, aliens, and dependents in the countries to which they were taken, they became simply sexual slaves, or wives, and in process of time sank to the position in which we find them under Solon, the lawgiver of Athens.

The difference in the sentiments entertained toward women during Homer's time and those which had come to prevail among the Greeks in the sixth century, B.C., may be observed in the following lines from Æschylus, and also in a quotation from *The Iliad*, which follows. At the siege of Thebes, when the women, fearing captivity more than death, appeared before the sacred images to pray for protection, Etiocles the chief, trembling with fear, and himself praying loudly to Jove, to Earth, and "all the guardian gods," being displeased with the attitude of the female supplicants, and doubtless eager to exercise his authority over women thus displays his contempt for them:

It is not to be borne, ye wayward race;
Is this your best, is this the aid you lend
The State, the fortitude with which you steel
The souls of the besieged, thus falling down
Before these images to wail, and shriek
With lamentations loud? Wisdom abhors you.
Nor in misfortune, nor in dear success,
Be woman my associate. If her power
Bears sway, her insolence exceeds all bounds,
But if she fears, woe to that house and city.
And now, by holding counsel with weak fear,
You magnify the foe, and turn our men
To flight: thus are we ruined by ourselves.
This ever will arise from suffering women
To intermix with men. But mark me well,
Whoe'er henceforth dares disobey my orders,
Be it man or woman, old or young,
Vengeance shall burst upon him, the decree
Stands irreversible, and he shall die.
War is no female province, but the scene
For men: hence home; nor spread your mischiefs here,
Hear you, or not? Or speak I to the deaf?¹⁷³

From this scene pictured by Æschylus five centuries and a quarter B.C., let us return to the siege of Troy, three centuries earlier, and listen to Homer. During the thickest of the fight Helenus, approaching Eneas and Hector, his brother, thus addresses the latter:

But, Hector, thou depart
To Troy and seek the mother of us both
And bid her call the honoured Trojan dames,

that at the fane of Pallas they may supplicate for mercy in behalf of the wives and little ones of the defenders of Troy. Whereupon the noble Hector calls aloud:

O valiant sons of Troy, and ye allies
Summoned from far! Be men, my friends; call back
Your wonted valour, while I go to Troy
To ask the aged men, our counselors,
And all our wives, to come before the gods
And pray and offer sacrifice.^{[174](#)}

After referring to the generally conceded fact that in Europe the spread of civilization has been commensurate with the influence exercised by women, Mr. Buckle expresses himself as being unable to account for the seeming inconsistencies which are presented by a comparison of the position occupied in Greece by the women of Homer's time, and that as pictured by the laws, usages, and social customs in the age of Plato and his contemporaries.

Although the Greeks during the ages which intervened between Homer and Plato had made many notable improvements in the arts of life, and in various branches of speculative and practical knowledge, women had evidently lost ground, "their influence being less than it was in the earlier and more barbarous period depicted by Homer."^{[175](#)}

The fact will doubtless be borne in mind that at the time Mr. Buckle penned these words comparatively little concerning the construction or organization of primitive society was known. That one ethnical period and a half prior to the earliest age of the historic Greeks, woman's influence was supreme in the family and in the gens, that descent was reckoned in the female line, and that all rights of succession were traced through mothers, are facts with which this writer was evidently unacquainted; hence, we are not surprised that in contemplating a social phenomenon like that presented by the diminution of woman's influence during the ages between Homer

and Plato, he should have been at a loss to account for it, and that he should have declared that the “causes of these inconsistencies would form a curious subject for investigation.”

Mr. Lecky, also, in referring to the same subject, says:

A broad line must, however, be drawn between the legendary or poetical period, as reflected in Homer and perpetuated in the tragedians, and the later historical period. It is one of the most remarkable, and to some writers one of the most perplexing, facts in the moral history of Greece, that in the former and ruder period women had undoubtedly the highest place, and their type exhibited the highest perfection.^{[176](#)}

Of marriage in the legendary period of Greek history, Mr. Grote says:

We find the wife occupying a station of great dignity and influence, though it was the practice for the husband to purchase her by valuable presents to her parents.... She even seems to live less secluded and to enjoy a wider sphere of action than was allotted to her in historical Greece.... A large portion of the romantic interest which Grecian legend inspires is derived from the women.^{[177](#)}

From the facts which have been brought to light in relation to the position occupied by women in the age in which Homer wrote, it may be observed that much of the seeming inconsistency noticed by Mr. Buckle, Mr. Lecky, Mr. Grote, and others, between the picture of Greek life as it appeared at this time, and that noticed six or seven centuries later in the age of Plato, may be easily explained. The triumph of the male over the female in human society as exemplified amongst the earliest Greeks, was of such a recent date that the influence of women was not wholly extinct, and the deference due them had not entirely given place to that lofty contempt and biting scorn which characterized the treatment of women by Greek men at a later stage of their career.

Although later in the history of this people, mothers were not regarded as related to their own children, and although in the age of Homer relationships had begun to be reckoned through fathers, in many places this

writer reveals to us the fact that the bond between mother and child was stronger than that between father and child, or that the tie between sisters and brothers of the same mother was closer than that between the children of the same father. In Apollo's address before the assembled gods, in which he advocates the ransoming of the body of Hector by Priam and his sons, Homer puts the following words into the mouth of the oracle:

A man may lose his best-loved friend, a son,
Or his own mother's son, a brother dear.¹⁷⁸

Numerous illustrations might be drawn from *The Iliad* as proof of the fact that the tie between mother and child was still regarded as more binding than that between father and child. Homer doubtless represents an age in which the manner of reckoning descent was in dispute, certain tribes acknowledging only the tie between children born of the same mother, others only the bond between those of the same father, while still others acknowledge both, though with a preference for either one or the other. In the *Eumenides* of Æschylus the idea of male descent is put forth as a new doctrine. Orestes, who has murdered his mother, Clytemnestra, asks: "Do you call me related to my mother?" Although reproaches and imprecations are heaped upon him for his inhumanity, it is found that the new doctrine in which the father is represented as the only real parent, has many adherents—that the gods have concurred in it, Athene herself having succumbed to the new faith.

No one, I think, who is acquainted with the recently developed facts relative to human growth, can carefully read *The Iliad* without observing the similarity existing between the position occupied by the women of Greece in Homer's time, and that of the women among the tribes and races in a somewhat lower stage of development. On board the "roomy ships" of the Greeks, the prizes parcelled out to the chiefs were women. We observe that even the daughters of influential and wealthy priests, like the oracle of Apollo, might be "carried off"—an act for which there was absolutely no redress except perhaps an appeal to the gods. Briseis also was a captured prize assigned to Achilles by the Greek warriors. Notwithstanding the fact that wives were still captured, we frequently find women possessed of both wealth and influence. Helen, although the wife of Menelaus, had vast treasure which she was able to take away with her when she was carried off

by Paris—treasure over which neither of her husbands seems to have had any control. Laioë, the aged wife of Priam, had gold and brass of her own with which to ransom her sons,¹⁷⁹ and Andromache, the wife of Hector, who came to Ilium from “among the woody slopes of Placos,” brought with her not only wealth but sufficient influence to secure for her the respect of the king’s household.¹⁸⁰

We have seen that in an earlier age, at a time when women were free, wives had to be captured from foreign tribes; but later, after the *ba’al* form of marriage had become established, wives were for the most part selected from the ranks of native-born women, while foreign women were usually utilized as concubines. It is true that in the Homeric age, foreign women sometimes became the wedded wives of their captors, but unless they possessed great wealth, or unless they were the daughters of kings, they were unable to command that degree of consideration due to those who were native-born. The practice, during the early history of the Greeks, of securing foreign women for concubines is doubtless the source whence sprang the custom among the Athenians of later times, of importing all classes of “kept women” from other countries, Athenian women only being reserved for wives.

During the latter stage of barbarism a marked change in the government and in the fundamental principles regulating human conduct had taken place. A review of the facts connected with the history of Greek society during the ages between Homer and Solon shows that coeval with the decline of the cardinal principles of the gens, namely, justice, equality, and fraternity, there had been also a corresponding change in the relations of the sexes; that during the time in which egoism or selfishness had gained the ascendancy over the early altruistic principles developed in human society, woman’s influence had steadily declined.¹⁸¹

CHAPTER III

ANCIENT SPARTA

Although in the writings commonly ascribed to Homer is to be observed a fairly correct picture of many phases of Greek life, the earliest authentic historical accounts which we have of this people are perhaps those of Aristotle and Plutarch. In the accounts given of the Lacedæmonians by the last named of these writers, the fact is shown that male influence among the Spartans of the time of Lycurgus had not reached that state of intense and overshadowing domination in which we find the Athenians of the Solonic period submerged.

The early Dorians were ever ready to uphold the ancient customs as opposed to innovations. In the management of public affairs they trusted to the ties of relationship rather than to political organization based on property. The policy of the Athenians, on the contrary, as enunciated by Pericles, was that "it is not the country and the people, but movable and personal property, in the proper sense of the word, which make states great and powerful." The one policy was essentially Doric, the other Ionic.^{[182](#)}

The exact time at which Lycurgus occupied the position of lawgiver to the Spartans is not known, but it is claimed by Xenophon that he lived shortly after the age of Homer. If the accounts of the Lacedæmonians which have come down to us in connection with the name of this legislator belong to that early age, if scarcely one ethnical period had elapsed since woman's influence was supreme in the home and in the group, we would naturally expect to find in their customs, usages, and regulations for the management of society, certain traces of a former state of female independence, and a hint, at least, of those principles of liberty and equality in the establishment of the commonwealth which were the result of female influence; especially would this be true as we are informed that the Spartans were a conservative people, clinging to the prejudices of more ancient times. A glance at Spartan institutions at the time indicated, furnishes ample proof of the fact that the

Lacedæmonians were still to a considerable extent living under conditions which had been established under the archaic rule of the gens.

The Spartan senate as reconstructed by Lycurgus was composed of thirty members including the two kings or military leaders.¹⁸³ These chiefs were the heads of the several gentes. The Ecclesia, or assembly of the people, “contained originally all the free males who dwelt within the city were of a legal age.”¹⁸⁴ Hence may be observed the fact that the constitution of the state was the same as that in the Upper Status of barbarism; yet the spectacle of a double monarchy (notwithstanding the fact that it has been designated as a kind of irresponsible generalship)¹⁸⁵ shows that the power attached to the office of *basileus* had become a menace to the liberties of the people; hence this equal division of responsibility and authority.

The Spartan men were warriors who had subjugated the country, making serfs of the original inhabitants. In the time of Lycurgus these gentlemen soldiers constituted an aristocratic class who spent their lives in the performance of public duties, leaving the cultivation of the soil to the serfs. Helots, the name given to the serfs, signifies “captives.” They were the slave population of Laconia.¹⁸⁶ The manufacturers and tradespeople of the towns and country districts around Sparta were free, but had been deprived of their political rights. It is evident from these facts that although the constitution of the state had not been changed, the division of the people into classes, a division which since the latter part of the Second Status of barbarism had been threatened, had through spoliation and conquest already taken place. Add to this the fact that property had passed into the hands of private individuals, and we shall observe that the conditions had already become favourable for the development of that thirst for wealth and power which characterizes monarchical institutions.

If we carefully note the early condition of Spartan society, and studiously observe the processes involved in the growth of human institutions, we shall be enabled to perceive the nature of the “load” under which the Spartans “groaned” in the time of Lycurgus. The fact has been noted that, throughout an entire ethnical period, human ingenuity had been taxed to the utmost to subdue or keep in check the growing tendency toward usurpation and tyranny, and the spectacle of a double monarchy, or of two military chieftains as they appeared in ancient Sparta, indicates an attempt on the

part of the people to divide the power which had become attached to this office, and which was doubtless already menacing the popular rights.

In addition to the turmoil and strife engendered by the thirst for power were the turbulence and frequent insurrections of the serfs, who, it will be remembered, had previously been free, and who were therefore restless and impatient under the tyranny of their Spartan masters.

Although wealth had greatly increased in Sparta during the ages immediately preceding the Lycurgan system, yet that the disorders which prevailed were in no wise attributable to luxury and enervation is shown in the fact as given by Aristotle, that the men during their frequent campaigns had become inured to the rigours and hardships of a soldier's life. He says:

For, during the wars of the Lacedæmons, first against the Argives, and afterwards against the Arcadians and Messenians, the men were long away from home, and on the return of peace, they gave themselves into the legislator's hands, already prepared by the discipline of a soldier's life (in which there were many elements of virtue), to receive his enactments.^{[187](#)}

It is indeed plain that the state of disorder which prevailed at Sparta in the time of Lycurgus can be accounted for in no other way than that the people were no longer able to keep in check the constantly increasing egoism and selfishness developed within the governing classes.

The extent to which all wise regulations are attributed to the governing head is plainly apparent in the view taken of the management of Sparta which Herodotus and Plutarch ascribe to Lycurgus, but which in the very nature of the case must have originated from other sources.

It is in no wise probable that Lycurgus instituted any such radical changes in the constitution of the state as have been ascribed to him by the above writers, for, as we have seen, prior to his appearance as lawgiver the government was administered by a military chieftain or *basileus*, a senate, and an assembly of the people. In order to strengthen their authority, the kings had made common cause with the assembly of the people, and through this means had drawn to themselves nearly all the powers originally

vested in that body; while the senate, destitute of support, had gradually yielded up its functions to them.

Before accepting the statements of these writers, attributing to Lycurgus that almost unparalleled degree of genius by means of which was originated an entirely new set of institutions, all the accessible facts relative to these institutions should without prejudice be closely scrutinized, especially as they involve principles and actions which could scarcely have been forced upon a people through an arbitrary stretch of power in the hands of a single individual.

Doubtless the principal changes in the government inaugurated by Lycurgus were, first, the importance which he caused to be attached to the assembly of the people, and second, the restoration of the senate. By strengthening this body, which was originally composed of the heads of the gentes, the gentile organization was in a measure restored to its original dignity. The extreme anxiety felt in the time of Lycurgus lest the people's rights be invaded, is shown in the fact that the three administrative functions of the government were supplemented by five ephors chosen annually as agents of the people, whose chief prerogative it was to scrutinize the acts of the chief magistrate and other guardians of the commonwealth. Although the office of the ephors is much older than the Lycurgan legislation,¹⁸⁸ it had previously been abolished, or had sunk into disuse. The ephors of Lycurgus were "probably appointed for the special purpose of watching over the Lycurgan discipline, and punishing those who neglected it."¹⁸⁹

Later, however, when through the greed for gain and the inordinate thirst for power, the ephors in their turn had drawn to themselves the greater share of the powers belonging to the state, the military commander, or so-called king, became responsible to them for his conduct even while directing the army in the field. He received his orders from them, and although in cases of emergency he was authorized to exercise the power of life and death, according to Xenophon, they could accuse the king and compel him to defend his acts or suffer the penalty of death. By a gradual process of usurpation the ephors had, "by the time of Thucydides, completely superseded the king as the directors of affairs at Sparta."

The fact has been observed that the authority of the senate, a body which in earlier times had been composed of the heads of the genets, who were elected by all the people, and who held their office only during good behaviour, had, in the time of Lycurgus, through the growth of the monarchial and aristocratic party become weakened; and that, as the kings had drawn to themselves the powers formerly belonging to the popular assembly, the people were no longer represented, but had been obliged to surrender their independence to the authority of the military leaders. It is altogether likely, therefore, that the load under which the Spartans are said to have groaned, and from which Lycurgus is supposed to have released them, was the undue assumption of power by the *basileus* and the aristocratic party; and that the chief service which he lent to the state was the sanction which he gave to those principles of equality and liberty which had been recognized and practised at a time when the gens as the unit of human society was still in its original vitality and strength, and when woman's influence was therefore in the ascendancy.

Most modern writers agree in the opinion that Lycurgus instituted no fundamental changes in the constitution of the state; indeed all the accessible facts relative to this subject go to prove that the attempt at legislative reform in the time of this lawgiver did not begin with him; but, on the contrary, that all along the line of development, for an entire ethnical period, there had been a struggle between the people on the one hand and the constantly increasing power exercised by their rulers on the other.

Concerning the measures instituted by Lycurgus, and the way in which the political power was distributed by him, we are assured that it was according to a Rhetra of this legislator given under the direction of the Pythian Apollo:

Build a temple to Jupiter Hellanius and Minerva Hellania; divide the tribes, and institute thirty obas; appoint a council, with its princes; convene the assembly between Babyca and Cnacion; propose this, and then depart; and let there be a right of decision and power to the people.^{[190](#)}

By this decree the assembly was invested with authority to reject or accept any proposed measures of the council and princes. Later, however,

when the chiefs and the military leaders would draw to themselves a portion of the power which had been delegated to the people, we find subjoined to the original document of the priestess the following clause: "But if the people should follow a crooked opinion, the elders and the princes shall dissent." Or, according to Plutarch: "If the people attempt to corrupt any law, the senate and chiefs shall retire," meaning that "they shall dissolve the assembly and annul the alterations."¹⁹¹

According to the testimony of Plutarch, when Lycurgus entered upon the duties of lawgiver he went to Crete, and while there examined the laws of that people; those of them which he considered wise and suited to the needs of a commonwealth and which were based on principles involving the highest interests of the people, he incorporated into his system. Now the Cretans were a branch of the Doric stock,¹⁹² and as among them descent and rights of succession were still traced through women, it would seem that they had preserved much of that simplicity of manner which characterizes primitive society. Upon his return from Crete Lycurgus made an equal division of the land, and as he could not induce the people to surrender their treasures, he prohibited the use of gold and silver currency and substituted iron in its place. To a great quantity and weight of this metal he assigned a slight value, so that to lay up a small amount of wealth a whole room was required, and for the removal of a moderate sum of money a yoke of oxen must be employed. When this became current many kinds of injustice ceased in Lacedæmonia. "Who would steal or take a bribe, who would defraud or rob, when he could not conceal the booty, when he could neither be dignified by the possession of it, nor if cut in pieces be served by its use?"¹⁹³ There is little evidence in support of the statement of Plutarch that Lycurgus attempted to establish a community of goods among the Spartans. Although he caused the landed possessions which had been parcelled out to individuals to be returned to the state, too much interest had already become attached to personal possessions to have made a division of this kind of wealth possible.

A legislator may not enact laws with the expectation of seeing them enforced which are not in accord with the temper of the people, and the degree of success which attended the legislation ascribed to Lycurgus

proves that the great mass of the people were in sympathy with many of the measures which he proposed for the government of Sparta.

It is plain that the object of the person or persons, whom history has named Lycurgus, was a return to the simpler manners and purer customs of a more primitive age, which the growth of the aristocratic spirit and the accumulation of wealth in masses in the hands of the few threatened entirely to subvert; and, as a community of goods was at this time impossible, he, or they, sought to level the distinctions between rich and poor by exalting virtue and moral excellence above the mere possession of wealth and hereditary titles.

It is the opinion of some writers that although Lycurgus did not inaugurate a new set of institutions, nor materially change the constitution of the state, the great service which he rendered to the Spartans was the remarkable system of discipline which he is supposed to have inaugurated. Of this Mr. Rawlinson says: "It must always remain one of the most astonishing facts in history, that such a system was successfully imposed upon a state which had grown up without it."¹⁹⁴ Of the fact, however, that the state had not grown up without it there is ample evidence. On this subject Curtius remarks:

It is certain that the Spartan discipline in many respects corresponds to the primitive customs of the Dorians, and that by constant practice, handed down from generation to generation, it grew into the second nature of the members of the community.¹⁹⁵

From the facts at hand it is quite evident that Lycurgus did not originate that system of discipline through which it is claimed Spartan greatness was achieved. The fact has been noted that when he entered upon the duties of lawgiver he sailed for Crete, and, "having been struck with admiration of some of their laws," he resolved to make use of them in Sparta.¹⁹⁶ As the discipline of Lycurgus constitutes the principal feature of the government ascribed to him, and as his models were for the most part drawn from the Cretans, it is only reasonable to suppose that this remarkable system was itself, in part at least, copied from them. It appears that among the Cretans, as among all peoples among whom female influence is in the ascendency, the children belonged to the mother, and that women owned, or at least

controlled, their own households; they did not, therefore, follow the fathers of their children to their homes. In Crete, “the young Dorians were left in the houses of their mothers till they grew up into youths.”¹⁹⁷ As Cretan mothers had charge of their sons until they were grown up, it is not unlikely that the discipline which Lycurgus attempted to copy was a system inaugurated under matriarchal usages, but which in Sparta in the time of Lycurgus may have become somewhat relaxed. However, that the primitive discipline of the Dorian people was not extinct among the Spartans of this time is observed in the warlike character of the males, and in the express testimony of Aristotle that Spartan men had become inured to hardships by means of their frequent campaigns. To restore, or rather to intensify this discipline, seems to have been the object of Lycurgus; yet that he lacked greatly in judgment is shown by the measures which he put into execution. We are informed that

Spartan boys were as early as their eighth year taken into public training, and assigned their places in their respective divisions, where they had to go through all the exercises introductory to military service, and accustom their bodies to endurance and exercise, in exact obedience to the forms acquired by the state through its officers.¹⁹⁸

This interference with the natural development of the Spartan youth was not without its effect upon his character; and especially so as the policy adopted was such as to narrow his mental horizon, and confine his ideas within the scope of Spartan possibilities.

From all the evidence to be gathered about the individual whom historians call Lycurgus, it would appear that he was a fanatic, who, doubtless feeling deeply the disorders which had fastened themselves upon society, attempted to manage not only the affairs of the state, but to impose his authority also upon individual conduct.

Of the position occupied by women at the time when Lycurgus is said to have been lawgiver at Sparta, there seems to be much evidence going to show that they were in the possession of a remarkable degree of liberty, and that they were possessed of great power and influence. We have seen that while the men of Sparta were away from their homes engaged in warfare, the country had become wealthy and prosperous. Not only was the land

controlled by women, but nearly two-fifths of it was theirs by actual possession.¹⁹⁹ Therefore, when Aristotle informs us that when Lycurgus “wanted to bring the women under his laws, they resisted, and he gave up the attempt,”²⁰⁰ we are by no means surprised. Indeed, Aristotle himself says that this license of the Lacedæmonian women existed from the earliest times, and was only what might be expected.²⁰¹ It is altogether likely that in the time of Lycurgus, Spartan women had not been brought under subjection to male authority.

According to the accounts given by Aristotle and Plutarch, under regulations made by Lycurgus, the men dined on the plainest fare at the public table, or mess, while the women remained within their own homes. That a considerable degree of success crowned this legislator’s efforts to control the conduct and private life of men, from the facts at hand may not be doubted; among the women, however, the case seems to have been altogether different. Of the Spartans, Aristotle says: “In the days of their greatness many things were managed by their women. But what difference does it make whether women rule, or the rulers are ruled by women.”²⁰² Because, however, the Spartan women preferred to remain within their own homes, and refused to allow their private affairs to be controlled by Lycurgus, Aristotle accuses them “of intemperance and luxury.” He says:

For a husband and a wife, being each a part of every family, the state may be considered as about equally divided into men and women; and, therefore, in those states in which the condition of the women is bad, half the city may be regarded as having no laws. And this is what has actually happened at Sparta, the legislator wanted to make the whole state temperate, and he has carried out his intentions in the case of the men, but he has neglected the women, who live in every sort of intemperance and luxury.²⁰³

So far, however, from the Spartan women refusing to concur in those movements which were in operation to make the whole state hardy and temperate, we have ample evidence going to prove that it was women themselves who in former times had encouraged the healthful and moderate exercise of body and limb among the youth of both sexes. Indeed, from natural inferences to be drawn from the facts at hand, it is probable that

these exercises which had originated among the primitive Dorians, while under the matriarchal system, had not only been encouraged, but practised, by women while their husbands and fathers were absent on their campaigns.

We have seen that, according to Aristotle, women refused to unite in those movements in operation in the time of Lycurgus for the strengthening and general improvement of the youth. Plutarch, on the contrary, ascribes all the physical strength and vigour of mind possessed by Spartan women to the wise regulations of Lycurgus; and, notwithstanding the fact that, according to his own testimony, they were possessed of great liberty and power, he imputes to this legislator the inauguration of all those practices for the promotion of perfect freedom among women which were so salutary in producing or continuing a healthful state of public morals.

It is plain that the position occupied by Spartan women presented difficulties to the minds of Aristotle and Plutarch which they were wholly unable to explain. With regard to the supposition of Plutarch that the exercises performed by the young women of Sparta while in a nude or semi-nude condition were inaugurated by Lycurgus, it is too unreasonable for serious consideration. It is to be doubted if there has ever existed, either in ancient or modern times, a legislator, who, unaided and alone, and simply through a stretch of arbitrary power, has been able to regulate the dress, amusements, bodily exercise, and general movements of women in possession of a reasonable degree of personal freedom and liberty of action.

Respecting the wise regulations instituted by Lycurgus for the management of women, Plutarch says:

In order to take away the excessive tenderness and delicacy of the sex, the consequence of a recluse life, he accustomed the virgins occasionally to be seen naked as well as the young men, and to dance and sing in their presence on certain festivals. [204](#)

Perhaps throughout the entire narrative of Plutarch concerning Lycurgus and his laws, there is nothing so absolutely devoid of reason as this. If, as he assures us, women were possessed of that excessive tenderness and delicacy which are the result of a recluse life; and if, as he supposes, they had hitherto been trained according to masculine ideas of female modesty

and decorum, it is greatly to be doubted if the laws of Lycurgus, or even the lightnings of Zeus could have driven these virgins into the presence of the opposite sex under the conditions named.

Doubtless the Spartan people had not at this stage of their career departed so far from the customs of a gynecocracy that women were unable to exercise absolute control over their persons. Being free from the domination of the opposite sex, all those exercises and habits of body in use to increase their own vigour and that of the entire race had doubtless been instigated by women, or at least had been instituted at a time when female influence was in the ascendancy. Concerning the position occupied by the women of Sparta, Plutarch says they had assumed to themselves great liberty and power “on account of the frequent expeditions of their husbands, during which they were left sole mistresses at home, and so gained an undue deference and improper titles.”[205](#)

It is evident that this writer was unacquainted with the fact that at a time not far distant in the past from the age of Lycurgus, the influence of women in the family and in the gens had been supreme; hence, like others who have attempted to deal with the subject of primitive peoples, he was unable to conceive of a condition of society in which women’s natural instincts played a conspicuous part in regulating the social customs and in formulating the laws by which they were governed.

The extreme modesty and sensitiveness which are observed as a characteristic of both sexes in the marriage relation, and the reserve of the youths at festivals in which young women are reported to have appeared naked, may not be ascribed to the laws of Lycurgus, but on the other hand appear as direct results of those checks upon the animal instincts in the male which the former strength and independence of women had imposed.[206](#)

At a later age, for instance that of Plutarch, the spectacle of young maidens appearing on occasions of public festivity in a single garment, loose, and reaching a little below the knee, would have been associated with ideas of disgrace and shame; but, under a condition of society in which the animal instincts had not wholly gained the ascendancy over the higher faculties, or in which the characters peculiar to women had not been overshadowed or subdued by the grosser elements developed in human

nature, such a proceeding might not, as we have seen, be inconsistent with the purest motives and the highest aims.

Something of the extent to which the influence of women was exerted to stimulate bravery and courage in the opposite sex is shown in the description by Plutarch of the festivals in which the young people appeared before each other in a semi-nude state to practise the popular games of strength and skill. Concerning these festivals this writer remarks that the young women engaged in little raillery upon those who lacked skill, or who had not done their best, while “on such as deserved them they sang encomiums, thus exciting in the young men a useful emulation and love of glory.” Plutarch observes also that “those who were praised for their bravery and celebrated among the virgins went away perfectly happy, while their satirical glances were no less cutting than serious admonitions.”^{[207](#)}

These facts indicate something of the extent to which female influence still survived in ancient Sparta, and reveal plainly the fact that although in the time of Lycurgus the coarser instincts developed in human nature had made considerable headway, they had not totally eclipsed the finer characters peculiar to women, as was the case at a later period of Grecian history—more particularly among the Athenians. “As for the virgins appearing naked,” Plutarch himself assures us,

there was nothing disgraceful in it, because everything was conducted with modesty, and without one indecent word or action. Nay, it caused a simplicity of manner and an emulation for the best habit of body; their ideas too were naturally enlarged while they were not excluded from their share of bravery and honour.

Regarding the commingling of the sexes among the Spartans, Mr. Grote says:

When we read the restrictions which Spartan custom imposed upon the intercourse even between married persons, we shall conclude without hesitation that the public intermixture of the sexes led to no such liberties between persons not married, as might be likely to arise from it under other circumstances.^{[208](#)}

It was a Dorian who first threw aside his heavy girdle during the Olympian contests and ran naked to the goal. In an allusion to this incident, and also to the custom of Spartan virgins appearing in a semi-nude state in the presence of the opposite sex during the performance of their gymnastic feats, C. O. Müller says that a display of the naked form when all covering was unnecessary and inconvenient was quite in keeping with the character and temper of the Dorians.^{[209](#)}

Concerning the style of dress adopted by the Doric virgins, it is said to have consisted of a loose woollen garment called a *himation*. It was without sleeves and was fastened over the shoulders with large clasps. The *himation* was completely joined only on one side, the other side being left loose and fastened with a buckle or clasp. Doubtless this adjustment of the gown was to enable the wearer to open it and throw it back, thereby securing greater freedom to the limbs while running and wrestling. This simple garment reached only to the calf of the leg, and was worn sometimes with a girdle, sometimes without.

The pure state of morals in Sparta furnishes an explanation of that peculiar style of dress among women which has elicited so much comment among later writers, and which has stamped the Spartan women as creatures especially “devoid of modesty.” True modesty was evidently one of the leading characteristics of this people among both sexes, but the simulation of it, which, by the way, is usually practised just in proportion as the lower propensities have gained the ascendancy over the higher faculties, was doubtless absent in Spartan society.^{[210](#)}

An illustration of the state of public morals in ancient Sparta may be observed in the following dialogue. A stranger once asked a Spartan what penalty their law attached to adultery. The reply was: “My friend, there are no adulterers in our country.” Upon being further interrogated, “But what if there should be one?” the Spartan replied: “Why then, he must forfeit a bull so large that he might drink of the Eurotus from the top of Mount Taygetus.” When the stranger asked: “How can such a bull be found?” the man answered with a smile, “How can an adulterer be found in Sparta?”^{[211](#)}

Commenting on the relative position of Doric and Athenian women, C. O. Müller says:

The domestic relation of the wife to her husband among the Dorians was in general the same as that of the ancient western nation, described by Homer as universal among the Greeks, and which existed at Rome till a late period; the only difference being that the peculiarities of the custom were preserved by the Dorians more strictly than elsewhere.

Amongst the Dorians of Sparta, the wife was honoured by her husband with the title of mistress (a gallantry belonging to the north of Greece, and also practised by the Thessalians), which was used neither ironically nor unmeaningly. Nay, so strange did the importance which the Lacedæmonian women enjoy, and the influence which they exercised as the managers of their household, and mothers of families, appear to the Greeks, at a time when the prevalence of Athenian manners prevented a due consideration for national customs, that Aristotle supposed Lycurgus to have attempted, but without success, to regulate the lives of women as he had regulated that of the men; and the Spartans were frequently censured for submitting to the yoke of their wives.

It has been truly said that nowhere else in Greece do we find traces of that power exercised by women over their sons when arrived at manhood observed among Spartan mothers. When a woman of another country said to Gorgo, the wife of Leonidas, “You of Lacedæmon are the only women in the world that rule the men,” she replied, “We are the only women that bring forth men.”^{[212](#)}

With our present knowledge respecting the influence and independence of the Spartan women, it is folly for certain writers to assert that married women were confined within the house and that only virgins appeared in public. There is some evidence going to prove that at Crete, at Sparta, and at Olympia, women were not only spectators at the Olympian games, but that they engaged personally in the chariot contests. According to an inscription in Della Cella, it is shown that women presided over the public gymnastic exercises in that town.

One very important fact going to show whence proceeded the reforms of Lycurgus is that the mandates of the oracle were supreme. The oracles controlled the rulers, but women always controlled or interpreted the

oracles. The celebrated Rhetra of Lycurgus, in which unlimited authority is given to the people to reject or adopt the proposals of the king, was given according to the direction of the Pythian Apollo, whose mandates were interpreted by women.

In an earlier age the chiefs of the gentes were elected by all the people, and they held their office by virtue of their relationship to the leader of the gens, who was a woman. That the honour due to women was still recognized in Sparta is shown in the following from Plutarch in relation to the election of senators. The person who had received the loudest acclamations was declared duly elected, whereupon he was crowned with a garland, and a number of young men followed him about to extol his virtues. The women sang his praises and blessed his life and conduct. Two portions were set before him, one of which he carried to the gates of the public hall, where the women were in waiting to receive him. To the one for whom he had the greatest esteem he presented the portion, saying: "That which I received as a mark of honour I give to you." The woman thus honoured "was conducted home with great applause by the rest of the women."²¹³

Spartan men were forbidden to marry foreign women, hence, contrary to the customs of surrounding nations at this early period, wives as well as husbands were native-born. All were Spartans, which fact probably accounts in a measure for the exalted position occupied by women.

Both in Sparta and in Crete the form of marriage was by capture; thus, although in the time of Lycurgus the Spartan men and women both belonged to the same stock, it is plain that originally they were of different tribes. Of capture as practised in Sparta, Müller says that it was clearly an ancient national custom, founded on the idea that "the young woman could not surrender her freedom and virgin purity, unless compelled by the violence of the stronger sex."²¹⁴ According to Plutarch, after the arrangements for the wedding had been completed, the bridegroom rushed in, seized the bride from among her assembled friends, and bore her away.

The Dorian stock alone seems to have preserved the ancient customs, and among these peoples, wherever they are found, woman's influence is in the ascendency. According to Herodotus and Aristotle, the Spartans, the

Cretans, and the Lycians were related. The people of Crete still preserved their ancient usages, hence may be observed the reason why Lycurgus visited that country in quest of information before enunciating the laws which were to restore order among the Spartans. In Lycia, as in Crete, woman's influence must still have been considerable. Of the Lycians Herodotus says:

 Their customs are partly Cretan, partly Carian.... They take the mother's and not the father's name. Ask a Lycian who he is, and he answers by giving his own name, that of his mother, and so on in the female line. Moreover, if a free woman marry a man who is a slave, their children are full citizens; but if a free man marry a foreign woman, or live with a concubine, even though he be the first person in the state, the children forfeit all the rights of citizenship.^{[215](#)}

On the manner of reckoning descent through women which prevailed in Lycia, Curtius remarks that the usage extends far beyond the territory commanded by the Lycian nationality. It is still extant in India; it was practised in ancient Egypt, among the Etruscans, and among the Cretans, who were closely related to the Lycians. This writer observes that if

 Herodotus regards the usage in question as thoroughly peculiar to the Lycians, it must have maintained itself longest among them of all the nations related to the Greeks, as is also proved by the Lycian inscriptions.^{[216](#)}

As the Sabines who united with the Romans in founding Rome claimed relationship with the Dorians, we may reasonably expect to find among them somewhat of that womanly influence which characterized the Spartans, and some hint among their customs of an earlier age of female independence. Although the Sabine women did not "voluntarily" assume the position of wives to the Romans but were captured by them, when the two nations united, the Sabines were regarded rather in the light of conferring honour upon Rome than as detracting from its dignity.

Of the early Romans, Ortolan says:

The *connubium*, or right of marriage, did not exist between males and females of different cities unless by special agreement between those cities. Thus it was that the primitive Romans, according to tradition, were compelled to resort to ambushade and force in order to carry off their first wives.^{[217](#)}

The Roman family, like the Roman state, began with slavery. Of the Romans it has been said that they acquired their territory, their property, and even their wives by the lance.

With them the lance became the symbol of property, and even had a place in their judicial procedure. Their slaves were booty, their wives were booty, and their children, begotten of them, the fruit of their possessions.^{[218](#)}

The right of fathers, under Romulus, to sell their sons, upon the accession of Numa the Sabine ruler, to the office of lawgiver, was withdrawn, and the reason given for it was consideration for women. According to Plutarch, Numa “reckoned it a great hardship, that a woman should marry a man as free, and then live with him as a slave.”^{[219](#)}

In the life of Numa by Plutarch we have a hint of a former age of universal freedom. It was one of this ruler’s institutions, that once a year the slaves should be entertained along with their masters at a public feast, there to enjoy the fruits “which they had helped to produce.” The same writer assures us that some are of the opinion that this is a remnant of that equality which was in existence in the times of Saturn, when there was neither master nor slave, but all were upon the same footing. Plutarch quotes from Macrobius, who says that this feast was celebrated in Italy long before the building of Rome.

From all the facts to be gathered relative to the relations of the sexes in the age of Numa, it is plain that that freedom of action exercised by women in a former age among the Dorians, was rapidly declining, and that the early independence which has characterized the Sabine women was beginning to bring upon them the condemnation of their Roman lords. This is shown in the fact that it soon became Numa’s arduous task to institute certain

restrictions on their former liberties. In a comparison between Lycurgus and Numa, Plutarch, in referring to this subject, observes:

Numa's strictures as to virgins tended to form them to that modesty which is the ornament of their sex; but the great liberty which Lycurgus gave them, brought upon them the censure of the poets, particularly Ibycus.

The grossness which had been developed during the four or five hundred years following the age of Lycurgus, and the jealousy with which the movements of women had come to be regarded, are illustrated by the following stanza from Euripides:

These quit their homes, ambitious to display,
Amidst the youths, their vigour in the race,
Or feats of wrestling, whilst their airy robe
Flies back and leaves their limbs uncovered.[220](#)

It is evident that not only in private life, but in their desire for public activity also, the independence of the Sabine women failed to comport with the ideas already in vogue among their Roman husbands regarding the "proper sphere" of women. Consequently their behaviour was thought to be

too bold and too masculine, in particular to their husbands; for they considered themselves as absolute mistresses in their houses; nay, they wanted a share in affairs of state, and delivered their sentiments with great freedom concerning the most weighty matters.[221](#)

A woman even appeared in the Forum to plead her own cause, whereupon the grave senators ordered that the oracles be consulted that the true import of the singular phenomenon might be revealed.[222](#)

Plutarch, who lived in the first century of the Christian era, after having recounted these misdemeanours, assures us that "what is recorded of a few infamous women is a proof of the obedience and meekness of Roman matrons in general."[223](#)

Doubtless, in Plutarch's time, Roman women had lost much of that influence which characterized the female sex in an earlier age; it is not,

therefore remarkable that by this writer the Sabine women should have been regarded as too forward and as altogether infamous. That their conduct was not all that could be desired by the outlaws and bandits who founded Rome, and who had stolen them for wives, is evident; and the regulations of their rulers respecting them show plainly that much judicious training and a vast amount of repression were required before they were fitted for the peculiar duties devolving upon them as sexual slaves.

We are told by Plutarch that the regulations established by Lycurgus, instead of encouraging that licentiousness of the women which prevailed at a later period, operated to render adultery unknown amongst them; yet this writer forgets to mention the fact that in Sparta, in the time of this ruler, there was no demand for prostitution by a class who held all the wealth and power, and who were therefore in a position to regulate this matter to suit their own tastes and inclinations. On the contrary, the female sex was free, not only in the matter of sexual relations, but in the exercise of all their natural tendencies, and in the direction of all their movements. The idea of sex, which among later and more thoroughly sensualized nations became first and foremost, among the Dorians, so far as equal rights, obligations, and duties were concerned, was ignored or left to nature to regulate.

Plutarch, like most writers who have dealt with the relations of the sexes, fails to observe the fact that just to the extent in the past history of mankind to which women have been free and independent, licentiousness has disappeared, and that just in proportion as the influence of women has declined, in just such proportion have shame, profligacy, disease, and infamy prevailed. To produce a state of society in which the animal instincts ruled supreme, and in which passion was the recognized god, women had first to become physically dependent and mentally enslaved.

For so long a time have women been judged by masculine standards, it is not perhaps remarkable that male writers of these later times can discern in the simplicity and chastity existing among the Dorians, in the age of Lycurgus, no evidence of a former era of female independence. Neither is it singular, as for so many ages women have been subject to the pleasure and control of the opposite sex, that we should be repeatedly told by writers who have dealt with the usages of the Spartans, that their women were “permitted” to do this, and “allowed” to do that, although the facts in the

case prove that in all their movements they were guided by their own wills, exercised either directly, or through the oracles of the gods.

When the customs of the ancient Dorians are viewed without prejudice, the fact will doubtless be observed that they originated not in a depraved and licentious state of society, but, on the contrary, that they were the direct result of that freedom of action which characterizes purity of life and a high standard of thought and action.

CHAPTER IV

ATHENIAN WOMEN

According to Wilford, the Greeks were the descendants of the Yavanas of India. This writer observes that the Pandits insist that the words *Yavana* and *Yoni* are derived from the same root, *Yu*, and that when the Ionians emigrated they adopted this name to distinguish themselves as adorers of the female, in opposition to a strong sect of male worshippers which had been driven from the mother country.^{[224](#)} Under the constantly increasing importance of the male, however, both in human affairs and in the god-idea, they subsequently became ashamed of their religious title and sought to abandon it. Of the aversion felt in Greece for this name Herodotus says:

The Athenians and most of the Ionic states over the world went so far in their dislike of the name as actually to lay it aside; and even at the present day the greater number of them seems to me to be ashamed of it.^{[225](#)}

Whenever in early historic times a country was subjugated, the conquerors either murdered or enslaved the men, and utilized the women for wives, or sexual slaves. The Ionians who, according to Herodotus, sailed from Attica, without women, took for wives native Carians whose fathers they had slain; hence these captives made a law, which they bound themselves by an oath to observe, and which they handed down to their daughters after them, that “none should ever sit at meat with her husband, or call him by his name; because the invaders slew their fathers, their husbands, and their sons, and then forced them to become their wives.”^{[226](#)} The terms of the oaths sworn by them at the time of the capture seem, subsequently, to have been enforced by their imperious masters.

As these women were foreigners they were entitled to little or no respect from their captors. However, as they were to become the mothers of Greek citizens, they must necessarily be “protected,” or, in other words, they must

be kept in seclusion. In the time of Solon, rape committed on a free-born woman was punishable by fine.^{[227](#)}

From that stage in the history of Greek tribes, at which through capture and appropriation of the soil by individuals women began to lose that influence which they had exercised under matriarchal usages, to the time of Solon, the lawgiver of Athens, when they had finally descended to the lowest level of misery and sexual degradation, may be observed a corresponding tendency gradually developing itself among the people towards selfishness, usurpation of power, and the slavery of the masses. In the age of Solon the limit of human wretchedness seems to have been reached, and as the human race is never at a standstill, it must at this time have either become extinct, or have begun gradually to lift itself from the condition of disgrace and ruin into which it had fallen.

The character of Solon, as gathered from the facts at hand regarding him, reflects in a measure the true condition of society at that time. Although vain and morally weak, he was in a certain sense humane; his humanity, however, extended only to those of his own sex. A large proportion of the women of Athens were imported foreigners, and were therefore so degraded that they had no rights which any one, even a lawgiver, was bound to protect. After his appointment to the archonship, Solon's first act was to cancel the debts against the lands and persons of the Athenians, and to establish a law that in future no man should accept the body of his debtor for security.^{[228](#)} Many who had been previously banished or driven out of the country for debt, and had remained so long from their native land as to forget their Attic dialect, were recalled as freemen, while others, who at home had suffered slavery, were released and given their freedom.

Perhaps, however, in no position in life will a vain, morally weak man display to better advantage the defects in his character than in his attempts to legislate for women; and under no circumstances will his true inwardness of purpose stand more truly revealed than in his efforts to "regulate" the relations of the sexes. A brief notice of Solon's laws concerning women proves him to have been no exception to the generally observed rule. It is recorded of him that in his extreme solicitude lest their movements should not comport with his ideas of female propriety and decorum, he regulated their journeyings, and laid down rules respecting their mournings,

sacrifices, and the number of gowns which they were to take with them when they went out of town. The provision for their journey and even the size of the basket in which it was to be conveyed were subjects not unworthy the attention of the great Athenian lawgiver. Women's mode of travel by night was also prescribed as was also their conduct at funerals and various places of amusement. In fact all their actions were subjected to that meddlesome espionage and control which characterize a weak and sensuous age. Indeed, we have something more than a hint of the degraded position occupied by women, in the fact that a man might not be allowed to sell a daughter or a sister "unless she were taken in an act of dishonour before marriage," in which case her accuser might sell her person for individual gain; and this, too, notwithstanding the fact that he, as well as nearly every other man in Athens, was steeped in infamy.

The measure adopted by Solon for the regulation of prostitution, and his division of women into classes for the convenience of all conditions of men, indicate clearly the disgrace and shamelessness which characterized the Athenians at this stage of their career, and depict with unerring fidelity the depth of horror into which womanhood had been dragged.

The condition of public morals during the three hundred years following the age of Solon is plainly indicated not only in the laws but in the mythologies of Greece and Rome. Prostitution was enjoined by religion and when Draco, suddenly shocked by the degeneracy of his time, affixed the penalty of death to rape, seduction, and adultery, it has been said that by the performance of the prescribed religious rites within the temple, the "rigour of his edicts was considerably softened."

The restraint imposed upon the Athenians by the Draconian regulations was, however, of short duration; for when Solon, the successor of Draco, assumed the position of archon, he at once legally established a sufficient number of houses of prostitution at Athens to supply the demand, filling them with female slaves who had been taken captives in war, or who had been otherwise provided by the munificence of the government.

But you did well for every man, O Solon;
For they do say you were the first to see
The justice of a public-spirited measure,
The Saviour of the State.^{[229](#)}

By this time, so degraded had womanhood become, that the traffic in female captives for sexual purposes was regarded as a legitimate business, and the revenue accruing from their services was considered a lawful source of gain to the state, its use being devoted to the rearing of temples and to the carrying out of the various projects connected with religious worship.

That the Athenians of this period were wholly given over to luxury and licentiousness is shown by the fact that at their bacchanalian feasts, the troops of women who were in attendance and who had been provided for the occasion by the generosity of the state, performed all their duties under direct and explicit instruction of the government “to disobey no order of a guest”; for which wise regulations Solon received the praise and commendation of Athenian men.

In a former portion of this work the fact has been noted that until well into the Latter Status of barbarism all women were protected; that among the Kaffirs, the Fiji Islanders, and various other peoples occupying a lower stage in the order of growth, women, although divested of their former influence, are still jealously guarded by the gens to which they belong; and that when maidens are bereft of home and near relatives, they are adopted into some other gens within the tribe where they are invested with the same rights as are its own members. Therefore when contemplating the social condition of the Athenians five or six hundred years B.C., we are naturally led to inquire: What were the causes which during one ethnical period had produced so marked a change in the position of the female sex? For an answer to our question we must recall the facts set forth in this volume relative to the capture of wives, together with the feeling of hatred entertained by early society for alien women.

In the time of Pericles, an age when Athens was at the height of its prosperity, the women of the city were divided into five classes as regarded their duties and uses. The first of these consisted of wives, who, for the

most part, were kept in seclusion and allowed to exist solely for the purpose of propagating Greek citizens. These women were without influence, possessing no rights or privileges beyond the will of their “lords”; while to such an extent were they considered merely in the light of household furniture that they were not permitted to appear in public, nor to sit at table with their masters.

The following dialogue between Socrates and Ischomachus, a man who had managed his household in such a manner as to be “pointed out as a model for all Athens,” perhaps serves as a correct picture of the relations existing between husband and wife in the Periclean age. “I should like to know this particular from you,” said Socrates, “whether you yourself educated your wife so as to make her what she ought to be, or whether you received her from her parents with a knowledge of her duties?”—“And how could I have received her so educated, Socrates, when she came to me not fifteen years old, and had lived up to that time under the strictest surveillance that she might see as little as possible, and hear as little as possible, and inquire as little as possible?”

Of the five classes to which reference has been made, wives only were native-born, and as this particular class had specific duties to perform, severe penalties were attached to the crimes of seduction and rape when committed upon Athenian women. The remaining four classes were arranged according to the dignity of their associates, the highest in rank and repute being the *hetairai*, the members of which comprised the only free women in Athens. Themselves philosophers and stateswomen, their associates among males were of the same rank or station. They constituted a highly intellectual class, and as such were able to control not only their own movements, but to exercise a remarkable influence upon literature, art, and the affairs of state. Because of the important position occupied by these women, they will be referred to later in this work.

The next in rank were the *auletrides*, or flute-players. Many of the most fashionable of these were slaves who had been brought to Greece by speculators. We are informed that female musicians were a usual accompaniment to an Athenian banquet, and that flute-playing became an essential feature in the worship of several of their deities; hence, the services of this particular class were in demand, not only to heighten the

enjoyment of social intercourse, but to stimulate and encourage religious enthusiasm. At public gatherings, after the dinner was over, and while the wine was flowing freely, these women made their appearance in a semi-nude condition, dancing and keeping time to the music by the graceful motion of their beautifully moulded figures. While the enthusiasm was at its height they were sold to the highest bidder. Fist fights, or hand-to-hand encounters for the possession of these female flute-players, were not uncommon occurrences in the best society in Athens.^{[230](#)}

These scenes were performed under the sanction of religion and law; they therefore serve to reveal the true inwardness of the Greek character at this stage of development. It is reported that the finest houses in Alexandria were inscribed with the names of famous Greek *auletrides*. Of all the flute-players of Greece, Lamia is said to have been the most successful. For fifteen or twenty years she was the delight of the entire city of Alexandria and of King Ptolemy. Finally, when the city was taken by Demetrius of Macedon, Lamia was taken also. When she demanded that an immense tax be levied on the city of Athens for her benefit, it is recorded that although the people murmured at the amount, they nevertheless found it to their interest to deify her and erect a temple in her honour. According to the testimony of Plutarch, Lamia raised money on her own authority to provide an entertainment for the king.^{[231](#)}

The fourth class consisted of concubines, or purchased slaves who were in the service of Athenian gentlemen (?). This appendage to the Greek family was a member of the household of her master where she was kept with the full knowledge of the wife, the latter occupying a position little if any superior to that of her rival. Indeed, as the purchased slave could be disposed of whenever the fancy or caprice of her master so dictated, and another installed in her place, it is reasonable to suppose that so long as she did remain, she was the object of quite as much attention as was the wife.

The lowest class, or those who were allowed the least freedom of action, were those known as the *dicteriades*. They were compelled to reside at a designated place, and were forbidden to be seen upon the streets by day. Nothing of a personal nature was allowed to interfere with the duties which were imposed upon them by their imperious masters. Their only duty was to obey.

By this time we are prepared to appreciate, to a certain extent, the moral aspect of Greek society during the years intervening between the age of Solon and that of Pericles, a period of about a century and a half. That all women, wives and concubines, native-born and foreign, had been dragged to the lowest depths of disgrace and shame and that they were classified and arranged to meet the demands of those who through the unchecked tendencies inherent in the male nature had reached the lowest level of infamy to which it is possible for living creatures to descend, are facts which are only too plainly shown by those whose duty it has been to record the events connected with the history of the Greeks.

Although under Draco, the predecessor of Solon, the political degradation of the citizens of Greece may be said to have reached its height, and although the uprising of the masses against the usurpation of power by the few marks an era in the history of the Greeks, it was not until the dawn of the Periclean age that women had gained sufficient freedom to enable them to exercise any direct influence on thought, or on the principles underlying human conduct.

We must bear in mind the fact that for five or six centuries the inferiority of women had been systematically and religiously taught. Ever since the rule of Cecrops, at which time doubtless the manner of reckoning descent began to be changed from the female to the male line, woman's influence in Athens had gradually declined. The religio-physiological doctrine that in the office of reproduction the mother plays only an insignificant part had not only been proclaimed by Apollo but had been sanctioned also by Athene. It is recorded of Cecrops that "he instituted marriage and established a new religion."

Just here may be observed the key to the gradually declining position of the female element in the deity, and to the finally accepted dogma that the female is inferior to the male. Through the private ownership of land and the consequent dependency of women upon men, the way had been paved for this assumption—an assumption which had the effect to create in Ionian men the supreme and lofty contempt for women which is observed throughout their literature and laws. From the age of Solon to that of Pericles, the overwhelming degree of superiority assumed by Athenian men over women had uprooted in the former every vestige of restraint, at the

same time that it had deprived them of the last trace of that respect for womanhood which under earlier and more natural conditions had been entertained.

It has been frequently remarked that women took little or no part in the intellectual development of Greece; that during the most rapid progress of Greek men, there was no corresponding improvement in the position occupied by Greek women.

From what is recorded relative to Athenian women from the time of Cecrops to that of Solon, one would scarcely expect to find them competing with men for the prizes of life. Later, however, that a considerable number of them did assert their independence, and that, defying the customs and traditions by which they were bound, did prove themselves the equals of men, may not be doubted.

There probably has never been a time since the dominion of man began when the more sensitive and better endowed among women have not secretly rebelled against the tyranny exercised over them, and, throughout the ages, whenever an opportunity has been offered, large numbers of these women, have never failed to make known their discontent. Greek women were no exception to this rule. Their first step toward liberty was to free themselves from the galling chain imposed upon them by marriage, a position in which, as has been shown, wives were simply household slaves, tools of their imperious and degenerate masters. Greek women, in the Periclean age, simply assumed the control of their persons and by so doing provoked the maledictions of future ages, ages in which sensualism still reigned supreme.

For reasons which have already been explained, the foremost women in Greece, and in fact all women who during the Periclean age were engaged in art, literature, philosophy, and statesmanship, belonged to the class known as the hetairai, a term which, through the excessive growth or sensuality and superstition, subsequently became a term of reproach. Whatever may have been the importance of the services rendered by these women to society, such services would have been ignored, or, if not altogether ignored, would have been reflected upon, or appropriated by, the opposite sex.

To say that the hetairai were free is equal to saying that they have been misunderstood, hence the calumnies which for more than two thousand years have been heaped upon them. That the hetairai of Greece in the Periclean age included a class of women who were the intellectual compeers of the ablest statesmen and philosophers is a fact which may not by those who have paid close attention to this subject be denied. That they taught rhetoric and elocution, that they lectured publicly and established schools of philosophy at the same time that they wielded a powerful influence on the state and on the drift of current thought are facts which mediæval scholasticism has not been able to conceal.

I think one may not investigate the various schools of philosophy which arose during the fourth and fifth centuries B.C., without noting the peculiarly altruistic principles involved in them, and this, too, notwithstanding the fact that, hitherto, extreme selfishness or egoism had constituted the prevailing character observed in Athenian society.

According to the principles of the Cyrenaics, the virtuous man is not necessarily he who is in the possession of pleasure but he who is able to proceed rightly in quest of pleasure. "Virtue is the only possible and sane way to happiness." The most eminent members of the Cyrenaics were Arete the daughter of Aristippus and her son Aristippus the younger, surnamed the mother-taught.²³² The fundamental doctrine of the Cyrenes seems to have been that right-living or virtue constitutes the only good. "The essence of virtue lies in self-control. Enjoyment sought as an end is evil."

"Virtue is capable of being taught, and when once acquired cannot be lost. What is good is honourable, and what is bad is disgraceful." On examination it is found that one of the most eminent members of this school is Hipparchia. That she is not a mere listener, imbibing the ideas of others, is shown in the fact that she lectured publicly and argued strongly before the philosophers of Athens. The founder of the Cynic school of philosophy is said to have been Antisthenes, the son of a Thracian mother. One of the sayings of this philosopher is, that "virtue is the same in a man as in a woman."²³³

That the question of the position of women was a theme for discussion in the age under consideration is shown in a "sophism" proposed by

Hipparchia to Theodorus. Once when she went to sup with Lysimachus, she said to Theodorus: “What Theodorus could not be called wrong for doing, that same thing Hipparchia ought not to be called wrong for doing.”²³⁴

When we take into consideration the fact that Hipparchia was intimately associated with Crates, a man for whom she entertained the tenderest affection, and when we remember that they were both engaged in teaching a philosophy which “recognized virtue as the supreme end of life,” the conversation at the house of Lysimachus between Hipparchia and Theodorus, as set forth by Diogenes Laërtius will be seen to admit of a different interpretation than that which commonly prevails.

Of the Epicureans it has been observed that they were a sort of Pythagorean brotherhood, consisting of both men and women.

The scandalous tongue of antiquity was never more virulent than it was in the case of Epicurus, but, as far as we can judge, the life of the Garden joined to urbanity and refinement a simplicity which would have done no discredit to a Stoic; indeed, the Stoic Seneca continually refers to Epicurus not less as a model for conduct, than as a master of sententious wisdom.

Among the most distinguished members of this school were Themistia, to whom Cicero refers in his speech against Pisa as a “sort of female Solon,” and Leontium, who ventured to attack Theophrastus in an essay characterized, as we are assured, by much elegance of style.²³⁵

No school of philosophy arose in Athens with which there was not closely connected the name of one or another of the illustrious women of the time. Zeno, the founder of the Stoic philosophy, was the pupil of Crates, the companion of Hipparchia.

Aspasia was the “clever preceptress of Socrates,”²³⁶ the sage who sat for the portrait of the Stoic philosophy. According to the Stoic philosophy, the supreme end of life is virtue, *i. e.*, “a life conformed to nature.” The degree of self-restraint taught by Socrates is shown in the following lines:

Is it not the duty of every man to consider that temperance is the foundation of every virtue, and to establish the observance of it in his

mind before all things? For who, without it, can either learn anything good, or sufficiently practice it? Who, that is a slave to pleasure, is not in an ill condition both as to his body and his mind? It appears to me, by Juno, that a free man ought to pray that he may never meet with a slave of such a character, and that he who is a slave to pleasure should pray to the gods that he may find well-disposed masters; for by such means only can a man of that sort be saved.^{[237](#)}

When the ablest statesmen and the first philosophers of Greece united in sounding the praises of Alcibiades, the genius of Aspasia commanded equal recognition. Not only did Socrates and Pericles receive instruction and inspiration from this gifted woman, but we are assured that she lectured publicly and that her “acquaintances took their wives with them to hear her discourse.”^{[238](#)} Indeed “Pericles threw all Greece into confusion on account of Aspasia, not the young one, but that one who associated with the wise Socrates.”^{[239](#)}

It is not to be imagined that Aspasia excelled in light and amorous discourses. Her discourses, on the contrary, were not more brilliant than solid. It was believed by the most intelligent Athenians, and amongst them Socrates himself, that she composed the celebrated funeral oration pronounced by Pericles in honour of those that were slain in the Samian War.^{[240](#)}

It is recorded of her that many Athenians resorted to her lecture-room on account of her skill in the art of speaking. Not only did she teach rhetoric, philosophy, and the proper relations of the sexes, but so renowned was she for statesmanship that Pericles is said to have surrendered to her the government of Athens then at the height of its glory and renown. On this subject Plutarch remarks: “Some, indeed, say that Pericles made his court to Aspasia only on account of her wisdom and political abilities.”

It has been said that the expedition against the Samians was merely to gratify Aspasia. The Milesians and Samians who had been at war were ordered to lay down their arms. When they refused to obey, Pericles, in company with Aspasia, sailed with a fleet to Samos and abolished the oligarchical form of government. Although he was offered large sums of

money, he “treated the Samians in the manner he had resolved on; and having established a popular government in the island, he returned to Athens.”^{[241](#)}

Plutarch, quoting from Æschines, says that Lysicles, who was “of a mean, ungenerous disposition, by his intercourse with Aspasia after the death of Pericles, became the most considerable man in Athens.”^{[242](#)} Notwithstanding the scandalous reports which have come down to us of this woman’s character, in view of the facts which it has been impossible for sex-prejudice to conceal, we are constrained to ask: “What manner of woman was this who was able to control statesmen, impart instruction to world-renowned philosophers, and leave a name which even bigotry, envy, and malice may not efface from the history of human events?”

In seeking for an explanation of the exalted character of Aspasia, we have something more than a hint in the fact that she is reported to have “trod in the steps of Thargelia,” a woman who by her exceeding brilliancy had gained the sovereignty of Thessaly. Indeed, we have found a key to the entire situation when we learn that this Thargelia, in whose steps Aspasia trod, “was descended from the ancient Ionians,”^{[243](#)} a people who, originally worshipped the female principle, and who still preserved the customs peculiar to the matriarchal system, under which it will be remembered women, as aliens, did not follow the fathers of their children to their homes. So soon as these facts are understood, we are not in the least surprised to learn that Aspasia discountenanced the institution of marriage as it existed in Athens. Neither is it remarkable, when we remember that the underlying principles involved in the philosophy which she taught were justice and equity, that she should be found using her great influence, as in the case of the Milesians and Samians, in substituting democracies in the place of oligarchies; nor that, in an age when women had come to be regarded simply as the tools and slaves of men, she should be found teaching the dignity of womanhood to her own sex, and the principles of equality to males.

According to Xenophon, Aspasia’s efforts were to a great extent directed to the duties of husbands and wives; indeed, her foremost object seems to have been to educate Athenian women. During the Periclean age the position of women was one of the leading topics discussed in Athens.

Socrates says to his companions that he has been of the opinion “of a long time that the female sex are nothing inferior to ours, excepting only in strength of body or perhaps steadiness of judgment.”²⁴⁴ The coarse picture painted by Aristophanes, of women with beards going in male attire to the agora, “to seize the administration of the state so as to do the state some good,”²⁴⁵ although a vulgar attempt to ridicule the female philosophers of Athens, furnishes something more than a hint of the fact that the ideas subsequently set forth in Plato’s *Republic* had been openly discussed by the philosophers of the Periclean age.

That the word *hetairai* was originally employed in no mean or compromising sense is plain, since Sappho uses it in the sense of “female companion (ἑταίρα) of the same rank and the same interests.” We are assured that these women were able to preserve a friendship “free from trickery.” Of them even “Cynulcus does not venture to speak ill.”²⁴⁶ They “of all women are the only ones who have derived their name from friendship or from that goddess who is named by the Athenians Venus *Hetæra*.”²⁴⁷

“Accordingly, even to this day,” observes Athenæus, “free-born women and maidens call their associates and friends their ἑταίρα; as Sappho does where she says:

And now with tuneful voice I’ll sing
These pleasing songs to my companions.

And in another place she says:

Niobe and Latona were of old
Affectionate companions ἑταίρα to each other.”²⁴⁸

That mediæval scholasticism has not been able wholly to obscure the greatness of the Greek *hetairai* is shown by the declaration of a renowned writer of modern times who says: “Of all the poets who have appeared on the earth Sappho was undoubtedly the greatest.”

Notwithstanding the aspersions which have been cast upon the name and fame of the *hetairai* of Greece, it is doubtful if the intelligent women of the present age who carefully examine the shreds and remnants concerning

them which have withstood the envy of mediocrity, and the bigotry of scholasticism, will be brought to believe that the excesses which are foreign to the female nature, and which belong to ruder and less highly developed structures, were practised by these gifted women. We must bear in mind that the hetairai were free, and therefore that they were able to direct their movements according to the natural characters developed within the female,—characters which it will be remembered are correlated with the maternal instinct.

The licentiousness, not only of Greek and Roman women, but of those in certain portions of Asia as well, has been the favourite theme of many writers of past ages; more especially has the lewdness of Lydian and Babylonian women been noted and commented upon. After referring to the annual sale of women in Babylonia, Herodotus says that the people

have lately hit upon a very different plan to save their maidens from violence, and prevent their being torn from them and carried to distant cities, which is to bring up their daughters to be courtesans. This is now done by all the poorer of the common people, who since the conquest have been maltreated by their lords, and have had ruin brought upon their families.^{[249](#)}

It is recorded that the various classes of “kept women” in Greece were foreigners, that they were either bought or captured from surrounding countries. As in the case of the Lydians and Babylonians, they were doubtless carried from their homes at a tender age after having been reared to their profession. Many of the maidens thus taken to Greece subsequently became philosophers, statesmen, and scholars, whereupon they abandoned their former calling. Lysias mentions the fact that Philyra gave up her former course when she was still quite young, “and so did Scione, and Hippaphesis, and Theoclea, and Psamathe, and Lagisca, and Anthea.”^{[250](#)}

As special mention is made of a woman who “did not cease to live a prostitute when she began to learn philosophy,”^{[251](#)} we may reasonably infer that it was usual for these women to abandon the calling to which they had been born and bred, so soon as from such teachers as Aspasia and Hipparchia they began to imbibe principles of self-respect and womanly independence.

From the position occupied by the hetairai it is evident that by the philosophers of Greece, they were regarded with that respect which is ever due to cultured womanhood; indeed, from the evidence at hand we may believe that they were the most highly honoured citizens in Athens.

All women in Greece who prostituted themselves were forbidden to take sacred names; yet of Nemeas, Athenæus says: “And we may wonder how it was that the Athenians permitted a courtesan to have such a name, which was that of a most honourable and solemn festival.”^{[252](#)}

Of Glycera it is related that Harpalus issued an edict that no one should present him with a crown, unless the donor at the same time presented one to her. He erected a statue to her and permitted her to dwell in the palace of Tarsus where he allowed her “to receive adoration from the people”; he permitted her also to bear the title of Queen, and “to be complimented with other presents which are only fit for your own mother and your own wife.”^{[253](#)}

Timotheus, who was a general of very high repute in the Athenian army, was the son of a courtesan; we are informed, however, that she was “a courtesan of very excellent character.”^{[254](#)} The great Themistocles is said to have been the son of Abrotonum, a “courtesan.”

It is recorded that in response to an order issued by the people, Praxiteles made a solid gold statue of one of the hetairai, which was consecrated in the temple of Delphi. Certainly the deathless models of Greek art formed by Praxiteles and Phidias are not representations of coarse and sensualized womanhood.

That these women were a power in Athens during the Periclean age may not, in view of the facts recorded in relation to them, be disputed. Of them it has been said:

None but they could gather round them of an evening the choicest spirits of the day, and elicit, in the freedom of unrestrained intercourse, wit and wisdom, flashing fancy and burning eloquence. What wonder that the hetairai should have filled so prominent a part in Greek society! And how small a compensation to virtuous women to know

their rivals could not stand at the altar when sacrifice was offered, could not give birth to a citizen.

In this acknowledgment of the exalted position occupied by the Greek hetairai the author, like most writers upon the subject of the sexual relations, measures virtue not by its antithesis to vice, but by the established masculine standards which have been set up for women to conform to. A Greek wife's life may have been one continuous scene of subjection to the lowest appetites of a master for whom she may have had not the least degree of respect or affection, and who regarded her only in the light of an instrument for his convenience and pleasure; still such an one would doubtless be accounted as a "virtuous" woman in contradistinction to one of the hetairai whose position enabled her to control her own person and who was able to exercise her own will-power in protecting it against the excesses of Greek men. It is evident that this class of women more than any other in Greece was able to direct its movements and manage its activities, and, therefore, if we bear in mind the characters correlated in the female constitution with the maternal instinct, we may be assured that among the entire population of Athens, the lives of these women were the most pure and the least addicted to excesses.

Aspasia, the philosopher and statesman; Hipparchia, practical professor of Cynic philosophy and one of the most voluminous and esteemed writers of her time; Thargelia, the Milesian, whom Xerxes employed at the court of Thessaly, and many others scarcely less renowned, prove that through the exercise of that personal freedom enjoyed by the hetairai, women had at length risen to that position in which they were able to exert a powerful influence, not only on the affairs of state, but upon the intellectual development of the Athenians and the entire world. To say that these women have been written about in an age in which male power and male influence have been in the ascendancy, is to say that they have been misunderstood and their movements misinterpreted.

Because of the efforts put forth by scholastics for two thousand years to belittle or annul the importance of the services rendered by the hetairai, they will doubtless for some time continue to be judged not by their intellectual vigour nor by what they accomplished, but by the social position into which, through the exigencies of masculine domination, they had been

jostled. The fact has been observed that less than two centuries prior to the age of Aspasia and Socrates, Solon had given to the calling of prostitution the sanction of religion and law; that he had purchased a sufficient number of young slaves from surrounding countries to satisfy the demands of the men of Greece; and that he had made the calling of these girls a source of public revenue for which services he had received the title of "Saviour of the State." We would scarcely expect, therefore, to find chastity among the prominent virtues of the Periclean age. I wish to emphasize the fact that by the conditions of society at that time, the class designated as hetairai, although they were in a certain sense free, were practically prevented, no matter what may have been their natural inclinations or aspirations, from rising to a higher plane of moral action, and furthermore that the existing conditions were wholly the result of the supremacy gained by the lower propensities over the higher forces developed in human nature. Had these gifted women accepted the position of wife, ignorance and seclusion would have been their portion, while their sexual degradation would have been none the less complete or perfect; indeed it would have been all the more intolerable, for the reason that the degradation of their persons, which in the position of hetairai was sued for as a privilege, in the position of wife would have been claimed as a right.

By most writers upon this subject the fact seems to have been overlooked, or, if observed, has not been acknowledged, that licentiousness among women during a certain period of Greek life, about which so much has been written, was governed wholly by the demands of their masters; in fact, throughout the history of mankind since the ascendancy of the male over the female has been gained, the class which has controlled the means of support, and within which has resided all the power to direct the activities of women, has ever regulated the supply of victims to be offered upon the altar of lust; and in all these regulations may be observed such an adjustment of women's "duties" to the "necessities" of the male nature, that no alternative has been left them but submission.

CHAPTER V

ROMAN LAW, ROMAN WOMEN, AND CHRISTIANITY

The far-reaching results of the various schools of philosophy which rose in Greece during the Periclean age will be noted in this chapter. That the principles involved in this philosophy may not have been formulated by the hetairai of Athens is doubtless true, yet that the inception and development of these principles were largely due to the freedom of these gifted women seems probable, especially when we remember the conditions under which this philosophy arose.

A glance at the principles involved in the Stoic philosophy will show its thoroughly altruistic character. The sum of its tenets was to “live according to nature’s laws,” to subordinate one’s self to the welfare of one’s family, one’s country, and the entire race, and to “rise above the gross indulgences and pleasures of the vulgar” to higher laws of thought and action; it taught that to be just, and to live according to the dictates of reason rather than to be governed by the promptings of blind passion and the desire of the appetites, should be not only the duty but the highest pleasure of mankind. Possibly some of the minor precepts of the Stoic philosophy were absurd; no doubt in their desire for reform, its founders set up a canon of conduct which was severe and impracticable; but its fundamental principles, the subjection of the animal in man to the reasoning faculties, as applied to future Roman law, Roman civilization, and Roman character, served to produce specimens of manhood which the women of all subsequent ages should delight to honour. So long as virtue is applauded and moral greatness is exalted, the enactments of the Roman juriconsults in the interest of women, prior to, and during the time of the Antonine Cæsars, will stand forth throughout the ages as the one single movement, during thousands of years, toward the removal of the legal disabilities of women. When we remember that the Stoic philosophy took root and flourished during an age of unparalleled profligacy which was stimulated and encouraged by the example of the most opulent and luxurious personages among the Greeks,

and at a time when licentiousness had for centuries been sanctioned by religion and upheld by laws made by the men of Greece, it is quite evident that some potent influence, which had hitherto been unfelt, had been in operation to produce it.

In order to understand the influence which the Stoic philosophy exerted on civilization, and especially on the legal position of women, we must first understand its effect upon Roman law. An inquiry into the changes which had been wrought in Roman jurisprudence at the time of the Antonine Cæsars, by engrafting upon it the underlying principles contained in the Stoic philosophy, discloses the fact that the emancipation of women had been practically accomplished in Rome.

Perhaps there is no subject which at the present time possesses greater interest for inquiring women than that concerning the status of their sex under the older Roman law; for, by an understanding of woman's legal status, as fixed under this institution at a time when man had gained the summit of his power over her, is furnished a key whereby may be unlocked many of the mysteries surrounding the still extant social and legal disabilities of women.

The thoroughly egoistic character of the principles underlying the older Roman law has been noticed in a former portion of this work. We have seen that in Rome the father, who was the sole representative of the family, had drawn to himself not only all the authority over the child which under the earlier gentile organization of society had been acknowledged as belonging exclusively to the mother, but, ignoring individual liberty, and all the principles of personal freedom which had been established under the matriarchal system, had proclaimed himself absolute sovereign over all within the agnatic bond. The divine oracle of Apollo, which had enunciated the doctrine that the soul of the child is derived from the father, had at the same time declared that the mother has to do only with furnishing the body. Thus the father, as Creator, became the household god; his authority, as we have seen, being supreme even to the exercise of the power of life and death over its members.

Under ancient law, the father, as head of the household, really constituted the family, the remaining members being merely ciphers which, from the

peculiar position in which they were placed, were without significance except as vassals under the strictest tutelage of their master. Under this august system of father-worship, males as well as females had become enslaved. The bondage of men, however, differed somewhat from the “perpetual tutelage of women,” in the fact that they themselves in time might become heads of families, and in that imperial position to assume the same authority and dominion over others as had been exercised over them. Women, however, could never become heads of families, and therefore could never hope to be free. So long as they remained single they were under the tutelage of their blood-relations, or were subject to the authority of some individual whom the father, before his death, might choose to appoint over them as guardian. Thus arose the law known as the Perpetual Tutelage of Women. Upon this subject Sir Henry Maine says:

Ancient law subordinates the woman to her blood-relations, while a prime phenomenon of modern jurisprudence has been her subordination to her husband. The history of the change is remarkable. It begins far back in the annals of Rome. Anciently, there were three modes in which marriage might be contracted according to Roman usage, one involving a religious solemnity, the other two the observance of certain secular formalities. By the religious marriage of *Confarreation*; by the higher form of civil marriage, which was called *Coemption*; and by the lower form, which was termed *Usus*, the husband acquired a number of rights over the person and property of his wife, which were on the whole in excess of such as are conferred on him in any system of modern jurisprudence. But in what capacity did he acquire them? Not as *Husband*, but as *Father*. By the *Confarreation*, *Coemption*, and *Usus*, the woman passed in *manum viri*—that is, in law she became the *Daughter* of her husband. She was included in his *Patria Potestas*. She incurred all the liabilities springing out of it while it subsisted, and surviving it when it had expired. All her property became absolutely his and she was retained in tutelage after his death to the guardian whom he had appointed by will. [255](#)

On this subject of male supremacy in the family Mr. Maine remarks:

The foundation of Agnation is not the marriage of Father and Mother, but the authority of the Father. All persons are Agnatically bound together who are under the same Paternal Power, or who have been under it, or who might have been under it if their lineal ancestor had lived long enough to exercise his empire.²⁵⁶

Under this bond would be united all the children belonging to the head of the household and all the descendants of the sons, but not of the daughters; the daughters' children under this manner of reckoning descent belonged to the families of their respective fathers. Although under this system a man might adopt a stranger into his family, and invest him with all the rights and privileges appertaining thereunto, no descendant of a daughter could claim any of the rights of agnation. Under Hindu law, which is saturated with the primitive notions of family dependency, in the genealogies, the names of women are omitted altogether. We are assured by Mr. Maine that the exclusion of women from governmental functions certainly had its origin in agnation. Thus it is seen that paternity had come to involve the idea of a supreme ruler or potentate, and that the overshadowing predominance of the male over the female had paved the way to the future worship of one all-powerful male deity.

We have seen that the principles involved in the Stoic philosophy were justice, equality, and the subjection of the appetites to the dictates of reason and conscience. So soon as Greece was subjugated by Rome, the ablest of the Romans espoused the principles embodied in this philosophy, and notably among those who became interested in its tenets were the Roman lawyers, who began immediately to reconstruct the civil law upon the principles underlying this system.

That it is only through a return to the archaic and natural principles of justice and right living, the acknowledgment of which at once establishes the proper relations of the sexes, that women may ever hope to be free, is plain to all those who have given attention to this subject. This fact was evidently observed by the Roman lawyers who, through the persistency with which only those labour who are engaged in establishing a principle, had so far succeeded in overcoming the prejudice against sex as to have established a legal code wherein was practically recognized the equality of women with men.

Doubtless the Romans were as tenacious of their ancient customs, prejudices, and long-established privileges as have been the people of any other country; hence we may perhaps form a faint idea of the obstacles which presented themselves, and of the devices which must have been resorted to by Roman jurists in an endeavour to remove the existing legal restrictions upon the liberties of women.

Mr. Maine informs us that Gaius, a celebrated jurist who lived in the age of the Antonine Cæsars, devoted an entire volume to descriptions of the ingenious expedients devised by Roman lawyers to evade the letter of the ancient law, and that it was through this source that the fact finally became known that in the age of the Antonine Cæsars the legal disabilities of women had been practically annulled.

From the facts at hand it is observed that the object of the Roman lawyers was to frame an edictal jurisprudence which should supersede the older law, or which in effect should annul its power. We are informed that the prætor was not only the chief equity judge, but that he was also the common-law magistrate. So soon, therefore, as the edict had passed through the necessary formalities enabling it to become a law, the prætor's court began to apply it in place, or by the side of the civil law, "which was directly or indirectly repealed without any express enactment of legislation." In reference to the legal status of women in the age of the Antonine Cæsars, Henry Maine observes: "Led by their theory of natural law, the jurisconsults had at this time assumed the equality of the sexes as a principle of their code of equity."²⁵⁷

Although the seed, sown in Greece during the Periclean age when conveyed to Rome, produced a golden harvest, the fact will doubtless be remembered that the Roman lawyers had but just completed their work of establishing the legal equality of the sexes when the agencies which for years had been at work to destroy the Empire culminated; and finally, when Christianity, in the person of Constantine ascended the throne, the results of four centuries of civilization were destroyed, or for more than sixteen hundred years were practically annulled.

Regarding the changes which had been wrought in the legal status of women in the age of the Antonine Cæsars, we are informed that whereas

under the older Roman law a woman at marriage came under the Patria Potestas of her husband, under the later law, as influenced by the principles involved in the Stoic philosophy, she remained as a member of her own family, or was placed under the protection of a guardian appointed by her parents, whose jurisdiction over her, although superior to that of her husband, was not such as to interfere with her personal liberty; thus, the same as under matriarchal usages, the situation of the Roman woman, whether married or single, was one of great influence. Of this freedom exercised by women in the time of the Antonine Cæsars, Mr. Maine remarks:

But Christianity tended somewhat from the very first to narrow this remarkable liberty.... The latest Roman Law, so far as it is touched by the Constitutions of the Christian Emperors, bears some marks of a reaction against the liberal doctrines of the great Antonine jurisconsults. And the prevalent state of religious sentiment may explain why it is that modern jurisprudence, forged in the furnace of barbarian conquest, and formed by the fusion of Roman jurisprudence with patriarchal usage, has absorbed, among its rudiments, much more than usual of those rules concerning the position of women which belong peculiarly to an imperfect civilization. [258](#)

Concerning the influence of ecclesiasticism on that portion of Roman jurisprudence relating particularly to women, Mr. Lecky observes:

Wherever the canon law has been the basis of legislation, we find laws of succession sacrificing the interests of daughters and of wives, and a state of public opinion which has been formulated and regulated by these laws.

By means of a formulated ecclesiastical jurisprudence the complete inferiority of the sex was maintained,

and that generous public opinion, which in Rome had frequently rebelled against the injustice done to girls in depriving them of the greater portion of the inheritance of their fathers, totally disappeared.

In comparing the Roman law with the canon or ecclesiastical code, the same writer says that the pagan laws during the Empire were constantly repealing the old disabilities of women; but that it was the aim of the canon law to substitute enactments which should entail on the female sex the greatest personal restrictions and the most stringent subordination. [259](#)

Those who have paid attention to the history of the English Common Law, which forms the basis of our present system of jurisprudence, and who have noted the part played by ecclesiasticism in fixing the status of women therein, will not be surprised at the attitude which the so-called Christian Church has assumed toward women. Referring to the Common Law, an able writer has said:

This imperishable specimen of human sagacity is, strange to say, so grossly unjust toward women that a great writer upon that code has well observed that in it women are regarded not as persons but as things; so completely were they stripped of all their rights, and held in subjection to their proud and imperious masters. [260](#)

It has been remarked that in no one particular does the canon law depart so widely from the spirit of secular jurisprudence as in the view it takes of the relations created by marriage. Although the leaven of civilization preserved from Roman institutions was the codified jurisprudence of Justinian, as the chapter of law relating to women was read by the light of canon law, the altruistic principles which had characterized the later Roman code soon became extinct. Upon this subject Mr. Maine remarks:

This was in part inevitable since no society which preserves any tincture of Christian institutions is likely to restore to married women the personal liberty conferred on them by the middle Roman law.

And this is doubtless true for the reason that the entire Christian superstructure rests on the dogma of female weakness and female depravity. The doctrine of Original Sin, which depends entirely on the story of the fruit-tree of Genesis being taken in a literal sense, had by canonists been accepted. On her first appearance upon the scene of action, woman is labouring under a curse pronounced upon her by an all-powerful male God for the mischief she had wrought on innocent man; it is only reasonable,

therefore, that human law should unite with the divine decree in establishing her complete and final degradation; hence, the return to the ancient Hindu law and the older Roman code for models of legislation concerning her.

On this subject Mr. Maine remarks:

I do not know how the operation and nature of the ancient *Patria Potestas* can be brought so vividly before the mind as by reflecting on the prerogatives attached to the husband by the pure English Common Law, and by recalling the rigorous consistency with which the view of a complete legal subjection on the part of the wife is carried by it, where it is untouched by equity or statutes, through every department of rights, duties, and remedies.^{[261](#)}

NOTE.—As the position of women among the early German hordes was one of great dignity and respect, it may scarcely be argued that the sentiments embodied in the English Common Law relative to wives were in any degree the result of innate Teutonic prejudice against the female sex.

Notwithstanding the efforts which for several centuries were put forth in Rome to secure to women that independence which under the earlier Roman law had been denied them, in the code of Justinian, which was compiled in the early part of the sixth century, no word respecting the remarkable degree of liberty which under the later Roman law was accorded to women appears; and but for the discovery of the manuscript of Gaius, to which reference has already been made, we would never have become acquainted with the changes which had been wrought in this particular branch of Roman jurisprudence. In the Justinian code, instead of the humane edicts of the later, or middle Roman law, appeared the Canon or ecclesiastical law, by means of which women were condemned to a state of servitude even more degrading than that which had been imposed on them by the older law.

Had mediæval scholasticism succeeded in concealing from the world the information contained in the manuscript of Gaius, still there would have remained sufficient evidence left to prove that in the second century of the

present era woman's freedom had been practically won. That women themselves were claiming absolute legal equality with men may not be doubted. Honoria, a Roman matron, first enunciated the principle: Taxation without representation is tyranny.²⁶² Cato's celebrated oration in which he passionately exclaims: If you allow your women to be your equals how long will it be before they become your superiors?²⁶³ shows that a certain type of men were becoming alarmed over the growing independence of women.

The freeing of women from the bondage entailed on them by the older Roman law, an achievement which had required more than three centuries to accomplish, was a triumph for civilization unparalleled during the historic period. That this triumph over tyranny was of short duration is shown in the sequel to this movement.

That the coming of Jesus at a time when the principles of justice and equality were becoming the recognized rule of life among the better class of Romans is not surprising. No one may study Greek philosophy without noting the similarity between it and the teachings of Christ. Justice, self-restraint, and regard for the rights and feelings of others, principles which when applied to Roman law had liberated women from the tyranny of the past, were also the principles taught by Jesus. It seems to have been the mission of the latter to convey these lofty doctrines to the multitude. Do unto others as you would have others do unto you was not however understood by the masses who knew no other rule of life than that of selfishness and ungoverned lust. Hence in process of time the new movement came to have no other effect than to add to the already established evils another quite as contemptible, namely—hypocrisy.

Among the earliest Christians theological disputes were unknown. Original sin and the doctrine of a vicarious atonement whereby a man is "saved" not from sin but from the penalty for sin were unheard of. To spread the simple principles enunciated by Jesus and by so doing to kindle into life the divine spark in man, seem to have constituted the object and aim of the earliest Christians. The activities necessary for the propagation of these principles were shared alike by both sexes. Women exhorted, prophesied, and prayed in the churches. They baptized their own sex. One

of them wrote a gospel which, so long as woman's influence continued, was in use among the Christians.

Such were the conditions when Paul, a Jew who had espoused the new religion, first appeared on the scene. An extant legend describes this man as small in stature and of ignoble bearing. According to this legend Paul was bald-headed and bow-legged. As to his intellectual ability we have the following Corinthians x., 10: "For his letters they were weighty and strong but his speech is of no account." It is elsewhere recorded of him that "his speech was contemptible." From what is known of this man Paul it is evident that he was domineering, self-sufficient, and aggressive. He quarrelled with Peter and was intolerant of the ideas of his associates. His forceful character, his untiring energy, his zeal for the cause which he had espoused and above all his capacity for organization soon gained for him the leadership of the new movement.

Nowhere is it recorded that during the earlier years of Paul's Christian career he attempted to discourage, or curtail, the activities of women. On the contrary he refers to them as co-workers, acknowledges them as prophets, and praises their ministrations. In his writings, the name of Priscilla occurs many times. Phœbe, Claudia, Julia and others are regarded as worthy of mention by him. As his influence and power increased, however, his egoism began to assert itself. It is evident that Paul's strong masculine nature could no longer tolerate a religion which might with some degree of consistency be regarded as a feminine movement. The old doctrine enunciated by Apollo during the reign of Cecrops namely that man is a divine emanation while woman is only human must be revived.

The following from Paul's writings shows that his aim was to crush the influence and power exercised by women, and the means employed was to subject them to the dominion of their husbands.

The head of every man is Christ; and the head of every woman is the man and the head of Christ is God.

For the man is not of the woman but the woman of the man. Neither was the man created for the woman but the woman for the man.

Let your women keep silence in the churches, for it is not permitted unto them to speak but they are commanded to be under obedience.

And if they would learn anything let them ask their husbands at home.

That women were no longer to be the equals and companions of their husbands but that they were to become sexual slaves is indicated by the command, "Wives subject yourselves unto your husbands."

It must be remembered that these commands of Paul were not, as has been frequently asserted, delivered to and about weak, ignorant women devoid of influence, but were directed against those whose position of equality in the new religion had not before been questioned, and whose legal disabilities had at that time been well-nigh removed.

Before the close of the second century, the simple, ethical teachings of Jesus were forgotten. Christianity had disappeared and Paulism had taken its place. A century later, after the Empire had come under the control of so-called Christian rule, woman's influence, as we have already seen, entirely disappeared. All that had been gained by means of the middle Roman law had been annulled by the decrees of the Canon law.

Pauline Christianity in the fourth century A.D. was an attempt to re-establish that form of Paganism which had prevailed prior to the rise of Greek philosophy. This older religion, which had its origin in Sun worship, or in the worship of the two fecundating principles throughout nature, had as early as the Periclean age ceased to claim the attention of the educated classes among the Greeks. Æschylus barely escaped being stoned to death for heresy, and as is well known, Socrates the founder of the Stoic philosophy was forced to drink of the fatal cup because of his unbelief in the prevailing superstitions. Not to destroy Paganism itself but to exterminate the last vestige of Greek philosophy was the task which the Pauline Christians had set themselves to perform. Jesus now became the new Solar Deity and all the forms observed under the older Paganism were now attached to his worship. He was born at the winter solstice, or at the time when the sun had reached its zenith and was about to return. He died and was buried, but at the vernal equinox, Easter, the time at which all nature is revived—he arose from the dead and became the Saviour of

mankind. The entire Christian calendar is copied from the ancient Pagan worship. A medal was struck on which appeared the figure of a man on a cross, on the obverse side of which was the representation of a blazing sun. Christ was the new Sun of Righteousness, the giver and preserver of life.

Every page in the history of the Pauline religion reveals its masculine origin. The Deities worshipped are a Father and a Son. All the angels and archangels are men. All extant Gospels and Epistles have been written and expounded by men. It is true that in response to a popular demand in the fifth century for a recognition of the female principle, the Virgin Mary, an ancient Deity, reappeared. The lateness of her coming, however, shows that she was an afterthought. Moreover, it must be borne in mind that, true to the ancient doctrine which was revived by Paul relative to the divinity of man and the material nature of woman, the Mother of Jesus was human while the Father and the Son were divine. She was matter. They were spirit.

Among the discussions of the early Pauline “Fathers” none was more important than these. Ought women to be allowed to learn the alphabet? And has woman a soul? It is recorded that a few of these pious leaders entertained the opinion that because of the great power and goodness of the Almighty “women may possibly be permitted to rise as men at the resurrection.”

As we have seen, to destroy Greek philosophy was the slogan of the new movement. The destruction of the Alexandrian library by a fanatical mob led by Archbishop Theophilus is an example of the fury with which all institutions not directly connected with the new religion were attacked. As is well known, this library contained the accumulated knowledge of a highly civilized people, extending over a period of several thousands of years. Among the priceless treasures stored in this library were the records of astronomical observations scientifically registered during a period of not less than three thousand years.

The lectures delivered by Hypatia in Alexandria during the latter part of the fourth century were the last attempt made to stem the tide of fanaticism which was destined to sweep over a large portion of the habitable globe. The fate of Hypatia who was foully murdered by a mob led by St. Cyril was

a forecast of the fate which awaited any and all who should henceforth dare to think or act independently of the new religion.

When Greek philosophy was no longer taught, the principles of equality and liberty which had been incorporated into the middle Roman law were annulled or practically forgotten; and when the doctrine of woman's inferiority and total depravity became crystallized not only in religion but in law and in all the customs of the time, women sank to a degree of degradation never before witnessed in the history of mankind.

CHAPTER VI

THE RENAISSANCE

If the theory that the higher faculties and the moral sense originated in the female and that these qualities are by her transmitted to offspring, then the conditions existing in the first half of the sixteenth century are easily explained; or if, as is clearly proved by the facts brought out by scientists, woman represents the constructive and combining element in human society without which organized society would have been impossible, the degeneracy observed after thirteen hundred years during which time women were wholly without influence and power is exactly what might be expected. Indeed it is not singular that with the disintegrating or destructive forces in command over the conserving or constructive elements that war and religion should have become the business of the world and that a state of society should have prevailed which was in strict accord with these conditions.

However, that the constructive element was not dead is shown by the mental and moral unrest which began to manifest itself in the latter half of the sixteenth century. Women began to learn the alphabet and in a weak way to demand concessions hitherto denied them. Many men of genius who like the jurisconsults of Rome had not been submerged by the degeneracy of their time defied their persecutors and secretly promulgated the scientific theories which were to revolutionize human thought.

The demand for freedom of conscience and for the release of the intellect and reason from the domination of bigotry and superstition constituted one of the first steps toward reform. Galileo, Bruno, Copernicus, and Harvey are notable examples of the revolt against the intellectual tyranny which prevailed.

It is not a little singular that at this time the throne of England was occupied by a woman and that her reign should have been the most brilliant that that country has ever enjoyed. It has frequently been said that the

success of Elizabeth's reign was due not to her greatness but to that of the statesmen whom she called about her. But even were this true, which it is not, it would not detract from her greatness. The innate qualities developed within Queen Elizabeth, namely genius and intuition, can alone explain the brilliancy of her reign.

It is to be doubted if the progressive principle has ever been wholly dead. That even during the darkest period of the Middle Ages the constructive element was still alive in Europe is shown in the fact that as early as the year 1215 the idea of individual human liberty had already been formulated. In the Magna Charta wrested from King John at Runnymede appears the following:

No freeman shall be taken or imprisoned or dispossessed or outlawed or banished, or in any way destroyed, nor will we go upon him or upon him send except by the legal judgment of his peers, or by the law of the land. To no one will we sell; to no one will we deny or delay right or justice.

Although a few attempts were made during the sixteenth century to better the conditions of the masses of the people, as all the institutions for the perpetuation of the slavery of the masses were firmly established, little was accomplished in this direction. That reforms move slowly is shown in the fact that as late as the beginning of the nineteenth century of the Christian era, the greater portion of the human race was in a state of bondage. Slavery existed in every quarter of the globe. In Russia, in 1855, there were forty-eight millions of serfs, and in Austria and Prussia the peasantry were nearly all slaves. In Hungary nine millions of human beings belonged to a subject class.

Although no slaves were owned in England, slavery still existed in her colonies. In the West Indies the whip was freely used, and prior to the year 1820 no voice had been raised against the flogging of women on the plantations. In Scotland, down to the last year of the eighteenth century, colliers and salters were slaves and bound to their service for life, being bought and sold with the works at which they laboured. Although America had put down the slave-trade, she still owned slaves, and continued to traffic in them until the year 1863.

The history of legislation during the historic period shows that it has ever been in the interest of the rich against the poor, the strong against the weak. In France, at the beginning of the nineteenth century, liberty was extinct. "The rich man could purchase for money the power to destroy those whom he hated."²⁶⁴

The lawmakers of the age which we are considering were gentlemen landowners, and as such were able to exercise their cupidity in a degree which precluded all idea of justice to the poorer classes. The abuses of government, the corn-laws, the enormous tax on salt and on the various necessities of life, show somewhat of the extent to which the poor were systematically robbed by the rich.

The law passed in 1350, at Bannockburn, regulating the movements of the British workingmen, and which prohibited combinations among them, was in force until 1824. The evident object of this law was to repress the labourer and deprive him of his just earnings. Although this enactment was known to be oppressive, the working-classes were not possessed of sufficient influence to cause its repeal.

In England, women with their children worked in coal pits, and in the darkness, on hands and feet, dragged about wagons fastened to their waists by chains. Of this Mr. Mackenzie says:

Children of six were habitually employed. Their hours of labour were fourteen to sixteen daily. The horrors among which they lived induced disease and early death. Law did not seem to reach to the depths of a coal-pit, and the hapless children were often mutilated and occasionally killed with perfect impunity by the brutalized miners among whom they laboured. There was no machinery to drag the coals to the surface, and women climbed long wooden stairs with baskets of coal upon their backs.

In the factories, also, as late as 1832 children of six years of age worked from thirteen to fifteen hours daily. If they fell asleep they were flogged. Sometimes through exhaustion they fell upon the machinery and were injured—possibly crushed,—an occurrence which caused little concern to any except the mothers, who had learned to bear their pangs in silence.

These children, who were stunted in size and disposed to various acute diseases, were also scrofulous and consumptive. In 1832 the recruiting surgeon could find no men to suit his purpose in the manufacturing districts.

Throughout Europe, the prevailing idea concerning the management of criminals seems to have been vengeance. One would scarcely believe, except on trustworthy authority, that at the beginning of the nineteenth century the English criminal law recognized 223 capital offences. Indeed, so strong was the feeling in favour of severity that Edmund Burke said he could obtain the assent of the House of Commons to any law imposing the penalty of death. If one shot a rabbit he was hanged; if he injured Westminster Bridge he was hanged; if he appeared disguised on a public road he was hanged, and so on. The hanging of small groups was a common occurrence—children of ten years being sometimes among the condemned.^{[265](#)}

A visit to the Five-Sided Tower in Nuremberg, in which are still preserved various instruments of human torture, will give an idea of the extreme cruelty practised upon political offenders and heretics a century ago.

The “Holy Alliance” of Austria, Prussia, and Russia, which was formed ostensibly to insure peace and establish justice, but which in reality was entered into to suppress free speech, check the growing liberties of the people, and strengthen the belief in the “divine right of kings,” shows the obstacles which had to be overcome before any principle of justice and humanity could take root.

The history of industrial and economic conditions since the beginning of the eighteenth century is largely the history of the common people. The change from the Feudal system to that of the wage-earning régime may not, as far as the working class is concerned, be regarded as an unmixed blessing. Under Feudalism the “lord of the soil” was responsible for the maintenance and well-being of his vassals, while under the wage system the “captains of industry” assume no such responsibility. If the labourer chooses to accept the terms offered well and good, if he refuses he may starve; it is a matter of no concern to the employer, for, are there not plenty of labourers who stand ready to take his place?

That the labourer was no less a slave under the wage-earning system than he had been under Feudalism is shown in the fact that under the first named as well as under the latter he had not the right of free contract. He must take what was offered him or starve.

As is well known the repression of the mental activities and the low physical condition which for more than thirteen centuries had prevailed, prevented the seed sown in the sixteenth century from taking root among the masses of the people. Their instincts were those of the slave and two centuries were required to waken them from their lethargy. Finally, however, even among the class mentioned the constructive forces began to assert themselves. Free thought and to a certain extent free speech were established. With the further development of liberal ideas a belief in the Divine Right of Kings and in the principles underlying monarchical institutions became somewhat weakened. A few attempts were even made to establish republics. Because of the glimmering light of scientific truth put forth in the sixteenth century, ecclesiastical authority was no longer supreme.

Although many important steps had been taken to free men from the thralldom of the past, so firmly had the idea of woman's inferiority been established that no thought of including her in the new régime was ever entertained.

Justice, equality, and liberty are subjects upon which man descants loudly and long. He talks glibly of his free institutions and even designates a number of his one-sided governments as republics, and this too notwithstanding the fact that women are still denied representation in the governments to which they owe allegiance, and that a large proportion of men are still within the grasp of economic slavery; all of which shows the extent to which the moral sense and the judgment have been dwarfed by prejudice and selfishness. Democracy is still a meaningless term—an ideal yet to be realized.

At the beginning of the nineteenth century such were the conditions surrounding women that an attempt on their part to extricate themselves from their legal and social bondage would have proved utterly futile. At that time women had practically no legal rights; even the right to control their

own bodies was denied them. As woman was dependent upon man for support her sex-functions were controlled by him and the children which she bore belonged exclusively to him. He constituted the family—wife and children did not count. To a considerable extent these conditions still prevail.

Masculine law, masculine religion, and masculine ideas concerning the duties and uses of the female sex had made of woman a nondescript—a creature neither male nor female. Her mental constitution had become atrophied, the diluted reflections of men's opinions having been substituted for the natural feminine instincts and ideas. Among the great mass of women the original feminine type had disappeared.

In process of time, however, women began slowly to awaken from the hideous nightmare which threatened to destroy the last remaining vestige of the instincts and ideas peculiar to the female constitution. In the beginning of the nineteenth century some of the educational advantages enjoyed by men began to be appropriated by women. Thus began the unrest which now extends over the entire earth.

About seventy years ago a movement was started by women to secure for themselves the right to self-government. Immediately all the prejudice which characterizes a sex-aristocracy was aroused. Ridicule, calumny, and even personal abuse were directed against all those who were intelligent enough or fearless enough to stem the tide of popular indignation.

For forty years, little or no progress was made toward securing the right of self-government for women. As late as 1870 a woman who openly avowed herself a suffragist was regarded not only as "bold and unwomanly" but as a dangerous person. The most strenuous opposition to the movement came from the clergy and the flocks over which they presided. Whenever church women were asked to consider the question of the equality of the sexes their unvarying reply was: "My bible forbids it." Now that the history of Pauline Christianity is better understood its attitude toward the freedom of women needs no further explanation.

When the then existing mental conditions are recalled and especially when the religious prejudices of the time are considered the attitude

manifested toward the proposed enfranchisement of women is not perhaps remarkable.

Although forty years ago biological science was in its infancy enough facts had at that time been discovered clearly to indicate the position which Nature intended woman to occupy. By the scientists of that time, however, the logical and unavoidable inferences to be drawn from these facts were wholly ignored. During the ages of man's undisputed supremacy so deeply rooted had the idea of woman's inferiority become that these newly discovered facts concerning her development could not be accepted—the old prejudices could not at once be uprooted.

We have already observed that whenever and wherever Mr. Darwin and other scientists of his time felt called upon to compare the relative importance of men and women such comparison has invariably been to the disadvantage of the latter and this too notwithstanding the fact that the evidence which they themselves have elaborated warrants no such conclusions.

Forty years ago the doctrine that woman has no independent existence, but that she is simply an appendage to man, was everywhere accepted and taught not only by ecclesiastics but by scientists as well. Woman was only a “rib” taken from the side of man.

None of the doctrines elaborated for the guidance of women was so explicit as those relating to the duties of wives. The cause for this is obvious. Earlier in this work the fact has been noted that our present form of marriage originated in force—that no other principle was involved in it than coercion on the one side and unwilling submission on the other.

So long as the original idea underlying marriage is retained, or so long as woman is recognized as the property of her husband and subject to his control, no matter what may be achieved by individual women, the belief in the inferiority of women as a class will continue. In other words so long as women remain economic slaves dependent upon their husband for support so long will their status remain unchanged.

“She is my goods, my chattels, my household stuff.”

There are in this country at the present time more than nine millions of women engaged in earning their own livelihood. Many of these women have families dependent upon them for support. The disadvantages under which they labour are realized when we remember that their competitors are their political and economic superiors and are therefore able to a considerable extent to dictate the conditions under which these women work; yet notwithstanding these unfavourable conditions this change in woman's environment represents an important step in the evolutionary processes. By it women are learning that only through independence is self-respect possible.

We have already seen that whenever during the historic period, women have had an opportunity to rise they have never failed to rebel against the conditions imposed upon them. The women of Athens during the Periclean age, the Spartan women under Lycurgus, and the women of Rome during the time of the Antonine Cæsars are notable examples of this fact. Even the Chinese women are claiming the right to govern themselves. In these later years they are unbinding their feet and in other ways are defying the forces which in the past have prevented them from asserting their independence. The various examples of revolt among women have hitherto been carried on by single nations or by countries widely separated from one another. At the present time, however, the women of the entire world have risen to demand the freedom of their sex. However much those who favour the subjection of women may deplore this movement even the most stupid among them will surely not fail to recognize its importance.

The history of human society during the last four hundred years has for the most part been a struggle between the constructive elements developed in human society and the destructive or disintegrating forces which are the result of the unchecked egoism or selfishness developed in man during the ages in which woman has been subject to his will.

CHAPTER VII

CONCLUSION

Scientific investigation has proved the great age of the earth and the enormous length of time which has elapsed since the first appearance of human beings upon its surface. Concerning the career of man during the countless millions of years which followed his advent upon the earth, little is known down to a comparatively recent time—a time commonly designated as the historic period.

When considering the past one is inclined to ask the question: “Does the history of mankind represent an unbroken line of progress, or, on the contrary, does it reflect a series of alternating periods of development and decay?”

We have observed that in recent times through the study of tribes and races in the various stages of development much has been learned concerning the origin of organized society and the development of human institutions. We have also seen that through the legends, traditions, and myths of the earliest historic peoples much reliable information has been gained regarding the conditions which prevailed at a still earlier period of human existence.

Notwithstanding the proofs which in recent times have been obtained relative to the law of periodicity which has thus far regulated human progress the idea prevails that in our own time mental activity has reached a stage never before witnessed. It is assumed that throughout the entire history of mankind material and intellectual development has never attained to such colossal proportions. It is evident that our egoism has obscured our normal vision. We lack perspective.

There is no evidence to prove that the present brain capacity of human beings exceeds that of the earliest ages of human history, neither is there any proof that the moral sense has been in the least reinforced. The lofty

moral and spiritual precepts which abound in the Upanishads have never been surpassed—possibly never equalled. We are heirs of all the ages. The accumulated knowledge of the past is responsible for present achievements.

Those who have made a study of tribes and races in the various stages of development find much evidence going to prove that extant savage tribes do not represent man as he first emerged from the animal type, but, on the contrary, that they are the degenerate descendants of an extinct civilized race differing little from our own. If this be true, if human development which thus far seems to have been wholly material contain within itself the seeds of its own destruction, would it not be wise for the present generation to examine existing conditions in order to ascertain if we too have not already entered upon the path of degeneracy or decay?

Possibly this will be regarded as a pessimistic suggestion, but as has already been observed, a comparison between the conditions existing in prehistoric times and those which prevail under the present so-called civilized régime fully justifies this suggestion.

Those persons who have acquainted themselves with the available facts underlying the growth of organized society and the development of existing institutions, and who have co-ordinated these facts with the present situation are able to trace not only the growth of the destructive principle in human affairs but are able to forecast with a considerable degree of accuracy the results which must inevitably follow. Without a knowledge of the past it is impossible to understand or interpret the present.

We are living in a remarkable age. It is to be doubted if throughout the entire historic period there has been a time when passing events moved so swiftly or when they assumed the magnitude of those now taking place. Causes which were set up during prehistoric times have reached a climax. The inevitable results from those causes are upon us.

In order to compare the past and the present it becomes necessary briefly to recall some of the already recorded facts relative to existing conditions under early organized society.

When human beings lived closer to nature and before the natural checks to the lower or disintegrating forces had been withdrawn, the basic

principles underlying human action were equality and liberty. No member of a communal group could claim any right or privilege not enjoyed by all. There was no poverty and no crime. Disease as we know it was unknown. As the lands were held in common, women were absolutely free and independent. They chose their mates and were responsible for the well-being of their offspring. As women controlled the sexual relation and themselves regulated prenatal conditions, the children inherited strong bodies and healthy minds. Dissensions over property did not occur, and jealousy and a desire for personal aggrandizement had not been developed.

The religious worship of primitive people consisted for the most part in invocations to the Great Mother, the fructifying principle throughout nature, from whom were derived all earthly benefits. Later the Great Mother came to be worshipped under various appellations, namely, Cybele, or Astarte, in Asia Minor, Athene in Greece, Minerva in Rome, and Isis or Neith in Egypt. Finally, as is well known, these goddesses were dethroned by an all-powerful male God, an anthropomorphic deity whose chief attribute was virile might. This change in the god-idea was coincident with, and dependent upon, a corresponding change in the relations of the sexes which took place at a certain period in human history. The god-idea is now and ever has been in strict accord with the existing conceptions concerning the relative importance of the sex-functions in human beings.

During thousands of years of life on "earth" the mother was the only recognized parent. As the giver of life and the protector of offspring she was regarded as the Creator and Preserver of the race. She represented the constructive element in human society. Later, however, when man began to contest the supremacy of woman, her hitherto unquestioned prerogatives began to be claimed by him. It was at this juncture in human affairs that the contention arose over the relative importance of the sexes in the processes of reproduction. Not only in the traditions and legends of early historic peoples but in their histories as well there is much evidence given to prove that this contention was as fierce as that which at the present time is going on between the sexes. As a result of this contention both female and male gods were worshipped. Those who recognized the mother as the giver of life continued to worship the female principle, while those who accepted the new doctrine enunciated by Apollo, namely, that the soul of the child is derived from the father and the mother is only a nurse to his heaven-born

offspring, accepted the new religion. When the dominion of man over woman was complete the female principle throughout nature and in the god-idea was practically unrecognized or wholly ignored. Throughout the historic period male power has been supreme not only on the earth but also in heaven. Classical history is not wanting in references to this change in the relations of the sexes and in the god-idea which took place at a certain stage of human development.

We are informed that in Greece, probably about 1100 years B.C., Cecrops “instituted marriage and established a new religion.” The new religion instituted by Cecrops was the doctrine that the father is the only parent, that the soul of the child is derived from him, and that the mother performs simply the office of nurse to his offspring. Woman was no longer the creator or giver of life. She was matter while man, who was henceforth to be her lord and master, was spirit. Marriage as instituted by Cecrops was the natural and inevitable outcome of the new religion. It was the first attempt of the Greek tribes to legalize and control the sex-functions of women. The deeper one delves into the mysteries of the past the more apparent does it become that the sexual degradation of women is deeply rooted in religion.

For untold ages early organized society proceeded along the line of uninterrupted evolutionary progress. Although humanity was traversing an unknown path the arts of life steadily increased. The production of farinaceous food by means of which an exclusive meat diet was avoided was an achievement of the utmost importance to the race. The idea of government which at first included only the members of related groups was extended to the tribe and even to the nation.

Equality, freedom, and justice constituted the fundamental principles of early organized society. Finally, however, through causes which have already been set forth in these pages, this system gradually gave place to a regime founded on selfishness, or egoism. At this time in human affairs related groups could no longer defend themselves against the aggressions of powerful hostile foes; jealousies arose and alien tribes began to make war upon one another, the stronger appropriating the lands of the weaker and making slaves of the people. The women of the subjugated groups became the sexual slaves of the conquerors. As native women were free, foreign women who could be controlled were greatly in demand. Therefore

frequent attacks were made on foreign groups for the sole purpose of “carrying off” the women.

The lands which had been held in common by all the members of the tribe were now parcelled out among individual chieftains. The prestige given to these “lords of the soil,” and the advantage gained by them through the control of the natural resources and the means of subsistence, soon gave rise to a privileged class—a class which in process of time became masters of the masses of the people. When wars for conquest and spoliation became general and when the communal system under which the principles of liberty and equality had been established gave place to a system founded on force the entire habitable globe became a battle-ground upon which each and every individual struggled fiercely with every other individual not only for place and power, but for the means of subsistence as well. When the principles of democracy established under gentile institutions gave place to a system of governmental control under which only the rights of the few were recognized, and when the unchecked disruptive forces had gained the ascendancy over the constructive elements developed in human nature, the degeneracy of the race began. It is not difficult to trace the steps by which this degeneracy has been accomplished.

Although we of the present boast of our material achievements, and although we arrogate to ourselves a most remarkable degree of intelligence, enlightenment, and even culture, it is evident that we have not risen above a plane of the grossest materialism, and that in the truly human qualities, those which distinguish man from the animal, we are sadly deficient. That in these later days the moral sense has become atrophied is shown in the fact that our present tooth and claw system, under which each individual must array himself against every other individual in his struggle for existence, is regarded as a practical exemplification of the principle of the “Survival of the Fittest.” According to this interpretation, not those who are best endowed, physically, mentally, and morally are the fittest to survive, but on the contrary those who are best able to appropriate to themselves the opportunities and advantages which belong to others. In other words it is claimed that by the Survival of the Fittest is meant the survival of those who because of their material advantages are able to exploit their fellowmen. A few of the processes involved in the control of the many by the few have already been mentioned. To maintain the authority of the

privileged class and to strengthen their hold on the liberties of the people, Monarchy, Aristocracy, and Ecclesiasticism were established and the Divine Right of Kings proclaimed. Intrenched behind these mighty bulwarks the position of the usurpers has been impregnable. Through enforced ignorance and superstition the “common people” came to regard their situation not only as natural and unavoidable but as representing the will of the Almighty. If they were faithful to their masters in this world, in the world to come they would be furnished with free transport to Fields Elysian. Strange to relate this belief still prevails.

At the present time the principle of human freedom is still struggling for recognition, but the great mass of human beings, although boasting of their civilization and enlightenment, continue to uphold the principle that the few should rule the many. They regard their rulers as superior beings whose authority may not be questioned. At the present time we have before us the dismal spectacle of half a dozen hereditary monarchs who with their satellites claim the right to rule over nearly the whole of Europe and a large portion of Asia. Twenty-five millions of men are now engaged in a deadly conflict to further the commercial and territorial interests of their masters.

When we compare present conditions with those which existed under early organized society at a time when every individual member of a group was equal in responsibility and power with every other member of the same group we are enabled to perceive the path which mankind has taken on its onward course.

When one reflects on the peculiar trend of human development one may feel no surprise over the fact that at this juncture in human affairs there should arise a ruler in whom the desire for world-dominion is clearly apparent. That such a potentate has already appeared is shown in the following from Emperor William II. of Germany.

“On me as Germany’s Emperor the spirit of God has descended. I am His weapon, His sword, his vicegerent. Woe unto the disobedient. Death to the unbeliever.” Here it is observed that this ruler aspires not only to earthly dominion but also to divine recognition.

To strangle the growing principles of liberty and to establish a system founded on force under which the individual was to become only an instrument to do the bidding of his lord and master was doubtless the original object of those who instigated the present war.

During the ages since the establishment of the authority of the few over the many, the latter until a comparatively recent time have offered little resistance to the tyranny exercised over them. Mentally dwarfed the proletariat have not yet reached the degree of intelligence necessary for a combination of interests. They have therefore remained like dumb driven cattle subject only to the will of their masters.

About sixty years ago through the efforts of a few leaders who had begun to realize the situation, a certain degree of unrest began to manifest itself among them, and forty years later the proletariat succeeded in establishing an international organization ostensibly for their own benefit as opposed to the interests of the ruling class. They, however, lacked solidarity. The natural tendency of their sex toward separateness or disintegration was not easily overcome. This is shown in the case of the present European conflict. When the war broke out instead of standing together they at once hastened to obey the mandates of their respective rulers, and with no higher idea than patriotism or nationality they at once began their brutal assault upon one another. It was evident from the beginning that the German socialists, they who had been the most conspicuous in the international movement, were first, last, and all the time Germans and that after all they were actuated only by one desire, namely, national aggrandizement. So lacking are men in the principle of solidarity, and so deeply rooted within them is the idea of separateness, that it is to be doubted if, without the aid of woman, they will ever be able to free themselves from the tyranny of the past.

In very recent times a foe has arisen which threatens to be a greater menace to the liberties of the masses of the people than were the foes by which they were originally enslaved. I refer to the money power, or plutocracy.

During the last few years, through the application of scientific methods to industry, and through mechanical inventions by means of which the power and efficiency of labour have been greatly increased, the accumulation of wealth has reached a point never before witnessed in the history of the world, yet strange to relate, along with this enormous increase in wealth there has been a corresponding increase in poverty and crime. This immense wealth has not been shared by those who produced it but has gone into the pockets of those who exploit labour for profits. Along with this enormous increase in wealth is observed a general lowering of standards both in private and public life. There are in this country alone ten millions of people who are deprived of the necessary food, clothing, and shelter to insure a healthful existence. In the public schools of New York City it is reported that six hundred thousand children are victims of malnutrition. In winter thousands of hungry men and women go up and down the streets of our large cities begging for an opportunity to earn a living. Our jails and prisons are filled to overflowing. Our almshouses and insane asylums are insufficient to meet the demands. Imbecility and other forms of mental degeneracy are increasing at an alarming rate. Epilepsy and other congenital diseases prevail among all classes and conditions of the people. Five-sixths of the children born are diseased at birth.

The basic principle underlying our present economic system is profits. To secure large profits labour must be cheap and plentiful, and that labour may be cheap and plentiful an enormous population must be produced. In order to produce this enormous population women must be enslaved. Although existing conditions are such as to make life a curse instead of a blessing, the cry for “babies, more babies” is heard on every hand, and this notwithstanding the fact that a large proportion of the children born die before the age of five because this environment is unfavourable to life.

The clamour for an ever increasing birth-rate never ceases. It is believed that Providence alone is responsible for human ills. Poverty and disease are accepted as natural and unavoidable evils.

The fears expressed lest the human race fail to perpetuate itself would be pathetic were the reason for these fears less obvious. When we reflect that the labour market must be constantly supplied with cheap labour, and that millions of soldiers must be produced to protect the commercial and

territorial interests of the ruling class the true inwardness of this insatiate cry for constantly increasing numbers is revealed.

Ecclesiasticism, the faithful ally of Plutocracy, mindful of the fact that its strength lies in an excess of numbers, has ever jealously guarded the injunction to increase and multiply. No doctrine of the so-called Christian church has been so fondly cherished and so faithfully preserved as has that of the subjection of women. Woman's glorification under the Christian system has been exactly commensurate with her obedience to man. No offering from her to the Almighty is so acceptable as unrestrained reproductive energy.

The report of a declining birth-rate in any country of the globe is a signal for instant alarm, but although publicists and politicians have attempted to control the birth-rate not only by threats and promises but by legal enactments regulating marriage, still it is observed that in all countries of Europe, with the exception of Ireland, Bulgaria, and Roumania, the birth-rate during the last twenty-five years has steadily declined. Although numberless causes have been suggested to account for this phenomenon, and although various remedies have been proposed to lessen this "evil," the actual cause underlying the declining birth-rate of our time remains unrecognized. Politicians, publicists, and ecclesiastics all refuse to acknowledge the obvious fact that the increasing economic independence of women is alone responsible for this phenomenon.

Notwithstanding the fact that during the last twenty-five years marked progress is observed in the social and economic conditions of women, still the sexual position of the great mass of women has steadily declined. The fact that so far as her sex relations are concerned civilized woman occupies a lower position than that occupied by the female animal has already been noted in these pages. The traffic in women is carried on in every country on the earth.

The existing sexual conditions are the direct result of the overstimulation of the disruptive characters inherited by man from his male progenitors among the lower orders of life, characters which among animals have been checked by the constructive forces developed in the female. Our sexual

conditions and our present economic and industrial situation loudly proclaim the degeneracy of our time.

When the principles of equality and liberty, which were established by early organized society, gave place to a system founded on force and the control of the many by the few, and when through the subjection of women the natural checks to the disruptive tendencies developed in the male were withdrawn, the conditions now existing in so-called civilized society were foreshadowed.

A crisis has been reached in human affairs. The old regime has run its course and is about to disappear. A new era is about to dawn on the human race. The war which is now devastating Europe, and which will doubtless spread over the entire earth, is the beginning of the end. The effects of the causes which were set up in prehistoric times have reached their full measure of development and can no more be postponed or averted than can the thunderbolt which follows an electrical explosion. A thoroughly material civilization founded on selfishness and sensuality must be destroyed root and branch before the higher planes of activity for which humanity is destined may be reached. The present conflict therefore should not be regarded simply as a horrible calamity but as a necessary preliminary to these higher conditions. If the birth of the new regime can come only through blood and tears, if only through the throes of war is deliverance possible, then it is not only unwise but useless to bewail the present crisis.

Through the cleansing process involved in the present revolution, humanity will doubtless return to the legitimate path of evolutionary development. Either liberty and justice, the cardinal principles underlying early organized society will be re-established or the processes of disruption will complete the work of degeneration now so well under way. In the transformation which is to take place it is not likely that a vestige of the institutions which have produced the present regime will remain. The conflict now going on between the higher and lower forces developed in human life represents the struggle of Omnipotent Life for higher expression in matter.

It has been shown in this work that during the development of life on the earth two forces have been steadily at work, the one a conserving, cohesive

element, the other a disruptive, disintegrating energy. The one tends toward combination or solidarity, the other toward separateness or individual sufficiency. The one is constructive, the other destructive. Had the constructive processes in human society been allowed their legitimate expression the scenes now being enacted in Europe would have been impossible.

The principal force which has been employed in the development of our present civilization has been male energy. In the past this enormous force has been necessary to subdue the earth and make of it a suitable habitation for civilized humanity. In later times, however, the discovery of hitherto unknown forces in nature, the application of scientific methods to industry, and the invention of mechanical devices for the lessening of human toil have done away with the necessity for an excess of human brawn. In other words the excessive male energy which has in the past been required for the development of our present civilization has become not only useless but an actual hindrance to further progress. As this enormous power is no longer needed for useful purposes it has been turned into channels of wantonness and destruction. It has become disruptive and dangerous to a degree which may be appreciated when we reflect on the present conditions not only in Europe, but over the entire earth. Among the cleansing processes involved in the present crisis is the elimination of a considerable number of the useless elements described above—elements which being no longer necessary for the maintenance of the common good have become a menace to society.

According to our narrow human conceptions by which passing events are regarded only in relation to their present effects, the eliminating processes now going on are cruel and inhuman. Nature, however, pays little heed to human suffering, but although she ignores human misery she will nevertheless demand an exact accounting for the deeds of selfishness and ignorance which are responsible for the present disorder. She will inaugurate no scheme of salvation; no “Vicarious Atonement” will be provided to save mankind from the consequences of their own folly.

The struggle now going on in nearly every quarter of the globe marks the beginning of the eliminating process. The useless elements in human society are wearing themselves out, destroying themselves by their own

rashness and folly. Impelled by a desire which they do not understand and which they are unable to resist, these victims of a decaying civilization rush madly on to destruction. Those men who voluntarily seek war represent a dissatisfied or discontented class. True to the primitive instincts of the race they crave the peculiar excitement which war brings. It is not unlikely that many of them understand instinctively that something is wrong with the present regime, but they seem not to be able to analyse the situation.

Doubtless very many of those engaged in the present European struggle are actuated by patriotism. They want to maintain the existing territorial boundaries presided over by their respective rulers. They desire also to retain the institutions, social, political, economic, and religious which have grown up under a system where the few control the many. Evidently the idea of human liberty has not yet dawned upon them. If universal freedom awaits the birth of the new regime, which is being heralded by the present upheaval, then it is plain that the men in the trenches are quite unmindful of the significance of the conflict in which they are engaged. The belligerent countries of Europe may consent to a truce and there may be a lull in the universal unrest, but there will be no genuine peace until the principle of human liberty has been established on a firm and lasting basis.

That the removal of these superfluous men from their usual vocations will not materially interfere with the useful industries of Europe is shown in the fact that although 25,000,000 of them have been called to the war their withdrawal from the industrial field has not greatly disturbed the industrial situation, and this too notwithstanding the fact that many new occupations have been created by the war. The work formerly done by these men has been largely taken up by women.

It should be borne in mind that under the new conditions which are approaching, the constructive element developed in human society is again to assume command over the destructive forces which have been in control since the beginning of the historic period. As this element has been confided to women and as it is by them transmitted to offspring, it is not difficult to forecast the position which the women of the future will occupy.

The institution of marriage as it now exists will disappear. Only the most robust among women will propagate the race. These women, as did the

women under early organized society, will choose their mates. They will exercise absolute control over the sex-functions. Thus will be avoided the terrible consequences which have resulted from the present form of marriage.

The numerical preponderance of women over men under the new regime is probable. Nor will the devastating processes of war be wholly responsible for this condition. Science informs us that not only among the lower orders of life but among human beings as well, certain conditions of nutrition produce more females than males. The more nutritious and wholesome the food the greater the excess of females over males. Under higher conditions, when the laws of health and life are better understood and especially when the subject of proper nutrition has received the attention which its importance deserves, it is not unreasonable to suppose that the excess of female births over those of males will be considerable.

Although there have doubtless been long lapses of time during which the human race has seemed to go backward, it is believed that the trend of humanity is now and ever has been upward. If, as is believed, human events move in cycles, if the civilizations which have risen in the past represent a spiral, each of these civilizations reaching a higher stage of development than its predecessor, then it may be inferred that the era which is now dawning will surpass in grandeur anything which the world has ever witnessed. If, as many persons believe, a stage of development has been reached in which human beings are to be endowed with a sixth sense, if the intuitive faculties which are closely allied to the constructive element and which mark a still greater distinction between man and the animal are to come into play it may be assumed that the mental and spiritual faculties will reach a stage of development scarcely dreamed of in our own time. Humanity will have come into its own, the animal in man will have been left behind.

The co-ordination of science and history not only illumines the past and explains the present, but the inevitable results of the natural sequence of events point unerringly to the conditions which must prevail in the future.

The philosophy of history proves to the earnest seeker after truth that the door of the future is not wholly closed.

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FOOTNOTES:

[1](#) Haeckel, *History of Creation*, 1884, vol. i., p. 75.

[2](#) *History of Creation*, vol. i., p. 331.

[3](#) *History of Creation*, 1884, vol. i., p. 187.

[4](#) Darwin, *The Descent of Man*, 1877, p. 207.

[5](#) *Ibid.*, p. 208.

[6](#) *The Descent of Man*, 1877, pp. 209-211.

[7](#) *The Descent of Man*, 1877, p. 220.

[8](#) *The Descent of Man*, 1877, p. 496.

[9](#) *Ibid.*, p. 367.

[10](#) *The Descent of Man*, 1877, p. 443.

[11](#) *Ibid.*, p. 416.

[12](#) *The Descent of Man*, 1877, p. 212.

[13](#) *Ibid.*, p. 523.

[14](#) *The Descent of Man*, 1877, p. 525.

[15](#) It should be noted, in passing, that, according to this reasoning, the female of the human species would also be likely to exercise her will power in the selection of a mate. Evidences are indeed at hand going to prove that until a comparatively recent time in the history of the human race women controlled the sexual relation. As will be shown in Part II., during the primitive ages of human existence the position of woman was much higher than was that occupied by man. During the earlier ages, and under more natural conditions, women selected their mates, and among the human species, as among the lower orders, it became necessary for the male to please the female if he would win her favours; hence, through Sexual Selection, it is believed, was acquired the greater size of man.

[16](#) *The Descent of Man*, 1877, p. 211.

[17](#) *The Descent of Man*, 1877, p. 400.

[18](#) *The Descent of Man*, 1877, p. 232.

[19](#) *The Descent of Man*, 1877, p. 222.

[20](#) *Ibid.*, p. 227.

[21](#) *The Descent of Man*, p. 224.

- [22](#) *The Descent of Man*, 1877, p. 617.
- [23](#) Geddes and Thomson, *The Evolution of Sex*, 1890, p. 24.
- [24](#) *The Evolution of Sex*, 1890, p. 20.
- [25](#) *The Evolution of Sex*, p. 50.
- [26](#) Prof. W. K. Brooks, *Pop. Science Monthly*, vol. xxvi., p. 327.
- [27](#) Geddes and Thomson, *The Evolution of Sex*, 1890, p. 42.
- [28](#) *Popular Science Monthly*, vol. xxvi., p. 328.
- [29](#) *The Descent of Man*, 1877, p. 212.
- [30](#) W. K. Brooks, *Popular Science Monthly*, vol. xxvi., p. 326.
- [31](#) Thomas Meehan, *Native Flowers and Ferns*, vol. i., p. 47.
- [32](#) *Native Flowers and Ferns*, vol. i., p. 39.
- [33](#) *The Evolution of Sex*, 1890, p. 26.
- [34](#) *History of Creation*, 1884, vol. i., p. 178.
- [35](#) *The Descent of Man*, 1887, p. 243.
- [36](#) *History of Greenland*, vol. i., p. 152.
- [37](#) *Pop. Science Monthly*, vol. xix., p. 567.
- [38](#) *Pop. Science Monthly*, vol. xxxi., p. 796.
- [39](#) *American Nervousness*, p. 207.
- [40](#) Maudsley, *Physiology and Pathology of the Mind*, p. 360.
- [41](#) *The Descent of Man*, 1877, p. 102.
- [42](#) *The Descent of Man*, 1877, p. 559.
- [43](#) Maudsley, *Physiology and Pathology of the Mind*, p. 60.
- [44](#) *The Evolution of Marriage and the Family*, p. 29.
- [45](#) Geddes and Thomson, *The Evolution of Sex*, p. 276.
- [46](#) Letourneau, *The Evolution of Marriage and the Family*, p. 22.
- [47](#) *The Evolution of Marriage and the Family*, p. 34.
- [48](#) *The Descent of Man*, p. 105.
- [49](#) *The Descent of Man*, p. 130.
- [50](#) *The Descent of Man*, p. 564.
- [51](#) *The Descent of Man*, p. 565.

- [52](#) Geddes and Thomson, *The Evolution of Sex*, p. 266.
- [53](#) Letourneau, *The Evolution of Marriage and the Family*, p. 27.
- [54](#) J. G. Wood, *Natural History*, p. 262.
- [55](#) Westermarck, *The History of Human Marriage*, p. 11.
- [56](#) Brehm, *Bird-Life*.
- [57](#) Letourneau, *The Evolution of Marriage and the Family*, p. 27.
- [58](#) *Ibid.*, p. 35.
- [59](#) Darwin, *The Descent of Man*, p. 590.
- [60](#) Letourneau, *The Evolution of Marriage and the Family*, p. 32.
- [61](#) *Anthropology*, p. 405.
- [62](#) *Life in Abyssinia*, vol. ii., p. 152.
- [63](#) Tylor, *Anthropology*, p. 406.
- [64](#) Quoted by Westermarck, *History of Human Marriage*, p. 61.
- [65](#) Burckhardt's *Travels in Nubia*, p. 146.
- [66](#) Seeman, *A Mission to Viti*, p. 191.
- [67](#) *History of Sumatra*, p. 230.
- [68](#) *Ibid.*, p. 226.
- [69](#) *History of Greenland*, vol. i., p. 145.
- [70](#) *Epistle of St. Boniface to Ethelbald*.
- [71](#) *History of Human Marriage*, p. 62.
- [72](#) *The History of Human Marriage*, p. 68.
- [73](#) *Anthropology*, chap. xvi., p. 405.
- [74](#) *The Descent of Man*, p. 594.
- [75](#) *Ibid.*, p. 591.
- [76](#) Seeman, *A Mission to Viti*, p. 191.
- [77](#) Quoted by Sir John Lubbock, *Origin of Civilization*, p. 82.
- [78](#) Seeman, *A Mission to Viti*, p. 191.
- [79](#) *The Malay Archipelago*.
- [80](#) Morgan, *Ancient Society*, p. 52.
- [81](#) *Ancient Society*, pp. 62, 63.

- [82](#) Tylor, *Anthropology*, p. 405.
- [83](#) *Ancient Society*, p. 76.
- [84](#) *Totemism*, p. 57.
- [85](#) *Kinship and Marriage in Early Arabia*, p. 14.
- [86](#) *Kinship and Marriage in Early Arabia*, pp. 26, 27.
- [87](#) *Marriage and Kinship*, p. 16.
- [88](#) *Sociology* vol. i., p. 665.
- [89](#) *Descent of Man*, p. 588.
- [90](#) *Sociology*, vol. i., p. 665.
- [91](#) Quoted by Darwin, *Descent of Man*, p. 588.
- [92](#) *Ancient Society*, p. 71.
- [93](#) *Ancient Society*, p. 455.
- [94](#) *The Malay Archipelago*.
- [95](#) McLennan, *Studies in Ancient History*, p. 103.
- [96](#) C. Staniland Wake, *Marriage and Kinship*, p. 306.
- [97](#) *Studies in Ancient History*, p. 103.
- [98](#) Morgan, *Ancient Society*, p. 79.
- [99](#) Morgan, *Ancient Society*, p. 80.
- [100](#) Quoted by Lubbock, *Origin of Civilization*, p. 96.
- [101](#) *Uncivilized Races of the World*, vol. i., p. 78.
- [102](#) Parkyns, *Life in Abyssinia*, vol. i., p. 174.
- [103](#) *Early History of Mankind*, p. 296.
- [104](#) *Marriage and Kinship*, p. 262.
- [105](#) Morgan, *Ancient Society*, p. 82.
- [106](#) Morgan, *Ancient Society*, p. 117.
- [107](#) Morgan, *Ancient Society*, p. 85.
- [108](#) *Ibid.*, p. 64.
- [109](#) W. Robertson Smith, *Kinship and Marriage in Early Arabia*, p. 73.
- [110](#) Deuteronomy, chap. xx., 13, 14, 15.
- [111](#) *Studies in Ancient History*, p. 40.

- [112](#) Quoted by Sir J. Lubbock, *Origin of Civilization*, p. 108.
- [113](#) *Studies in Ancient History*, p. 5.
- [114](#) *Marriage and Kinship*, p. 207.
- [115](#) Quoted by E. J. Wood, *The Wedding Day*, etc., p. 60.
- [116](#) Quoted by E. J. Wood, *The Wedding Day*, etc., p. 60.
- [117](#) *History of Greenland*, vol. i., p. 146.
- [118](#) Burckhardt, *Travels in Nubia*, p. 34.
- [119](#) *Life in Abyssinia*, vol. ii., p. 49.
- [120](#) *Anthropology*, p. 404.
- [121](#) *Lycurgus*.
- [122](#) Quoted by Tylor, *Early History of Mankind*, p. 290.
- [123](#) *Travels through Central Africa*, vol. i., p. 94.
- [124](#) See McLennan's *Studies in Ancient History*, p. 189.
- [125](#) Prof. W. R. Smith, *Kinship and Marriage*, p. 69.
- [126](#) Ortolan, *History of Roman Law*, p. 80.
- [127](#) *Kinship and Marriage*, p. 75.
- [128](#) Quoted by C. S. Wake from Morgan's *System*, etc., p. 428.
- [129](#) Darwin, *The Descent of Man*, p. 598.
- [130](#) *Ibid.*, p. 598.
- [131](#) Marsden, *History of Sumatra*, p. 193.
- [132](#) Professor Smith, *Kinship and Marriage*, p. 79.
- [133](#) *Uncivilized Races*, etc., p. 78.
- [134](#) *Ibid.*, p. 79.
- [135](#) *Kinship and Marriage*, p. 77.
- [136](#) *Origin of Civilization*, p. 127.
- [137](#) C. Staniland Wake, *Marriage and Kinship*, p. 199.
- [138](#) Maine, *Ancient Law*, p. 133.
- [139](#) Ortolan, *History of Roman Law*, p. 107.
- [140](#) *Life in Abyssinia*, p. 156.
- [141](#) *Kinship and Marriage*, p. 105.

[142](#) Concerning one of the encounters of this warlike people, the following has been recounted by Plutarch (*Theseus*):

“And it appears to have been no slight or womanish enterprise; for they could not have encamped in the town, or joined battle on the ground about the Pnyx and the Museum, or fallen in so intrepid a manner upon the city of Athens, unless they had first reduced the country round about. It is difficult, indeed, to believe (though Hellanicus has related it) that they crossed the Cimmerian Bosphorus upon the ice; but that they encamped almost in the heart of the city is confirmed by the names of places, and by the tombs of those that fell.”

[143](#) *Descent of Man*, p. 594.

[144](#) *Origin of Civilization*, p. 99.

[145](#) *Origin of Civilization*, p. 2.

[146](#) *Origin of Civilization*, p. 106.

[147](#) *History of Greece*, vol. iii., p. 54.

[148](#) George Rawlinson, book v., essay ii.

[149](#) *Ibid.*

[150](#) George Rawlinson, book v., essay i.

[151](#) *History of Greece*, book ii., chap. i.

[152](#) Vol. ii., p. 348.

[153](#) *Ancient Society*, p. 262.

[154](#) *Ancient Society*, p. 262.

[155](#) *The Iliad*, book i., Bryant's translation.

[156](#) *The Iliad*, book i., Bryant's translation.

[157](#) Book ii.

[158](#) Book iv.

[159](#) *Ancient Society*, p. 247.

[160](#) George Rawlinson, book v., essay ii.

[161](#) Thucydides, *The History of Peloponnesian War*.

[162](#) Morgan, *Ancient Society*, p. 250.

[163](#) Thucydides, book ii., 14.

[164](#) *Theseus*.

[165](#) Book i., 13.

[166](#) Rawlinson, book v., essay ii.

[167](#) Rawlinson, book v., essay ii.

[168](#) *Ibid.*

[169](#) Rawlinson, book i., 1.

[170](#) Herodotus, book i., 173.

[171](#) Herodotus, book v., 80.

[172](#) *The Supplicants.*

[173](#) *The Seven Chiefs against Thebes.*

[174](#) *The Iliad*, book vi., Bryant's translation.

[175](#) *The Influence of Women on the Progress of Knowledge.*

[176](#) *European Morals*, vol. ii., p. 295.

[177](#) *History of Greece*, vol. ii., p. 83.

[178](#) *The Iliad*, book xxiv., Derby's translation.

[179](#) *The Iliad*, book xxii.

[180](#) *Ibid.*, book vi.

[181](#) A similar change had taken place in the god-idea. Jove was no longer the "terrible virgin" who "breathes out on crime, misery, and death," but, on the contrary, had come to represent a male god who had given birth to Minerva.

[182](#) Müller, *History and Antiquity of the Doric Race*, book i., 9, 13.

[183](#) Grote, *History of Greece*, vol. ii., p. 345.

[184](#) Rawlinson, book v., essay i.

[185](#) Aristotle, *Politics*, book iii., Jowett's translation.

[186](#) Rawlinson, book v., essay i.

[187](#) *Politics*, book ii.

[188](#) Curtius, *History of Greece*, book ii., chap. i.

[189](#) Rawlinson, book v., essay i.

[190](#) Müller, *History and Antiquity of the Doric Race*, book iii., chap. v.

[191](#) *Lycurgus.*

[192](#) Aristotle's *Politics*, book ii.

[193](#) Plutarch's *Lycurgus.*

[194](#) Book i., essay i.

[195](#) *History of Greece*, book ii., chap. i.

[196](#) Plutarch's *Lycurgus*.

[197](#) Curtius, *History of Greece*, book ii., chap. i.

[198](#) *Ibid.*

[199](#) *Politics*, vol. ii., p. 9.

[200](#) *Ibid.*

[201](#) *Ibid.*

[202](#) *Politics*.

[203](#) *Ibid.*

[204](#) *Lycurgus*.

[205](#) *Lycurgus*.

[206](#) As to the exercises of the virgins, and their appearing naked, C. O. Müller, in his *History and Antiquities of the Doric Race* observes:

“The female sex underwent in this respect the same education as the male, though (as has been above remarked) only the virgins. They had their own gymnasia, and exercised themselves, either naked or lightly clad, in running, wrestling, or throwing the quoit or spear. It is highly improbable that youths or men were allowed to look on, since in the gymnasia of Lacedæmon no idle bystanders were permitted; every person was obliged either to join the rest, or withdraw.”—Book iv., ch. v.-viii.

[207](#) *Lycurgus*.

[208](#) *History of Greece*, vol. ii., p. 385.

[209](#) *History and Antiquity of the Doric Race*, book iv., ch. ii., p. 1.

[210](#) We have the authority of Tacitus respecting the customs, character, and style of dress of the ancient Germans. Among this people, as is well known, the influence of women was in the ascendancy over that of men, and the state of public morals was exactly that which might be expected. Respecting the dress of women, this writer says they “do not lengthen their upper garment into sleeves but leave exposed the whole arm, and part of the breast” (*Germania*, chap. xvii.). It is observed, however, that chastity was the characteristic virtue of this people among both sexes. The marriage bond was strict and severe, and we are informed that among the Saxons the women themselves inflicted the penalty for adultery. From an epistle of St. Boniface, Archbishop of Mentz, to Ethelbald, King of England, we have the following: “In ancient Saxony (now Westphalia), if a virgin pollute her father's house, or a married woman prove false to her vows, sometimes she is forced to put an end to her own life by the halter, and over the ashes of her burned body her seducer is hanged.”

[211](#) Plutarch's *Lycurgus*.

[212](#) Plutarch's *Lycurgus*.

[213](#) Plutarch's *Lycurgus*.

[214](#) *History and Antiquity of the Doric Race*, book iv., chap. iv.

[215](#) Book i.

[216](#) *History of Greece*, book i., Ward's translation.

[217](#) *History of Roman Law*, p. 79.

[218](#) Ortolan's *History of Roman Law*, p. 42.

[219](#) Numa and Lycurgus compared.

[220](#) Quoted by Plutarch.

[221](#) Numa and Lycurgus compared.

[222](#) *Ibid.*

[223](#) *Ibid.*

[224](#) See Hargrave Jennings, *Phallicism*.

[225](#) Book i.

[226](#) Book i.

[227](#) Plutarch, *Solon*.

[228](#) Plutarch, *Solon*.

[229](#) Philemon. Quoted by *Athenæus*, book xiii.

[230](#) *Athenæus*, book xiii.,

[231](#) Demetrius.

[232](#) Ueberweg, *History of Philosophy*, vol. i., p. 95. We are informed by Ueberweg that there exists an early monograph on Arete by J. C. Eck (Leipzig, 1776).

[233](#) Diogenes Laërtius, *Life of Hipparchia*.

[234](#) Diogenes Laërtius, *Life of Hipparchia*, iii.

[235](#) Mayor, *Ancient Philosophy*, pp. 181, 182.

[236](#) *Athenæus*.

[237](#) Xenophon, *Memorabilia of Socrates*.

[238](#) Plutarch, *Pericles*.

[239](#) *Athenæus*, book xiii.

[240](#) Plutarch, *Pericles*.

[241](#) Plutarch, *Pericles*.

- [242](#) *Ibid.*
- [243](#) Plutarch, *Pericles*.
- [244](#) Xenophon, *Banquet*.
- [245](#) *Ecclesiastusæ*.
- [246](#) *Athenæus*, xiii.
- [247](#) *Ibid.*
- [248](#) *Athenæus*, xiii.
- [249](#) Book i.
- [250](#) *Athenæus*, book xiii.
- [251](#) *Ibid.*, book xiii.
- [252](#) *Ibid.*, book xiii.
- [253](#) *Athenæus*, book xiii.
- [254](#) *Ibid.*, book xiii.
- [255](#) *Ancient Law*, p. 149.
- [256](#) *Ancient Law*, p. 144.
- [257](#) *Ancient Law*, p. 149.
- [258](#) *Ancient Law*, p. 150.
- [259](#) *European Morals*, vol. ii., p. 358.
- [260](#) Buckle's *Essays*.
- [261](#) *Ancient Law*, p. 154.
- [262](#) Roman History. Appian, London, 1913.
- [263](#) The History of Rome. Titus Livius, p. 172.
- [264](#) Robert Mackenzie, *The Nineteenth Century*, p. 9.
- [265](#) Robert Mackenzie, *The Nineteenth Century*, p. 77.

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